



CHAPTER lxxx.

An Act to consolidate with amendments the Acts relating to the harbour of Dundee and the Tay Ferries to reconstitute and re-incorporate the Trustees and for other purposes. A.D. 1911.
[18th August 1911.]

WHEREAS by the Dundee Harbour Consolidation Act 1875 (hereinafter called "the Act of 1875") certain Acts relating to the harbour of Dundee were repealed with the exceptions mentioned in that Act and were consolidated with amendments and the trustees of the harbour of Dundee were re-incorporated and the undertaking as therein defined of the then existing harbour trustees was transferred to and vested in the trustees so re-incorporated (hereinafter called "the existing trustees"):

And whereas by the Dundee Harbour and Tay Ferries Act 1889 (hereinafter called "the Act of 1889") the Dundee Harbour (Amendment) Act 1892 (hereinafter called "the Act of 1892") the Dundee Harbour (Additional Powers) Act 1896 (hereinafter called "the Act of 1896") and the Dundee Harbour (Amendment) Act 1900 (hereinafter called "the Act of 1900") further powers with reference to their undertaking were conferred on the existing trustees:

And whereas the existing trustees have under the powers of the said recited Acts from time to time made great improvements in and connected with the harbour for the accommodation of the trade and shipping thereat and the traffic and revenues arising therefrom have of late years greatly increased:

And whereas at the passing of the Act of 1875 the amount of the harbour debt outstanding was two hundred and ninety-seven thousand one hundred and seventy-nine pounds and the sum of eighty-nine thousand and seven pounds was the amount

A.D. 1911. of the then unexercised borrowing powers for harbour purposes and by the Act of 1875 the existing trustees were authorised to borrow for the purposes of the harbour the further sum of one hundred thousand pounds:

And whereas the existing trustees were authorised by the Act of 1889 to borrow the sum of one hundred thousand pounds and by the Act of 1896 the sum of fifty thousand pounds and by the Act of 1900 the sum of one hundred thousand pounds:

And whereas the existing trustees have from time to time borrowed the money so authorised to be borrowed by the Acts of 1875 1889 and 1896 and part of the money authorised to be borrowed by the Act of 1900 and have repaid by means of the sinking fund a large amount thereof and there is now owing by them in respect of the harbour undertaking the sum of three hundred and forty-eight thousand six hundred and nineteen pounds nineteen shillings:

And whereas the unexhausted borrowing powers of the existing trustees under the said recited Acts amount to forty-five thousand two hundred and eight pounds sixteen shillings and threepence:

And whereas by the Act of 1875 it was provided that the trustees thereby incorporated should consist of the provost first second third and fourth bailies and the dean of guild of the royal burgh of Dundee the boxmaster of the Fraternity of Masters and Seamen in Dundee and the convener of the Nine Incorporated Trades of Dundee all for the time being ex officiis and twenty-four other persons to be nominated and elected annually as follows One person being a common councillor of the royal burgh of Dundee five members of the Guildry Incorporation of Dundee two members of the Nine Incorporated Trades of Dundee one member of the Three United Trades of Dundee four persons being commissioners of supply of the county of Forfar three members of the Dundee Chamber of Commerce three shipowners of Dundee three ratepayers of the harbour of Dundee and two municipal electors of the burgh of Dundee:

And whereas since the passing of the Act of 1875 the constitution of the existing trustees has remained unaltered except that under the provisions of the Local Government (Scotland) Act 1889 the county council of the county of

[1. & 2 GEO. 5.] *Dundee Harbour and Tay Ferries* [Ch. lxxx.]
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Forfar has come in the room and place of the commissioners of supply of the said county : A.D. 1911.

And whereas it is expedient that the constitution of the existing trustees should be amended and altered and the Trustees re-incorporated as hereinafter in this Act provided so as to make the trustees (hereinafter called "the Trustees") more fully representative of the persons interested in the harbour and commerce of Dundee and that the undertaking of the existing trustees should be transferred to and vested in the Trustees :

And whereas it is expedient to authorise the Trustees to effect further improvements for the benefit of the trade and shipping at the harbour of Dundee and to borrow further moneys for those purposes :

And whereas it is expedient that the rates at present leviable at the harbour of Dundee shall be revised and that new and additional rates for harbour purposes should be imposed as by this Act provided :

And whereas it is expedient that further powers should be conferred on the Trustees with regard to the working and supervision of the harbour and harbour undertaking of Dundee and the regulation of the harbour traffic :

And whereas it is expedient that the Trustees should be authorised to work and use the harbour rails and should be authorised to do all acts and things necessary for the said purpose :

And whereas by the Dundee Harbour and Tay Ferries Act 1873 (hereinafter called "the Act of 1873") the Tay ferries and all the rights and property thereof together with the ferry harbours and landing places were vested in and transferred to the then existing trustees who were authorised to work maintain and manage the same : 36 & 37 Vict.
c. l.

And whereas the Tay ferries were and are within the limits of the harbour and by the Act of 1873 were vested in the then existing trustees from and after the eleventh day of November one thousand eight hundred and seventy-three and became part of their undertaking :

And whereas the then existing trustees were empowered by the Act of 1873 to borrow for the purposes of the Tay ferries

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A.D. 1911. the sum of fifty thousand pounds on the security of the rates by that Act authorised to be levied and the rates and revenues of the harbour:

And whereas the existing trustees have from time to time borrowed part of the money authorised to be borrowed by the Act of 1873 and have repaid by means of the sinking fund a large amount thereof and there is now owing by them in connection with the Tay ferries the sum of fifteen thousand pounds fifteen shillings and fivepence:

And whereas the unexhausted borrowing powers under the Act of 1873 amount to fifteen thousand four hundred and sixty-five pounds and fivepence and it is expedient that the Trustees should be authorised to borrow for the purposes of the Tay ferries the said sum under this Act:

And whereas it is expedient that the rates and charges presently levied under the Tay Ferries Acts should be revised and that new and additional rates should be imposed for the purposes of the Tay ferries as in this Act provided:

And whereas many of the provisions of the Harbour Acts and the Tay Ferries Acts have been superseded by subsequent legislation and ought to be repealed and it would be of public advantage if the provisions of the said Acts so far as it is expedient to retain them were consolidated with certain amendments and additions into one Act:

And whereas it is expedient that the Trustees should be authorised if they think fit to pay retiring allowances to all or any of the officials and servants in the employment of the Trustees and to make contributions to public and charitable institutions:

And whereas it is expedient that the further powers contained in this Act should be conferred on the Trustees:

And whereas these objects cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

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PART I.

A.D. 1911.

INCORPORATION OF GENERAL ACTS AND GENERAL ENACTMENTS.

1. This Act is divided into Parts as follows:—

Division of
Act into
Parts.

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|------|---|
| Part | I.—Incorporation of general Acts and general enactments. |
| Part | II.—Reconstitution and incorporation and election and meetings of trustees &c. |
| Part | III.—Transfer of harbour and property to the Trustees and continuance of existing rights. |
| Part | IV.—Accounts and audit thereof. |
| Part | V.—Warehouses and dock warrants. |
| Part | VI.—Bonded warehouses. |
| Part | VII.—Surveys and weighing and measurement of cargoes. |
| Part | VIII.—Limits of harbour maintenance of harbour works &c. |
| Part | IX.—Lighting and buoying of the Tay. |
| Part | X.—Telegraphs and telegraphic communication. |
| Part | XI.—Pilots and pilot vessels. |
| Part | XII.—Discharge of cargoes and regulation of harbour and docks. |
| Part | XIII.—Harbour rails. |
| Part | XIV.—Steam tugs and lifeboats. |
| Part | XV.—Harbour rates &c. |
| Part | XVI.—Borrowing powers. |
| Part | XVII.—Tay ferries. |
| Part | XVIII.—Byelaws and crimes and offences. |
| Part | XIX.—Miscellaneous. |

2. This Act may be cited as the Dundee Harbour and Tay Ferries Consolidation Act 1911 and shall commence and have effect from and after the date of the passing of this Act which date is hereinafter referred to as "the commencement of this Act."

Short title
and com-
mencement
of Act.

3. From and after the commencement of this Act the Acts specified in Schedule A to this Act annexed so far as such Acts are unrepealed at the commencement of this Act shall be and the same are hereby repealed to the extent mentioned in the third column of that schedule.

Repeal of
Acts.

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Incorporation of provisions of Lands Clauses Acts.

Incorporation of provisions of Harbours Clauses Act.

4. The Lands Clauses Acts except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement (so far as the same are applicable to the purposes and are not inconsistent with the provisions of this Act) are incorporated with and form part of this Act.

5. The Harbours Docks and Piers Clauses Act 1847 with the exception of the sections with respect to lifeboats and with respect to keeping a tide and weather gauge unless the Board of Trade shall otherwise require and also with the exception of sections 25 26 and 30 is (except where expressly varied by this Act) incorporated with and forms part of this Act and in construing the said incorporated Act the expression "the harbour dock or pier" shall mean the harbour of Dundee as in this Act defined and the expression "the undertakers" shall mean the Trustees and the expression "the special Act" shall mean this Act and the following expressions shall have the following respective meanings (that is to say) :—

The expressions "packet boat" and "Post Office packet" mean respectively a vessel employed by or under the Post Office or the Admiralty for the conveyance under contract of postal packets as defined by the Post Office Act 1908 and the expression "Post Office bag of letters" means a mail bag as defined by the same Act Provided that nothing in the Harbours Docks and Piers Clauses Act 1847 or in this Act shall extend to exempt from rates or duties any such vessel as aforesaid if she also conveys passengers or goods for hire.

Incorporation of provisions of Railways Clauses Act.

6. The clauses of the Railways Clauses Consolidation (Scotland) Act 1845 are (so far as the same are applicable to the purposes and are not inconsistent with or varied by the provisions of this Act) incorporated with and form part of this Act.

Incorporation of provisions of Commissioners Clauses Act.

7. The clauses of the Commissioners Clauses Act 1847 with respect to the contracts to be entered into and the deeds to be executed by the commissioners and with respect to the liabilities of the commissioners and to legal proceedings by or against the commissioners and with respect to the appointment and accountability of the officers of the commissioners and with respect to the mortgages to be executed by the commissioners and with respect to giving notices and orders and with respect to the proof of debts in bankruptcy or insolvency are (except where expressly varied by this Act) incorporated with and form part

of this Act and in construing the said clauses as incorporated with this Act the expression "the commissioners" shall mean the Trustees the expression "the special Act" shall mean this Act and the expression "mortgage or assignation in security" shall mean and include any bond or other security or voucher of debt granted or to be granted by the Trustees. A.D. 1911.

8. In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings and the following words and expressions have the meanings hereby assigned to them :— Interpreta-
tion.

"The existing trustees" means the trustees of the harbour of Dundee appointed and acting under the Harbour Acts and the Tay Ferries Acts :

"The Trustees" means the Trustees of the harbour of Dundee acting for the time being in the execution of this Act :

"The clerk" and "the treasurer" and "the harbour-master" and "the dock-master" mean respectively the clerk and the treasurer and the harbour-master and the dock-master for the time being of the existing trustees or of the Trustees :

"The harbour" means and includes the port and harbour of Dundee within the limits set forth in the section of this Act the marginal note of which is "Limits of harbour" together with all tidal harbours docks locks works yards lands houses streets roads ways jetties wharves piers quays sheds slipways harbour rails and premises whatsoever belonging to the existing trustees and the whole harbour undertaking of the existing trustees and by this Act transferred to the Trustees :

"The Tay ferries" means and includes the whole undertaking and lands and premises belonging to and connected with the ferries on and across the river and firth of Tay vested in the existing trustees and by this Act transferred to the Trustees :

"The ferry harbours" means and includes the ferry harbour of Dundee the ferry harbour of Newport and the ferry harbour of Woodhaven belonging to and connected with the ferries on and across the river and firth of

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Tay vested in the existing trustees and by this Act transferred to the Trustees :

“Harbour rails” means all railways rails and sidings at or connected with the harbour and which for the time being belong to the Trustees :

“The burgh” means the city and royal burgh of Dundee :

“Constable” or “constables” means and includes the chief officer of the police force of the burgh and the other members of such force appointed by and subject to the orders of such chief officer :

“The corporation” means the lord provost magistrates and councillors of the burgh :

“The lord provost” means the lord provost of the burgh :

“The dean of guild” means the dean of guild of the burgh :

“The county council” means the county council of the county of Forfar :

“The Act of 1873” means the Dundee Harbour and Tay Ferries Act 1873 :

“The Act of 1875” means the Dundee Harbour Consolidation Act 1875 :

“The Act of 1889” means the Dundee Harbour and Tay Ferries Act 1889 :

“The Act of 1892” means the Dundee Harbour (Amendment) Act 1892 :

“The Act of 1896” means the Dundee Harbour (Additional Powers) Act 1896 :

“The Act of 1900” means the Dundee Harbour (Amendment) Act 1900 :

“The Harbour Acts” means and includes the Act of 1875 the Act of 1889 so far as that Act relates to the harbour the Act of 1892 the Act of 1896 and the Act of 1900 :

“The Tay Ferries Acts” means the Act of 1873 and the Act of 1889 so far as the said last-mentioned Act relates to the Tay ferries :

“Shipowner” or “shipowners” means and includes ship-owners qualified and registered in accordance with the provisions of this Act :

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“Harbour ratepayer” or “harbour ratepayers” means and includes the ratepayers of the harbour qualified and registered in accordance with the provisions of this Act: A.D. 1911.

“The municipal electors” means and includes all persons entitled for the time being to vote in the election of town councillors of the burgh:

The word “sheriff” means and includes the sheriff of the county of Forfar or any of his substitutes at Dundee:

The words “magistrates” and “magistrate” mean the magistrates having police jurisdiction within the burgh or any one of them and include the lord provost and bailies and judges of police of the burgh or any one of them sitting and acting as police magistrates of the burgh and the word “magistrates” also means any two or more police magistrates bailies or judges of police sitting or acting as aforesaid:

“The appointed day” means the twenty-first day of November one thousand nine hundred and eleven.

PART II.

RECONSTITUTION AND INCORPORATION AND ELECTION AND
MEETINGS OF TRUSTEES &c.

9. On and after the appointed day the power and duty of carrying into effect the provisions of this Act shall be vested in and be performed by the Trustees appointed under this Act who shall be substituted for the existing trustees and the Trustees to be elected under this Act shall be nominated and elected in the manner provided by this Act and the Trustees and their successors in office shall be and are hereby constituted a body corporate under the name of “The Trustees of the harbour of Dundee” with perpetual succession and a common seal and shall have power to sue and be sued and to acquire hold use and dispose of lands and other property for the purposes of this Act and shall have all other privileges of a body corporate. Alteration
of constitu-
tion of
existing
trustees.

10. From and after the appointed day the number of trustees shall be thirty-three of whom one shall be nominated by the Admiralty and the remaining thirty-two shall be elected as follows:— Trustees to
be elected.

Eight by the corporation;

Two by the Guildry Incorporation of Dundee the Nine Incorporated Trades of Dundee and the Three United Trades of Dundee;

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- Four by the county council;
- Six by the chamber of commerce of Dundee;
- Four by the shipowners;
- Six by the harbour ratepayers; and
- Two by the municipal electors.

Existing
trustees to
act in first
instance.

11. From and after the commencement of this Act and until the appointed day the power and duty of carrying into effect the provisions of this Act shall be vested in and be performed by the existing trustees in office immediately previous to the commencement of this Act who for such period shall be the Trustees with all the property duties powers rights and privileges vested in and conferred on the Trustees by this Act.

Trustee
nominated
by Admi-
ralty.

12. The person to be nominated by the Admiralty shall remain in office as trustee during such time as may be specified in his letter of nomination or until his nomination has been recalled or another person has been nominated a trustee in his place by the Admiralty. Intimation of any nomination or recall shall be given by the Admiralty to the clerk. Any vacancy in the office of the nominated trustee shall not be filled up otherwise than by the Admiralty.

Election of
trustees by
corporation.

13. The eight persons to be elected trustees by the corporation shall be members of the corporation and shall be elected upon the day appointed for the election of magistrates by the Town Councils (Scotland) Act 1900 or other the Acts of Parliament for the time subsisting and in force for such election in the month of November one thousand nine hundred and eleven and in the month of November in every third year thereafter and the trustees so elected shall come into office on the third Tuesday of November one thousand nine hundred and eleven and shall remain in office until the third Tuesday of November one thousand nine hundred and fourteen when the trustees elected in their room shall come into office and so on in every third year thereafter.

Election of
trustees by
Guildry
Nine Trades
and Three
United
Trades.

14. The two persons to be elected trustees by the Guildry Incorporation of Dundee the Nine Incorporated Trades of Dundee and the Three United Trades of Dundee shall be members of one or other of the said bodies of not less than six months standing and shall be elected by the members of the said bodies of not less than six months standing in the said bodies respectively at a joint general meeting of the said bodies called for the purpose

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by the dean of guild on not less than seven days previous advertisement in at least one newspaper published in Dundee and held between the first and tenth days of November one thousand nine hundred and eleven inclusive and between the first and tenth days of November inclusive in every third year thereafter and the election of such trustees shall proceed at the said joint general meeting in the same manner as is usually observed by the Guildry Incorporation in cases of election or appointment of persons to represent them in any separate trust or institution but no person shall be entitled to give more than one vote for each trustee to be elected and the trustees so first elected by the said Guildry Incorporation Nine Incorporated Trades and Three United Trades shall come into office on the third Tuesday of November one thousand nine hundred and eleven and shall remain in office until the third Tuesday of November one thousand nine hundred and fourteen when the trustees elected in their room shall come into office and so on in every third year thereafter and the clerk to the said joint general meeting shall within two days after every election of trustees by the said bodies make a return in writing to the clerk of the names of the trustees so elected. A.D. 1911.

15. By and at the statutory general meeting of the county council to be held in the month of October in the year one thousand nine hundred and eleven or at any adjournment thereof four persons shall be elected in the manner usually observed by the county council in all cases of the election of persons to represent them in any separate trust or institution to be trustees under this Act who shall come into office on the third Tuesday of November in the year one thousand nine hundred and eleven and shall remain in office for three years when they shall go out of office on the third Tuesday in November one thousand nine hundred and fourteen and in like manner by and at the statutory general meeting of the county council to be held in the month of October in the year one thousand nine hundred and fourteen or at any adjournment thereof and in the month of October in every third year thereafter or at any adjournment thereof four persons shall be elected to be trustees under this Act to supply the place of the trustees who go out of office on the said third Tuesday of November one thousand nine hundred and fourteen and so on in every third year thereafter Provided that no person shall be entitled to vote at such election by the county council or be qualified to be elected by the county council as

Election of
trustees by
county
council.

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A.D. 1911. a trustee under this Act unless he be a member of the county council:

Provided further that if any person elected as a trustee by the county council shall cease to be a member of the county council during the period of three years for which he was elected a trustee such person shall thereupon become disqualified from continuing to act as a trustee and his office as trustee shall become vacant and such vacancy shall be filled up in manner provided by the section of this Act the marginal note of which is "Provision for supplying vacancies" but no person elected as a trustee by the county council shall be held to be disqualified by reason merely of the expiry of his term of office as a county councillor provided he be re-elected as a member of the county council at the election immediately ensuing.

Returns of
names of
trustees to
be made to
clerk.

16. The town clerk of the burgh and the clerk to the county council respectively shall be and are hereby required within two days next ensuing the days on which election shall take place as before provided to make a return in writing to the clerk of the names of the persons elected by the corporation and the county council respectively to be trustees under this Act.

Election of
trustees by
chamber of
commerce.

17. The six persons to be elected trustees by the Dundee chamber of commerce shall be members of the said chamber of commerce of not less than twelve months standing and shall be elected by the members of the said chamber of commerce of not less than six months standing between the first and tenth days of November one thousand nine hundred and eleven inclusive and between the first and tenth days of November inclusive in every third year hereafter at a general meeting of the said chamber of commerce to be called for the purpose by the secretary of the said chamber on not less than seven days previous advertisement in at least one newspaper published in Dundee and the election of such trustees shall proceed at each such meeting in the same manner as when the president of the said chamber of commerce is elected and the trustees so first elected shall come into office on the third Tuesday of November one thousand nine hundred and eleven and shall remain in office until the third Tuesday of November one thousand nine hundred and fourteen when the trustees elected in their room shall come into office and so on in every third year thereafter and the said secretary shall within two days after every election of trustees by the said chamber of

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commerce make a return in writing to the clerk of the names of the trustees so elected. A.D. 1911.

18. The four persons to be elected trustees by the shipowners shall be shipowners residing or having their place of business within the burgh qualified and registered at the custom house of Dundee as hereinafter provided and shall be elected by shipowners qualified and registered as hereinafter provided and the election of such trustees shall take place between the first and tenth days of November one thousand nine hundred and eleven inclusive and between the first and tenth days of November inclusive in every third year thereafter and the trustees so first elected shall come into office on the third Tuesday of November one thousand nine hundred and eleven and shall remain in office until the third Tuesday of November one thousand nine hundred and fourteen when the trustees elected in their room shall come into office and so on in every third year thereafter.

Election of trustees by shipowners.

19. Any person who is a British subject residing or having his place of business within the United Kingdom whose name shall on the thirty-first day of August one thousand nine hundred and eleven with respect to the first election of trustees by the shipowners and on the thirty-first day of August in every third year thereafter with respect to subsequent elections of trustees by the shipowners appear in the books of the custom house of Dundee as owner or part owner to the extent of at least one hundred tons gross of or in a vessel or vessels registered at the port of Dundee and any person who is a British subject residing or having his place of business within the United Kingdom and is the owner or part owner of or in a vessel or vessels registered in the United Kingdom and who shall during the year ending on the thirty-first day of August one thousand nine hundred and eleven with respect to the first election of trustees under this Act by the shipowners and during the year ending on the thirty-first day of August in every third year thereafter with respect to subsequent elections of trustees by the shipowners have paid as principal either directly or indirectly twenty-five pounds or upwards of rates exigible under the Harbour Acts or under Schedules B and H or either of them to this Act annexed in respect of such vessel or vessels shall be qualified to be an elector and to vote at the election of trustees by the shipowners and shall be entitled to be registered as hereinafter provided Where two or more persons jointly or any

Qualification of shipowners.

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A.D. 1911. company firm or corporation residing or having a place of business within the United Kingdom appear in the books of the custom house aforesaid as owners to the extent of at least one hundred tons gross of or in any vessel or vessels registered at the port of Dundee such persons company firm or corporation may intimate in writing to the Trustees on or before the thirtieth day of September next preceding the election the name or names of any one or more (not exceeding five in number) of such joint owners partners or members or of the managing owners managers or secretaries of any such firm company or corporation whom they desire to qualify as electors in respect of such ownership of shipping and each such joint owner partner member managing owner manager or secretary so named shall be qualified to be an elector and to vote at the elections of trustees by the shipowners and shall be entitled to be registered as hereinafter provided Provided that the amount of tonnage held by such joint owners company firm or corporation be sufficient to afford the qualification of one hundred tons gross of shipping to each of the joint owners partners members managing owners managers or secretaries so named.

Persons
appointed by
incorporated
company &c.
qualified as
shipowners.

20. Where rates on vessels as hereinbefore provided shall be paid by any two or more persons jointly or any company firm or corporation such persons company firm or corporation may intimate in writing to the Trustees on or before the thirtieth day of September next preceding the election the name or names of any one or more (not exceeding five in number) of such persons or of the partners or members of such company firm or corporation on whose behalf such payment has been made and such payment shall be deemed to have been made by the persons partners or members so named and each such person partner or member shall be qualified to be an elector in the same manner as if such payment had been made by him as an individual provided the amount of rates paid by such persons company firm or corporation is sufficient to afford the qualification of twenty-five pounds to each of the persons partners or members so named.

Election of
trustees by
harbour rate-
payers.

21. The six persons to be elected trustees by the harbour ratepayers shall be ratepayers of the harbour qualified and registered as hereinafter provided and shall be elected by the harbour ratepayers qualified and registered as hereinafter provided and the election of such trustees shall take place between the first and tenth days of November one thousand nine hundred

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and eleven inclusive and between the first and tenth days of November inclusive in every third year thereafter and the trustees so first elected shall come into office on the third Tuesday of November one thousand nine hundred and eleven and shall remain in office until the third Tuesday of November one thousand nine hundred and fourteen when the trustees elected in their room shall come into office and so on in every third year thereafter. A.D. 1911.

22. Every person residing or having his place of business within the burgh who shall during the year ending on the thirty-first day of August one thousand nine hundred and eleven with respect to the first election of trustees under this Act by the harbour ratepayers and during the year ending on the thirty-first day of August in every third year thereafter with respect to subsequent elections of trustees by the harbour ratepayers have paid as principal either directly or indirectly or as agent for any person not entitled as a harbour ratepayer to be registered as an elector ten pounds or upwards of rates exigible under the Harbour Acts or under Schedule C to this Act annexed in respect of goods shall be qualified to be an elector and to vote at the elections of trustees by the harbour ratepayers and shall be entitled to be registered as hereinafter provided. Qualification of harbour ratepayers.

23. Where the rates as provided in the immediately preceding section shall be paid by any company consisting of two or more partners having a place of business within the burgh such company may on or before the thirtieth day of September next preceding the election intimate in writing to the Trustees the name or names of any one or more of the partners (not exceeding five in number) on whose behalf such payment has been made and such payment shall be deemed to have been made by the partner or partners so named and each such partner shall be qualified to be an elector and a trustee in the same manner as if such payment had been made by him as an individual provided the amount of rates paid by such company is sufficient to afford the qualification of ten pounds to the partner or each of the partners so named. Partners of a company qualified as harbour ratepayers.

24. Where such last-mentioned rates shall be paid by an incorporated company having a place of business within the burgh such company may through their secretary or other officer on or before the thirtieth day of September next preceding Persons appointed by incorporated company qualified as

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A.D. 1911. the election intimate in writing to the Trustees the name or
harbour names of the person or persons (not exceeding five in number
ratepayers. and all of whom shall be members of such incorporated company)
on whose behalf such payment has been made and such payment
shall be deemed to have been made by the person or persons so
named and each such person shall be qualified to be an elector
and a trustee in the same manner as if such payment had been
made by him as an individual provided the amount of rates paid
by such company is sufficient to afford the qualification of ten
pounds to the person or each of the persons so named.

Registers of
electors to be
made up and
published. **25.** On or before the fifth day of October one thousand
nine hundred and eleven the existing trustees and on or before
the fifth day of October in every third year thereafter the
Trustees shall cause to be made up from the books of the custom
house of Dundee and from the books kept by the existing
trustees or the Trustees a register of the shipowners qualified
under the provisions of this Act to elect and to be elected
trustees for the shipowners and shall also cause to be made up
from the books kept by the existing trustees or the Trustees a
register of the harbour ratepayers qualified under the provisions
of this Act to elect and to be elected trustees for the harbour
ratepayers and in such register of shipowners the persons
qualified to be elected trustees for the shipowners shall be denoted
by an asterisk prefixed to their names and the treasurer shall
on or before the tenth day of October one thousand nine hundred
and eleven and on or before the tenth day of October in every
third year thereafter certify the said registers and insert them
in at least one newspaper published in Dundee and affix them
in some place accessible to the public in the office of the
existing trustees or the Trustees and any person considering
himself qualified to be an elector whose name is not inserted in
the said registers or either of them in any third year may on
or before the twentieth day of October one thousand nine hundred
and eleven and on or before the twentieth day of October in
every third year thereafter apply to the sheriff at Dundee who
shall thereupon if he see fit cause the name of such shipowner
or harbour ratepayer as the case may be to be added to the
register in which his name should have been inserted and the
said registers with any additions so made shall be the registers
of the shipowners and harbour ratepayers respectively for the
period to which they are applicable.

26. The following provisions shall have effect with respect to the election of trustees by the shipowners and harbour ratepayers respectively:—

A.D. 1911.
 Provisions
 for electing
 trustees by
 shipowners
 and harbour
 ratepayers.

- (1) The clerk whom failing such other person as the Trustees may appoint shall be the returning officer and in case of any returning officer dying or from any cause becoming unable to act before the completion of any election the Trustees shall appoint another person in his place and all expenses incurred by the Trustees and the returning officer and the persons appointed or employed by them at and in connection with such elections shall be defrayed by the Trustees out of the revenues of the harbour:
- (2) On every occasion of the nomination of trustees by the shipowners and harbour ratepayers respectively the returning officer shall convene a meeting of the electors respectively for the purpose of such nomination and shall give notice of such meeting and of the time and place at which it is to be held by advertisement in at least one newspaper published in Dundee at least seven days before such meeting:
- (3) Such meeting for the purpose of the nomination of trustees by the shipowners and harbour ratepayers respectively shall be convened for the last Tuesday of October one thousand nine hundred and eleven and for the last Tuesday of October in every third year thereafter:
- (4) The returning officer shall preside at and regulate the proceedings of such meetings:
- (5) At any such meeting any person qualified and registered as hereinbefore provided may if he consent thereto in writing be nominated as a trustee by any elector and be seconded by any other elector:
- (6) Any person duly nominated as a trustee at any such meeting may by intimation in writing to the returning officer not later than four o'clock in the afternoon of the Thursday immediately following such meeting withdraw his name as a candidate for the office of trustee and the returning officer shall cause his name to be deleted from the list of candidates but no such intimation of withdrawal shall be accepted by the

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returning officer after four o'clock in the afternoon of the said day:

- (7) If more candidates shall be proposed than the number to be elected a poll shall be taken in manner hereinafter provided but if only the number or less than the number of candidates to be elected be proposed a declaration by the returning officer that the candidates are elected trustees shall be sufficient evidence of their election.

Provisions
as to taking
poll.

27. The following provisions shall have effect with respect to taking the poll at the election of trustees by shipowners and harbour ratepayers respectively:—

- (1) In the event of a poll the election shall take place on the first Tuesday of November of the year in which trustees are to be elected by the shipowners and harbour ratepayers respectively under the provisions of this Act:
- (2) The returning officer shall give at least two days' notice by advertisement in a newspaper published in Dundee that an election by ballot will take place on the date specified in such notice between the hours of ten o'clock in the forenoon and four o'clock in the afternoon at a place or places within the burgh to be named in such notice:
- (3) The vote at every contested election shall be taken by ballot in like manner as a poll at a contested municipal election is directed to be taken by the Ballot Act 1872 and any future amendments thereof and Part II. of the said Act so far as it is applicable to and not inconsistent with the provisions of this Act is hereby incorporated herewith:
- (4) Each elector shall only be entitled to give one vote for each trustee to be elected:
- (5) At the close of the poll the ballot box or boxes shall be opened and the ballot papers and votes counted and the result of the poll declared all in the manner provided for in the Ballot Act 1872:
- (6) The four persons to be elected trustees by the shipowners and the six persons to be elected trustees by the harbour ratepayers who receive the largest number

of votes shall be declared by the returning officer A.D. 1911.
to be duly elected trustees under this Act:

- (7) Where an equality of votes is found to exist between any candidates at an election and the addition of a vote would entitle any such candidates to be declared elected the returning officer may give such additional vote but shall not in any other case be entitled to vote at an election for which he is returning officer:
- (8) Any shipowner duly qualified as hereinbefore provided not residing or having his place of business within ten miles of the custom house of Dundee may record his vote in any contested election by means of a voting paper issued by the Trustees in the form or as near as may be in the form of Schedule M to this Act annexed signed by him and sent to the returning officer to be received by him up to the close of the poll at the said contested election and in the event of the returning officer receiving the said voting paper in accordance with the provisions hereinbefore set forth he shall deposit the same unopened in the ballot box and on the ballot box being opened at the close of the poll he shall open such voting paper and shall record the vote for the candidate or candidates named in the said voting paper:
- (9) No provision of the Ballot Act 1872 which imposes any duty or obligation on the Postmaster-General shall be deemed to apply to the election of trustees under this Act.

28. The two persons to be elected trustees by the municipal electors of the burgh shall be municipal electors and shall be elected by the municipal electors in the manner prescribed by the Acts of Parliament for the time being in force for the election of town councillors for the burgh in the month of November one thousand nine hundred and eleven and in the month of November in every third year thereafter and it shall be the duty of the returning officer and all other persons charged with the election of such town councillors and they are hereby required to take the votes for and return the election of such trustees in the year one thousand nine hundred and eleven and in every third year thereafter along with and at the same time as they take the votes for and return the election of

Election of
trustees by
municipal
electors.

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A.D. 1911. town councillors for the burgh and the returning officer and such other persons shall so long as the burgh is divided into wards take and enter the votes of all voters in each ward at the polling booth or booths for such ward and the trustees elected in the year one thousand nine hundred and eleven and in every third year thereafter shall be those having the greatest number of votes at the election and the trustees so first elected shall come into office on the third Tuesday of November one thousand nine hundred and eleven and shall remain in office until the third Tuesday of November one thousand nine hundred and fourteen when the trustees elected in their room shall come into office and so on in every third year thereafter and the said returning officer shall within two days after each election of trustees by the municipal electors make a return in writing to the clerk of the names of the trustees so elected Provided always that no person who is a member of the corporation or is at the same time elected as a town councillor for the burgh shall be capable of being elected as a trustee by the municipal electors.

Retiring
trustees
eligible for
re-election.

29. Every retiring trustee shall if duly qualified be eligible for re-election.

Penalty on
personation
of elector.

30. Any person who shall wilfully personate any elector or tamper with any ballot or voting paper at any election of trustees in pursuance of this Act or falsely assume to act in the name or on behalf of any elector shall for every such offence be liable to a penalty not exceeding twenty pounds.

Trustees not
to hold office
nor be con-
cerned in
contracts.

31. If at any time subsequently to the appointment or election of any trustee he shall accept or continue to hold any office or place of trust or profit under the existing trustees or the Trustees or be concerned as principal or surety in any contract entered into with the existing trustees or the Trustees (other than a contract of lease or a feu contract or disposition of heritable property belonging to the harbour) or participate in any manner in any work to be done under the authority of this Act such person shall cease to be a trustee and his office shall become vacant on an entry to the effect that such vacancy has occurred being made by the Trustees in their minute book Provided always that no person being a shareholder or member of any company established by or under Act of Parliament or charter or of any company constituted by voluntary

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contract and consisting of a greater number of partners than five shall be prevented from acting as a trustee under this Act by reason of any contract entered into between such company and the existing trustees or the Trustees. A.D. 1911.

32. If any person shall wilfully act as a trustee being incapacitated to act or not being duly qualified or after having become disqualified he shall for every such offence forfeit any sum not exceeding twenty pounds to be paid to the treasurer and applied to and for the purposes of this Act and such penalty may be recovered with full costs of suit in a summary complaint to be heard and determined by the sheriff in the same manner as in proceedings before him for the recovery of small debts at the instance of any person qualified to vote in the election of any trustee under this Act who shall sue for the same but nevertheless all acts and proceedings of any person acting as a trustee being incapacitated not being duly qualified or being disqualified done previous to the award of such penalty shall be as valid as if such person had been duly qualified. Penalty on
unqualified
persons
acting as
trustees.

33.—(1) In case by reason of any elected trustee dying or refusing to act or resigning or being or becoming disqualified or incapacitated to act or becoming notour bankrupt the office of such trustee shall become vacant every such vacancy and any vacancy arising from any other cause other than that provided for in subsection (2) of this section shall be filled up in manner following (that is to say) Where the vacating trustee shall have been one of the four trustees elected by the ship-owners or one of the six trustees elected by the harbour ratepayers the Trustees within one month after any such vacancy has occurred shall appoint a person qualified and registered in the same manner to be a trustee in his stead and when the vacating trustee shall have been one of the two trustees elected by the municipal electors the corporation shall within one month elect a person duly qualified to be a trustee in his stead and in every other case the electing body by which the vacating trustee shall have been elected shall at a special meeting of the electing body to be held within one month after any such vacancy has occurred and to be called by the town clerk of the burgh the dean of guild the clerk to the county council or the secretary of the chamber of commerce as the case may be elect another person duly qualified to be a trustee in his stead and in every case Provision
for supplying
vacancies.

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A.D. 1911. the trustee so appointed shall continue in office for the same period as the trustee whose office has become vacant.

(2) In case there shall be a vacancy in the number of the trustees by reason of any of the respective persons bodies or corporations hereinbefore mentioned refusing or neglecting to elect trustees for such persons bodies or corporations or any of them at the time fixed for the election the trustees on the expiry of one month after any such vacancy has occurred may at any meeting appoint a person qualified in the same manner and for the same period as the trustee whose office has not been filled up to be a trustee in his room and any trustee so appointed to supply any vacancy shall continue in office for the same period as the trustee whose office has not been filled up.

(3) The provisions of this section shall not apply to the trustee to be nominated by the Admiralty.

Acts of trustees not invalidated by vacancy or non-appointment or non-election.

34. No act or proceeding of the Trustees or of any committee of the Trustees shall be invalidated or be illegal in consequence of there being any vacancy in the number of trustees at the time of such act or proceeding or of the non-appointment or non-election of any trustee by any persons bodies or corporations authorised by this Act to appoint or elect a trustee or trustees.

Informalities in appointment or election of trustees not to invalidate proceedings.

35. All acts and proceedings of the Trustees or of any committee of the Trustees or of any person acting as a trustee shall notwithstanding it to be afterwards discovered that there was some defect in the appointment or election of any such trustees or persons acting as trustees or that they or any of them were or had become disqualified be as valid as if every such person had been duly appointed or elected and was qualified to be a trustee.

Trustees not incapable of acting as justices or magistrates.

36. No trustee shall be incapable of acting as a justice of the peace or as a magistrate in any matter or thing relating to the execution of this Act by reason of his being such trustee.

Chairman of trust and of meetings.

37. At the first general meeting of the Trustees under this Act and at the annual general meeting in every year thereafter the Trustees shall elect from among their number a chairman and a deputy chairman who shall hold the said offices respectively for the year next ensuing and at all meetings of

the Trustees the chairman or in his absence the deputy chairman shall preside and in the event of the absence of the chairman and the deputy chairman a trustee shall be chosen by the meeting as chairman and in case of an equality of votes at any meeting of the Trustees the presiding chairman shall in addition to his own vote have a second or casting vote. A.D. 1911.

38. The Trustees shall hold their first general meeting under this Act on the day following the third Tuesday of November one thousand nine hundred and eleven and shall thereafter hold a meeting once in every month or more often as the Trustees shall think fit on such day and at such hour as they shall from time to time by resolution appoint and the Trustees shall hold an annual general meeting upon the day following the third Tuesday of November in each year for the purpose of putting this Act into execution. Provided that in the event of any general meeting of the Trustees falling to be held on a public or local holiday the Trustees may by resolution alter the date of such meeting. First and other meetings of Trustees.

39. At all meetings of the Trustees seven shall be a quorum and no business shall be transacted at any meeting unless the said quorum shall be present at such meeting and if at any such meeting there shall not be the said quorum present within fifteen minutes after the time appointed for such meeting the Trustees or Trustee present or the clerk in the absence of any trustee shall adjourn such meeting to another time and notice shall be given of the time place and purpose of such adjourned meeting in manner after mentioned and so from time to time until such adjourned meeting shall be duly constituted by the said quorum being present. Quorum of Trustees and adjournment on failure of meeting.

40. Every meeting of the Trustees may be adjourned from time to time and place to place as to the Trustees present at such meeting may seem proper. Adjourned meetings.

41. The Trustees may hold special meetings and the chairman the deputy chairman or any seven of the Trustees may require the clerk to call such meetings but no special meeting shall be held unless one day's notice thereof shall be given. Special meetings.

42. All meetings of the Trustees shall be called by cards or circulars issued by the clerk and delivered to each of the Trustees or left at his usual place of abode or place of business How meetings to be called.

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A.D. 1911. — or posted at Dundee addressed to his usual place of abode or place of business one day at least before such meeting.

Orders and resolutions not to be altered without notice.

43. No order made and no resolution adopted by the Trustees at any of their meetings shall be altered or revoked unless at some meeting called for that special purpose or unless notice of the intention to propose such alteration or revocation be given by a trustee at some previous meeting and be intimated in the card or circular calling the meeting at which it is intended to propose such alteration or revocation.

Power to appoint committees.

44. The Trustees may at any meeting from time to time appoint committees of any of their number for carrying into effect any of the provisions of this Act and may delegate such powers to any such committee as to the Trustees may seem proper and the Trustees shall fix the quorum of any such committee and name the convener and may continue alter or discontinue such committee.

Meetings of committees.

45. Every committee so appointed may meet from time to time and may adjourn from place to place as they may think proper for carrying into effect the purposes of their appointment and at all meetings of such committees the convener and in his absence one of the members present to be appointed by the meeting shall preside and all questions shall be determined by a majority of the votes of the members present and in case of equality the convener or in his absence the person appointed to preside shall in addition to his own vote have a second or casting vote.

Proceedings to be recorded and when signed to be received as evidence.

46. The Trustees shall cause records to be kept by the clerk under their superintendence of all the proceedings of the Trustees and of every committee appointed by them with the names of the Trustees who shall attend each meeting and the record of every such proceeding shall be signed by the chairman of the meeting at which the proceeding took place or the chairman of the meeting at which such record was confirmed and the record or minute of such meeting so signed or an extract thereof certified by the clerk shall be received as evidence in all courts and before all judges justices and others without proof of such meeting having been duly convened or held or of the persons attending such meeting having been or being trustees or members of committees respectively or of the signature of the chairman or of the fact of his having been

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chairman all of which last-mentioned matters shall be presumed until the contrary is proved and such records shall at all reasonable times be open to the inspection of any of the Trustees and of any creditor on the security of the rates or property of the Trustees or any holder of bonds or mortgages. A.D. 1911.

47. Whereas the corporation will in the year one thousand nine hundred and eleven and in every third year thereafter incur expense in the election of trustees by the municipal electors as in this Act provided the Trustees shall make payment to the corporation at the term of Martinmas one thousand nine hundred and eleven and at Martinmas in every third year thereafter of the sum of forty pounds in full of all such expense incurred by the corporation in the election of trustees by the municipal electors and that whether any or all of the elections of trustees by the municipal electors be opposed or unopposed. As to expenses incurred in elections of trustees by municipal electors.

48. The Trustees may appoint a general manager engineer clerk treasurer harbourmaster dockmaster or such of these officers as may be required and such other officers and servants as they shall judge necessary and may prescribe their respective duties and may remove such officers and servants or any of them from time to time and may appoint others in their place and may pay such reasonable fees salaries or remuneration to such officers and servants as the Trustees shall think proper. Appointment of officers.

PART III.

TRANSFER OF HARBOUR AND PROPERTY TO THE TRUSTEES AND CONTINUANCE OF EXISTING RIGHTS.

49. On and after the appointed day the whole harbour and harbour undertaking of the existing trustees and their rights in the harbour and all such parts of the alveus or shore of the same as are vested in the existing trustees and all the docks piers jetties quays wharves walls lighthouses lightships buoys and beacons lights lands houses buildings embankments rails railways trams sheds warehouses yards cranes roads works and conveniences and matters and things in and connected with the harbour purchased acquired or constructed by the existing trustees or their predecessors or that may be purchased acquired or constructed under the authority or in the execution of this Act and also the whole undertaking estates boats vessels and Harbour and property vested in Trustees.

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A.D. 1911. works vested in the existing trustees shall be and the same are hereby vested in and transferred to the Trustees and all the rights powers and privileges conferred on or vested in the existing trustees by the Harbour Acts or any of them or by any other Act or Order now in force and capable of taking effect shall be and are also hereby vested in the Trustees and may be used exercised and enforced by them in the same manner and to the same extent and effect as the said rights powers and privileges were or might have been used exercised and enforced by the existing trustees if this Act had not been passed.

Grants conveyances &c. to continue in force.

50. The repeal of the Harbour Acts and the Tay Ferries Acts shall not annul or in anywise prejudice or affect any purchase sale conveyance grant lease bond security act matter or thing whatsoever before the commencement of this Act made done executed commenced or instituted under or by virtue or in pursuance of the said Acts or any of them but all such purchases sales conveyances grants leases bonds securities acts matters and things shall so far as in force be as good valid and effectual to all intents and purposes whatsoever as if the said Acts had not been repealed.

Lands may be purchased by agreement.

51. Notwithstanding the repeal of the Harbour Acts and the Tay Ferries Acts the Trustees may in addition to the lands already acquired or authorised to be acquired and held by the existing trustees or authorised to be acquired by any of the Acts incorporated with this Act purchase or feu by agreement and hold any lands or any rights therein for the purposes of the harbour but nothing in this Act shall exonerate the Trustees from any action interdict or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land purchased under the powers of this section.

Authorised works may be constructed maintained and improved.

52. Notwithstanding the repeal of the Harbour Acts and the Tay Ferries Acts the Trustees may construct complete erect carry out and maintain all such docks locks piers basins sea walls bulwarks excavations reclamations and other works of every nature authorised by any of the said Acts as may not at the commencement of this Act have been constructed erected carried out or completed and the Trustees may also from time to time maintain and improve all such docks locks piers basins

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walls and other works as are already constructed and completed or may hereafter be constructed or completed and may from time to time construct all such new or additional sea walls graving docks locks docks or other works as the existing trustees might have done if this Act had not been passed. A.D. 1911.

53. All books registers deeds documents and writings by the Harbour Acts and the Tay Ferries Acts or any of them directed or authorised to be kept or made and which if this Act had not been passed would be receivable in evidence shall be admitted as evidence in all courts of law and equity and elsewhere in the same manner as if this Act had not been passed. Books to be evidence.

54. All money borrowed under the authority of the Harbour Acts and the Tay Ferries Acts or any of them and all other debts and moneys due or payable by the existing trustees at the commencement of this Act shall be payable and paid by the Trustees and all rates tolls rents feuduties ground annuals and other duties and arrears of rates tolls rents feuduties ground annuals and other duties and all other debts and moneys belonging due or payable to the existing trustees at the commencement of this Act may be collected and recovered by the Trustees in the same manner in all respects as they might have been collected or recovered by the existing trustees if this Act had not been passed. Provision for payment of debts &c.

55. The officers appointed by the existing trustees under the Harbour Acts and the Tay Ferries Acts or any of them shall continue to hold their offices during the terms of their respective appointments or until they resign or are removed and shall be subject to the provisions of this Act in the same manner as if they had been appointed under this Act and all bonds or securities granted for the conduct and intromissions of such officers shall be and remain valid and may be enforced by the Trustees to the same extent and effect as such bonds or securities might have been enforced by the existing trustees if this Act had not been passed. Officers to be continued.

56. The byelaws rules and regulations made under the authority of the Harbour Acts and the Tay Ferries Acts or any of them or continued in force by the said Acts or any of them which are in force at the commencement of this Act shall Byelaws to remain in force until altered.

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A.D. 1911. be the byelaws rules and regulations of the Trustees and shall continue in force until altered or recalled by the Trustees.

Actions &c.
not to abate.

57. All actions suits notices and proceedings at law or in equity and all arbitrations to which the existing trustees are parties at the commencement of this Act are hereby specially saved and reserved entire and shall not abate or be prejudiced or affected by anything in this Act contained and may be proceeded in by or against the Trustees without the necessity of intimating such action suit notice proceeding or arbitration to the Trustees or making them formally parties thereto All complaints and prosecutions raised or pending at the commencement of this Act at the instance of the procurator fiscal of the burgh for contraventions of the Harbour Acts or the Tay Ferries Acts or any byelaws made under the authority of or continued in force by the said Acts or any of them shall continue and be followed forth to a conclusion in the same way and with the same jurisdiction remedies penalties and powers as if this Act had not been passed.

Agreements
may be en-
forced by
and against
Trustees.

58. The Trustees may enforce against any person company or corporation and any person company or corporation may enforce against the Trustees to the same extent and effect as might have been enforced by or against the existing trustees if this Act had not been passed—

All Acts of Parliament and provisions of Acts other than those repealed or altered by this Act conferring any right on the existing trustees or on any such person company or corporation or their predecessors respectively:

All notices for taking land or other notices given or preliminary steps of procedure taken by or to the existing trustees or their predecessors or to or with any such person company or corporation or their predecessors:

All claims for compensation or damages or for debts penalties costs or expenses payable or recoverable by to or from the existing trustees or in consequence of any act deed matter or thing done or omitted to be done by any such person company or corporation or their predecessors or by the existing trustees or their predecessors:

All contracts or agreements for the sale or purchase of lands or for the construction of works and other contracts

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or agreements whatsoever entered into or adopted by the existing trustees and any such person company or corporation or their predecessors respectively : A.D. 1911.

All grants conveyances leases discharges or other deeds or writings granted to the existing trustees or their predecessors by any person company or corporation or their predecessors or to any person company or corporation or their predecessors by the existing trustees or their predecessors or to which any of the said parties have acquired right.

PART IV.

ACCOUNTS AND AUDIT THEREOF.

59. The Trustees shall cause their accounts to be balanced in each year to the thirty-first day of May and such accounts shall exhibit and show all the receipts revenues and expenditure of the Trustees for the year preceding and the amount of the debts owing by them as at the said thirty-first day of May so far as known at the time and the said accounts shall be taken into consideration and disposed of by the Trustees at the first meeting of the Trustees in August in every year or at some adjournment thereof. Trustees to balance their accounts annually.

60. The Trustees shall annually apply to the sheriff to appoint and the sheriff shall on such application annually appoint an auditor (being a person well skilled in accounts and not being one of the Trustees or holding office under them) to audit and docquet the accounts of the Trustees and the Trustees shall suitably remunerate the said auditor and in the event of any dispute as to such remuneration the same shall be fixed by the sheriff whose decision shall be final. Auditor to be appointed.

61. It shall be the duty of such auditor to audit and docquet the accounts of the Trustees and for such purposes the Trustees shall give to him access to their accounts and books and the proper vouchers in support of the same and the auditor shall examine the accounts and books and vouchers of the Trustees and report annually not later than the first day of August on the said accounts and books and vouchers of the Trustees who shall consider and dispose of the same at their first meeting after it shall be received or at some adjournment thereof. Accounts to be audited.

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Annual account to be sent to Board of Trade.

62. The Trustees shall within one month after sending to the sheriff clerk a copy of their annual account send a copy of the same to the Board of Trade and the Trustees shall as from the expiration of that month be liable to a penalty not exceeding twenty pounds for every week or part of a week during which they refuse or neglect to comply with this section.

PART V.

WAREHOUSES AND DOCK WARRANTS.

Power to construct warehouses.

63. The Trustees may construct and maintain such warehouses storehouses sheds and other buildings and works as they may deem necessary for the accommodation of goods shipped or unshipped within the harbour and may for the like purpose construct and maintain upon the quays closed or unclosed sheds and may erect or provide such cranes hoists jiggers weighing and other machines weights and measures as they think necessary for loading unloading measuring or weighing such goods.

Power to lease warehouses cranes &c.

64. The Trustees may lease or grant the use or occupation of any warehouses buildings sheds cranes hoists jiggers and weighing or other machines provided by them at such rents and upon such terms and conditions as shall be agreed upon between the Trustees and the persons taking using or occupying the same Provided that no such lease shall be granted for a longer period than five years.

Warehouses may be insured.

65. The Trustees may if they shall think fit but not otherwise insure from loss or damage by fire all or any of the warehouses sheds buildings machinery and other property for the time being vested in or belonging to them.

Trustees may act as warehousemen &c.

66. The Trustees may within the harbour act as warehousemen wharfingers and storekeepers and render such services as are usually rendered by dock companies on payment by the owners of the goods warehoused or deposited or the person in charge of such goods of such rents or charges as shall from time to time be fixed by the Trustees.

Trustees may issue certificates of deposited goods and

67. The Trustees shall from time to time at the request of any person warehousing or depositing goods in any warehouse or vault or on or in any of the quays or yards of the Trustees specially appropriated for the purpose or entitled to any goods

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so warehoused or deposited issue and deliver to him a certificate (in a form approved by the Trustees) of the goods or a warrant (in a form approved by the Trustees) for delivery of the goods so warehoused or deposited or any specified part thereof. A.D. 1911.
warrants for
delivery of
goods.

68. Goods specified in any such certificate shall for all purposes of this Act be deemed the property of the person in that behalf named in the certificate. Effect of
certificate.

69. Every such warrant for delivery shall be transferable by special endorsement and every such endorsement shall be recorded in the books of the Trustees and thereupon shall entitle the person named therein or the last endorsee thereof named in the endorsement to the delivery of the goods specified therein and the following rules shall have effect with reference to the issue of such warrants (namely) :— Effect of
warrant.

- (1) No warrant shall be given unless and until all liens and claims for freight and all other liens or claims to which the goods were liable while on board any vessel and before the warehousing or depositing thereof and of which the Trustees have notice in writing before the date of such warrant are paid and discharged and the goods mentioned in such warrant shall not be delivered up until all harbour rates on the goods and all rents charges and expenses payable to the Trustees with respect to the warehousing or depositing of the goods or for services performed by the Trustees in respect thereof are paid or discharged :
- (2) Before a warrant is issued the certificate (if any such has been issued) shall be delivered up to the Trustees to be cancelled and retained by them :
- (3) If the warrant is for delivery of part only of the goods the Trustees shall issue to the person delivering up the certificate a new certificate if asked for with respect to the goods not specified in the warrant.

70. All certificates delivery warrants transfer certificates and other documents relating to goods in the custody of the Trustees or to the management of the business of the harbour if signed and issued by any officer duly authorised in that behalf shall be effectual in law and binding on the Trustees and all other parties interested without any other signature and without any seal. Warrants &c.
signed by
duly autho-
rised officers
effectual.

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Rates on
warehoused
goods to be
paid within
one year or
otherwise
goods to
be sold for
payment of
rates &c.

71. The importer or importers proprietor or proprietors consignee or consignees of any goods wares or merchandise warehoused stored or yarded within the harbour shall before the expiration of one year to be computed from the day of the first entry thereof pay such rates and charges as shall be then due and payable on such goods wares and merchandise and in case such importer or importers proprietor or proprietors consignee or consignees or his or their agents shall fail or neglect so to do before the expiration of such one year the Trustees or such person as shall be appointed by them may cause all such goods wares or merchandise to be publicly sold first paying the customs duties and excise duties (if any) payable thereon and the produce of such sale shall be applied first in payment of the rates and charges imposed by this Act or of any other sums which may be owing to the Trustees or for which they may be liable or have undertaken liability and the overplus arising from such sale shall be paid to such importer or importers proprietor or proprietors consignee or consignees or his or their agents Provided that the said goods wares and merchandise shall not be sold until the Trustees shall have given one month's previous notice in writing to such importer or importers proprietor or proprietors consignee or consignees and shall have inserted such notice twice at least in a newspaper published in Dundee and have affixed the same in a conspicuous place in the office of the Trustees.

PART VI.

BONDED WAREHOUSES.

Warehouses
to be used as
bonding
warehouses.

72. The Trustees may at their discretion use as a bonding warehouse any of their warehouses or any part thereof which may be duly approved by the Commissioners of His Majesty's Customs and Excise when such are intended for the deposit of goods liable to the duties of customs or excise.

Trustees may
give bond
for duties on
goods ware-
housed.

73. The Trustees may if required give to the Commissioners of His Majesty's Customs and Excise general security by bond under their common seal for payment of duties on or for the due exportation of goods deposited in their warehouses and yards.

Trustees
may give
security for
bonding
warehouses
&c.

74. The Trustees may give such bonds or securities under their common seal as may be required by the laws for the time being in force relating to bonding warehouses and bonding yards.

75. All warehouses belonging to the Trustees in which goods prohibited to be used for home consumption or liable to the duties of customs or excise may be deposited shall if required by the Commissioners of His Majesty's Customs and Excise be secured in such manner as shall be approved by such commissioners.

A.D. 1911:
 Warehouses
 to be
 secured.

PART VII.

SURVEYS AND WEIGHING AND MEASUREMENT OF CARGOES.

76. The Trustees may from time to time appoint one or more person or persons to act as surveyor or surveyors of goods at the harbour and fix and allow such salaries or emoluments to such person or persons as to them may appear proper.

Appointment
 of surveyors
 of goods.

77. Upon the requisition of the master of any vessel or the owner of any goods on board thereof a surveyor or other competent person may be appointed by the Trustees to survey such goods or any of them before the same are landed transhipped or unshipped and to inquire into and ascertain whether any injury or damage done to such goods may have been caused by improper stowage or otherwise and such surveyor or other person shall give a certificate in writing setting forth the cause of such damage so far as the same can be ascertained by him such certificate to be delivered to the master and a duplicate thereof if required to the owner and the Trustees may charge for every such survey and certificate the fees specified in Schedule I. to this Act annexed.

Surveyor
 may inspect
 goods on
 board with
 respect to
 any damage
 which may
 have arisen.

78. In the event of such surveyor being appointed by the Trustees he shall be entitled to access to the vessel containing the goods applicable to which the survey is required and therein to do all the acts necessary for carrying out the said survey and giving the said certificate and the master of such vessel and all other parties interested shall give and allow to such surveyor all proper access and facilities and every person contravening or aiding or abetting any other person in the contravention of this enactment shall be liable to a penalty not exceeding ten pounds.

Surveyor to
 have access
 to vessel.

79. All goods articles matters and things imported or exported within the harbour which are required or desired by any party having an interest therein to be weighed or measured

Weighing of
 goods and
 appointment
 of weighers.

A.D. 1911. on being shipped or unshipped or delivered within or upon the said harbour or docks or piers or wharves or jetties thereof shall be weighed or measured by persons to be appointed and licensed as weighers and meters by the Trustees and the Trustees may appoint and license and remove at pleasure a sufficient number of persons to be meters and weighers and may make regulations for their government and fix reasonable rates to be paid or other remuneration to be made to them for weighing and measuring goods articles matters and things.

Penalty on
employing
any person
not a
weigher or
meter.

80. No master of any vessel or the owner of any goods articles matters or things shipped unshipped or delivered within or upon the harbour or docks or piers or wharves or jetties thereof shall employ any person other than a weigher or meter licensed by the Trustees to weigh or measure the same and if in such case any person other than a weigher or meter licensed by the Trustees shall weigh or measure any such goods articles matters or things such person as well as the person by whom he may have been employed shall for every such offence be liable to a penalty not exceeding five pounds and the weighing or measurement of any such goods by any such person not licensed or appointed as aforesaid shall be deemed illegal.

PART VIII.

LIMITS OF HARBOUR MAINTENANCE OF HARBOUR WORKS &C.

Limits of
harbour.

81. The limits of the harbour shall extend over the river or water of Tay and on both sides thereof from the mouth of the rivulet commonly called the burnmouth of Invergowrie on the west to the place which is called the Gaw of Barry on the east on the north side of the said river or water of Tay and from the place where the monastery of Balmerino was situated on the west to the sands which are called Drumla Sands on the east on the south side of the said river or water of Tay and over such parts of the alveus or shore of the harbour as were vested in the existing trustees before the commencement of this Act.

Subsidiary
works and
power to
lease and
dispose of
lands.

82. With respect to lands for the time being vested in the Trustees the following provisions shall have effect (that is to say) :—

- (1) The Trustees may from time to time construct repair renew and maintain timber ponds locks gates bridges

quays piers jetties wharves sheds warehouses engines trucks wagons hoists cranes workshops sewers drains roads approaches streets and other works machinery and conveniences continue and if necessary lift and relay rails sidings and turntables and lay and maintain such new or additional rails sidings and turntables as shall be convenient for the traffic of the harbour and may alter divert or shut up roads or streets repair renew and maintain all or any of the works for the time being constructed by or belonging to them; and

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- (2) The Trustees may from time to time appropriate and adapt such parts as they think fit of any such lands for the purpose of shipbuilding yards or of warehouses and generally for manufacturing trading or commercial purposes and lease such lands or any parts thereof for such periods and upon such terms and for such rent or other consideration as they think fit or sell feu or dispose of such lands or any parts thereof Provided that nothing in this section shall empower the Trustees to cause or permit a nuisance upon any such lands.

83. The Trustees may from time to time alter dredge scour deepen widen enlarge improve and maintain the docks entrances channels and waterways of the harbour Provided that no materials excavated or dredged under the provisions of this section shall be deposited in any place below high-water mark otherwise than in such position and under such restrictions as may be fixed by the Board of Trade.

Power to dredge &c.

84. The Trustees may from time to time provide on any lands belonging to them or may take on lease elsewhere such dwelling-houses or offices for any of their officers workmen or servants as they think fit and may permit the same to be occupied accordingly with or without the payment of any rent for the same and on such terms and conditions in other respects as the Trustees may from time to time think fit.

Power to Trustees to provide dwellings for officers.

85. The Trustees may contract with any commissioners corporation company or person for a supply of water for the purposes of the harbour and to vessels in the harbour and for the extinction of fires in such vessels and for the working of gates locks bridges cranes or other machinery or con-

Trustees may contract for supply of water gas and electric power.

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A.D. 1911. veniences in the harbour and also for a supply of gas and electric power for the lighting working and use of the harbour and the streets quays buildings and property within the same.

Power to
place buoys
&c.

86. The Trustees may from time to time construct lay or place and may maintain such buoys mooring chains or anchors in the river or firth of Tay within the harbour for the purpose of warping or anchoring vessels as to them shall appear necessary or expedient for the use and accommodation of the shipping resorting to the harbour and may raise and replace the same under such restrictions conditions and regulations as they shall deem proper but so always as not to interfere with or obstruct the navigation of the river or firth of Tay.

For enclosing
quays.

87. The Trustees may close in by locked gates and by placing keepers thereat for opening and shutting the same such of the piers quays and ways of the harbour as they may think fit and exclude therefrom all persons who may not have business to do in regard to the ships or vessels goods wares and merchandise in the harbour Provided always that in order that all persons having business with respect to the ships or vessels or to the goods wares and merchandise within the harbour may have access thereto at all reasonable hours the Trustees shall make and publish and cause to be observed such byelaws as may appear necessary for the free ingress and egress of all such persons.

Power to
run docks
dry for pur-
pose of re-
pairs &c.

88. The Trustees may run any dock dry or lower the level of the water therein for the purpose of repairing or cleansing the same or for any other purpose having given not less than three clear days' notice of their intention to do so by fixing such notice on some conspicuous part of the office of the Trustees.

Vessels may
be removed
for purpose
of repairing
docks or
quays.

89. Whenever the Trustees shall deem it necessary for the purpose of scouring or cleansing any dock or of repairing any dock or quay that any vessel lying therein or thereat shall be removed the master of such vessel shall within two days after notice in writing signed by the harbour-master or dock-master has been given to him remove such vessel according to such notice whether such vessel has or has not discharged the whole of her cargo and in case of his neglecting so to do such master shall be liable to a penalty not exceeding ten pounds.

90. If the master of such vessel cannot be found or if he neglect or refuse to remove the same as required by the said notice the harbour-master or dock-master may with due care remove such vessel to such station as he shall select and the expenses of such removal shall be paid to the Trustees by the owner of such vessel or the master thereof.

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—
 Harbour-master or dock-master may remove vessel if master neglects or refuses.

91. The harbour-master may if in his opinion it is required for the safety or convenience of the shipping in the harbour forthwith remove any vessel lying within any part of the harbour or may order the master of any such vessel forthwith to remove such vessel and if any such master of such vessel shall fail forthwith to carry out such order he shall be liable to a penalty of ten pounds.

Harbour-master may remove or call for removal of any vessel from any part of harbour.

PART IX.

LIGHTING AND BUOYING OF THE TAY.

92. The Trustees shall provide for and manage and maintain the lighting and buoying of the river and firth of Tay and the entrances thereto eastward of the western limits of the harbour and may erect and maintain such lighthouses lighting apparatus lights beacons buoys and other machinery for the purpose of lighting and buoying the said river and firth and the entrances thereto as the Trustees may consider necessary and proper and the Trustees shall be a local lighthouse authority within the meaning of the Merchant Shipping Act 1894 and shall have all powers conferred by that Act on local lighthouse authorities.

Trustees to light and buoy river and firth of Tay.

93. The Trustees when and as they shall deem it expedient for the protection of navigation to and from the harbour may purchase by agreement or lease land in convenient situations either within the limits of the harbour or on the coast adjoining or elsewhere as sites for the erection of lighthouses and landmarks thereon and may maintain alter and improve such lighthouses and landmarks when built and may take down the same respectively either with or without erecting others in their place.

Power to erect lighthouses &c.

94. The Trustees may from time to time as they may think proper construct establish maintain moor and place such and so many floating lightships buoys beacons and seamarks in such situations in or near the sea or river channels or other places within or near the harbour and the river or firth of Tay and

Power to provide floating lights &c.

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A.D. 1911. with such lights in any such lightships as they shall deem proper and may also when and as often as they shall deem it expedient change or alter the situation of or remove any lightships buoys beacons or seamarks.

Lighting of
harbour.

95. The Trustees may alter extend and improve the lights and lighting of the harbour and provide lay down erect and maintain gas buoys and electric or other cables and mains or other apparatus within the harbour for the purposes of and applicable to such lights and lighting.

As to elec-
tric cables
&c.

96. All electric cables mains or other apparatus provided laid down erected or maintained under the authority of this Act for the purposes of electric lighting or electric power shall be so constructed and used as not to affect telegraphic communication by means of any telegraphic line (as defined by the Telegraph Act 1878) used or intended to be used by the Postmaster General.

Penalty for
injuring
lightships
&c.

97. In case the master of any vessel shall wilfully or carelessly permit or suffer such vessel to run foul of or strike against any lightship or vessel beacon or buoy or seamark belonging to the Trustees or in case any person on board of such vessel shall wilfully or carelessly injure any such lightship or vessel beacon or buoy or seamark in any manner howsoever or in case any person shall wilfully or carelessly injure any lighthouse or landmark belonging to or under the management of the Trustees every person so offending shall for every such offence be liable to a penalty not exceeding twenty pounds and shall also pay for and make good all damage and injury which may have been so done or committed.

Penalty for
fastening
vessels to
buoys not
being
mooring
buoys.

98. In case any person shall moor or fasten any vessel to any buoy or beacon within the harbour not being a mooring buoy or beacon or shall by boathook or rope or cable or otherwise hang on to any such buoy or beacon every person so offending shall for every such offence be liable to a penalty not exceeding twenty pounds.

PART X.

TELEGRAPHS AND TELEGRAPHIC COMMUNICATION.

Power to
erect and
maintain
telegraphs.

99. The Trustees by agreement may purchase or hire such land and may erect establish improve alter and maintain such electric semaphore and other telegraphs (including wireless

telegraphs) or other modes of communication as they may deem expedient along and in the burgh and harbour and between the burgh and harbour and such places in the counties of Forfar and Fife or adjacent thereto as the Trustees may deem expedient and may erect provide lay down and maintain all necessary signal houses marine and other electric cables posts poles pipes tubes wires telephones and other things in connection therewith or may at their discretion contract with any company or person for the construction establishment or maintenance of such works or any of them. A.D. 1911.

100. For the purpose of establishing maintaining or improving any such telegraph or telephone the Trustees may with the consent in writing of the trustees commissioners or other persons having the control of any road bridge or street or their duly qualified officer from time to time lay down and place upon along across or under any such road bridge or street any wires pipes tubes standards and other apparatus necessary or convenient for the purposes of such telegraph or telephone or for conveying the conducting and other wires of such telegraph or telephone upon along across or under such road bridge or street and may with such consent as aforesaid from time to time alter repair amend and reinstate the same and for such purposes break up or open the pavement surface or soil of any road bridge or street the Trustees doing as little damage as may be and making compensation for all damage to be caused thereby to the parties who shall have sustained such damage. Trustees empowered to lay wires &c. along public roads bridges and streets.

101. The Trustees may also with the consent in writing of the Commissioners for the time being of His Majesty's Woods Forests and Land Revenues or one of them or of the Board of Trade and of all persons and bodies having any right of property or other right in or over the river and firth of Tay lay down and maintain in under or over the same any cable wire pipe tube rope or apparatus for the purpose of any such telegraph or telephone and may from time to time alter repair amend and reinstate the same and for that purpose may cut channels on the shore or coast above or below high-water mark for the purpose of placing and laying down such cable wire pipe tube rope or apparatus and they may also construct lay down and fix buoys seamarks and other things therein necessary and convenient for the protection of the telegraphs telephones cables Wires &c. may be laid down across seas.

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A.D. 1911. wires pipes tubes ropes and apparatus of the Trustees from injury the Trustees in the execution of such works doing as little damage as may be and making compensation for all damage to be caused thereby and the amount of such compensation in case of difference respecting the same shall be settled and determined by the sheriff or by two justices having jurisdiction at the place where such damage shall be done.

Telegraph
&c. cables
&c. not to be
placed in
tidal waters
without
consent.

102. The Trustees shall not place any telegraph telephone or electric cable or any buoy or seamark connected therewith under in upon over along or across any estuary or branch of the sea or the shore or bed of any tidal water except with the consent of all persons and bodies having any right of property or other right or any power jurisdiction or authority in over or relating to the same which may be affected or be liable to be affected by the exercise of the powers of the Trustees which consent where His Majesty in right of His Crown is interested may be given on behalf of His Majesty by the Board of Trade under the hand of one of their secretaries or assistant secretaries.

Plan of tele-
graph &c.
works to be
subject to
approval.

103. Before commencing the laying of any such cable or of any buoy or seamark as aforesaid except in cases of emergency for repairs to any cable or work previously constructed or laid and then as speedily after the laying of any such cable or placing of such buoy or seamark as may be the Trustees shall deposit at the office of the Board of Trade a plan thereof for the approval of the Board of Trade The cable shall not be laid nor the buoy or seamark placed otherwise than in accordance with such approval If any such cable is laid or buoy or seamark placed contrary to this provision the Board of Trade may at the expense of the Trustees abate and remove it or any part of it and restore the site thereof to its former condition.

For protec-
tion of Post-
master
General.

104. Nothing in this Act shall authorise the establishment of any wireless telegraph station or apparatus by the Trustees except under and subject to the provisions of the Wireless Telegraphy Act 1904 and any statute extending or amending the same or shall authorise the Trustees to work or use any telegraphs or telephones or electric cables posts poles pipes tubes wires or other apparatus in contravention of the exclusive privilege conferred

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on the Postmaster General by the Telegraph Act 1869 or to A.D. 1911.
construct any telegraphs or telephones or electric cables posts
poles pipes tubes wires or other apparatus which shall interfere
in any way with any telegraphic line (as defined by the
Telegraph Act 1878) in the possession or under the control of
the Postmaster General and the Trustees shall within forty-eight
hours of the service on them of a notice in writing by the
Postmaster General in that behalf remove or alter to the
satisfaction of the Postmaster General any such telegraphs or
telephones or electric cables posts poles pipes tubes wires or
other apparatus as aforesaid which in the opinion of the
Postmaster General interfere or will interfere with the efficient
or convenient maintaining working or user of any telegraphic
line which the Postmaster General has constructed or desires to
construct and in default of such removal or alteration as
aforesaid the Postmaster General may remove or alter any such
telegraphs or telephones or electric cables posts poles pipes tubes
wires or other apparatus as aforesaid at the expense of the
Trustees.

105. When the pavement surface or soil of any public Streets &c.
road bridge or street shall be opened or broken up by the broken up to
Trustees they shall with all convenient speed complete the work be reinstated
on account of which the same shall be broken up and fill in without
the ground and reinstate and make good the pavement surface delay.
or soil so opened or broken up and carry away the rubbish
occasioned thereby and shall in the meantime cause the place
where such pavement surface or soil shall be so opened or
broken up to be fenced and guarded and set up and maintain
upon or against the part of the pavement surface or soil so
broken up or opened a sufficient light during every night while
such pavement surface or soil shall be continued open or
broken up.

106. If any undue delay or omission shall take place in In case of
the completion by the Trustees of such work the persons having delay other
the control or management of the public road bridge or street parties may
in respect of which such delay or omission shall take place reinstate
may cause the work so delayed or omitted to be executed and and recover
the expense of executing the same shall be repaid to such expenses.
persons by the Trustees and such expenses may be recovered
from them by action or otherwise.

A.D. 1911.

PART XI.

PILOTS AND PILOT VESSELS.

Trustees to
be pilotage
authority.

107. The Trustees may from time to time license and appoint such persons as they think necessary as pilots of and for the port and harbour and withdraw or suspend any such licence or appointment in accordance with byelaws to be made under the provisions of the Merchant Shipping Act 1894 and the Trustees may also from time to time appoint suspend and displace any pilot-master and regulate and fix the powers duties and fees or salary of such pilot-master and the Trustees shall be a pilotage authority within the meaning of the Merchant Shipping Act 1894 and shall have all powers conferred by that Act on pilotage authorities.

Existing
licences of
pilots to con-
tinue in
force.

108. Subject to the provisions of the Merchant Shipping Act 1894 all licences to pilots granted by the existing trustees in virtue of the Harbour Acts shall continue in force until the expiration thereof or until the same are recalled or until the suspension or dismissal of such pilots.

Licences
how to be
issued.

109. Every pilot licence shall be given under the hand of the clerk and shall continue in force for such period as the Trustees shall fix.

Pilots to be
under direc-
tion of Trus-
tees.

110. Every person upon his admission as a pilot shall be subject to the provisions in this Act contained and to such bye-laws rules and regulations as shall be in force for the time being for the government and direction of the pilots of the harbour.

Pilots not to
take out
ships until
rates are
paid.

111. No pilot licensed or acting under the authority of this Act shall pilot or convey any ship or vessel out of the harbour until the harbour-master shall have been satisfied that the rates required by this Act to be paid in respect of such vessel and her inward and outward cargo (including the rates of pilotage and other remuneration to which any pilot shall be entitled) have been duly paid to the person appointed by the Trustees to receive such payments and such payments shall be made at the shore dues office in Dundee or at such other place as shall from time to time be appointed by the Trustees.

Harbour-
master may
stop vessels
until pilot-
age dues are
paid.

112. The harbour-master may prevent the removal or sailing out of the harbour of any vessel in respect of which any pilotage dues shall be payable until evidence shall have been produced to him of the payment of such dues.

113. The Trustees shall not be liable or answerable to any person whatsoever for any accident loss or damage occasioned to any shipping or cargo by the fault or incapacity of any pilot licensed or appointed by them or happening in any way in consequence of the employment of any such pilot.

A.D. 1911.
 Trustees not to be liable for damage by pilots.

114. If any person after having been suspended as a pilot shall at any time during the period of such suspension or if any person whose licence has been recalled shall upon any pretence or pretended authority whatever after the suspension or recall of his licence as a pilot act as such pilot in taking charge of or in conducting any vessel into or out of the harbour or any part thereof such person shall be subject and liable to a penalty not exceeding twenty pounds for each offence.

Penalty on pilots acting as such after being suspended.

115. In case any vessel coming into or going out of the harbour shall be in want of a pilot and no pilot licensed and authorised to act as pilot under this Act can be procured and there shall be any such pilot on board of any other vessel passing into or out of the harbour such pilot on board any such other vessel shall be bound as far as may be practicable to lead the way for and direct the course of a vessel so in want of a pilot either into or out of the harbour until another pilot can be obtained and the master or commander of every such vessel which shall be so directed by any pilot leading the way in such other vessel shall be subject and liable to the payment of one half of the pilotage rates according to the distance such vessel shall have been directed in manner aforesaid and if any pilot vessel licensed under this Act shall run before any vessel which has desired the services of a pilot and has not on board any pilot licensed and authorised to act as a pilot under this Act when such vessel cannot from particular circumstances be boarded by any such pilot for the purpose of directing her course until a pilot can be put on board the pilot on board such pilot vessel shall be entitled to the full pilotage for the distance run until a pilot shall be put on board as if such pilot had been actually on board and had taken charge of such vessel as pilot.

Pilots leading way entitled to certain pilotage.

116. In case any vessel shall be met with at sea in distress without or within the buoy of Tay by any of the pilots acting under this Act and the master or other person in charge of such vessel shall desire any extraordinary assistance of such pilot his crew or boat the compensation to be made for such assistance

Compensation to pilots for extra service to be settled by sheriff

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Distance to which outward bound vessels are to be piloted.

117. Every pilot who shall take upon himself the charge or conduct of any vessel about to sail out of the harbour or from any part thereof shall and he is hereby required to take charge of such vessel at her moorings within the harbour where such vessel shall then be and to conduct or pilot such vessel out to sea not less than one mile and not exceeding six miles beyond the buoy of Tay and whenever any such pilot shall be required by the master or other person in charge or command of any vessel whether outward or inward bound to attend such vessel at anchor in any roadstead in the said river such pilot shall attend accordingly and shall be paid such sum as the Trustees shall appoint not being less than ten shillings and sixpence a day for every day of twenty-four hours attendance and if any such pilot shall so attend and be employed for a part only of a day not being less than ten hours he shall be paid the like sum as for a whole day and in case the use or attendance of a pilot's crew or vessel shall be required there shall be paid for the use of such crew or vessel such sum of money by the tide day or otherwise according to the circumstances of the case as shall be settled and directed by the Trustees and if any such pilot after he shall have been engaged to serve shall quit any such vessel on board of which his services may be so required without the consent of the master or other person in charge thereof before he shall have performed the service for which he was engaged such pilot shall forfeit the pilotage or other sum of money to which on performance of his duty he would have been entitled and shall besides be liable to a penalty not exceeding ten pounds for each such offence.

Places to which inward bound vessels are to be piloted.

118. Every pilot who shall be employed to pilot or conduct any vessel into the harbour shall and he is hereby required to take the same to such place of delivery in the harbour as the

master or other person in charge of such vessel shall subject to the order of the harbour-master or dock-master require or so near thereto as he can safely get and there moor such vessel in some proper situation without being paid any other rate than is payable for piloting such vessel into the harbour. A.D. 1911.

119. The master or other person in charge of every vessel which shall be piloted by any pilot into any part of the river or firth of Tay for the performance of quarantine shall pay the full charges of pilotage into such part of the river and such pilot shall be entitled to ten shillings and sixpence a day for the days during which such pilot shall be obliged to remain in quarantine exclusive of the day of the arrival of such vessel in the harbour. Remuneration to pilots detained on board vessels performing quarantine.

120. In case any pilot shall be wilfully and forcibly carried to sea beyond the limits of pilotage prescribed in this Act otherwise than through stress of weather the master of the vessel on board of which such pilot is so carried to sea shall pay to such pilot such wages as are hereinbefore mentioned together with proper and reasonable expenses for his home journey and shall be liable to a penalty not exceeding twenty pounds for every such offence. Pilots taken to sea to get wages besides pilotage rates.

121. If any pilot having the charge or direction of any vessel coming into or going out of or being in the harbour shall neglect or refuse to obey such orders or directions as shall from time to time be given to such pilot by the harbour-master or dock-master touching or relating to the mooring unmooring removing or navigating of such vessel so being under the charge or direction of any such pilot as aforesaid or shall in the charge or conduct of any such vessel neglect or refuse to observe or obey any signal made by the harbour-master or dock-master or any assistant of such harbour-master or dock-master when approaching the entrance of any of the docks or other places within or near to any dock or pier or basin at or within the harbour then and in every such case every pilot so offending shall be liable to a penalty not exceeding five pounds and shall also be liable to be suspended or dismissed by the Trustees. Penalty on pilots disobeying orders of harbour or dock master.

122. The Trustees shall cause a table of the rates or dues of pilotage with the rules and regulations relative to pilotage and a list of the pilots licensed and appointed as aforesaid to be from time to time made up and copies thereof shall be from Rates rules and list of pilots to be put up.

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A.D. 1911. time to time affixed to some conspicuous place at the pilot office and at the shore dues office in Dundee and such copies shall be renewed so often as the same shall be obliterated or defaced.

Superannua-
tion fund for
old and dis-
abled pilots.

123. The Trustees may cause to be set aside such a sum as the Trustees may fix out of the pilotage rates collected to form a superannuation fund for old and disabled pilots and their respective wives widows or children and may accumulate and manage and administer the said fund under such rules and regulations as they may from time to time fix alter and appoint Provided that no part of the said fund or of any interest accruing thereon shall be applied to any other purpose than in paying pensions or allowances to any of such persons (and their respective wives widows or children) who having been pilots may have been disabled in or after long service may be unfitted for the execution of the duty of a pilot.

Vessels
forced back
to pay half
rates for
being again
piloted.

124. If any vessel which after having been piloted or conducted by any pilot licensed and authorised to act as a pilot under this Act out of the harbour or from any place to the eastward of an imaginary line drawn between Balmerino on the south side of the River Tay and Invergowrie Burn on the north side of the said river to the sea shall be forced back by storm or contrary winds after having (by the consent of the master or other person in charge of such vessel) parted with such pilot and shall be conducted by such master or other person in charge into any place in the said river and such master or other person shall afterwards employ a pilot to conduct such vessel out of such place to the sea he shall for such service be liable to pay one half only of the sum payable for pilotage outwards from such place.

Trustees
may provide
or license
pilot vessels.

125. The Trustees may provide or license pilot vessels of such size and description as they shall think proper for the purpose of having pilots constantly in attendance in such vessels within the limits for which pilots may be licensed by the Trustees.

PART XII.

DISCHARGE OF CARGOES AND REGULATION OF HARBOUR
AND DOCKS.

Porters
licensed by
existing
trustees.

126. Every person who at the commencement of this Act shall possess a licence from the existing trustees to act as a

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porter shall for the purposes of this Act be deemed and taken upon and after the commencement of this Act to have been licensed by the Trustees and shall be entitled to the same rights and privileges and be subject to the same regulations and be liable to the same penalties for offences committed against this Act or any byelaw continued in force or made in pursuance thereof as he would have been entitled or subject or liable to if he had actually been licensed by the Trustees.

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127. The Trustees may from time to time license and appoint a sufficient number of persons to act as porters barrowmen stevedores lumpers or boatmen at the docks or in or at the harbour and fix the rates to be paid to any such persons and remove suspend and displace them at pleasure and the Trustees may also make such rules and regulations and impose such penalties to secure the exclusive employment of such licensed porters barrowmen stevedores lumpers or boatmen as they may from time to time think proper.

Appointment
of porters
&c.

128. The master of every vessel which shall come alongside any wharf pier or jetty or go into any dock for the purpose of being discharged of her cargo shall if required by the harbour-master or dock-master cause such vessel to be so discharged as soon as conveniently may be after entering therein and after being so discharged to be removed without loss of time into such dock or such part of any dock as shall be set apart for light vessels and the harbour-master or dock-master may cause any dock or a part of any dock to be set apart for light vessels accordingly and if the master of any such vessel shall not cause her to be so removed within twenty-four hours after being required so to do by notice in writing signed by the harbour-master or dock-master he shall be liable to a penalty not exceeding ten pounds and the harbour-master or dock-master may cause such vessel to be so removed and the expenses of such removal shall be paid to the Trustees by the master or owner of such vessel.

Delivery of
cargoes and
placing of
discharged
vessels.

129. The harbour-master or dock-master may if he thinks fit employ tugs boatmen riggers and labourers for the purpose of effectually and speedily working any vessel into or out of any dock and the master or owner of any such vessel shall on demand repay to the Trustees all expenses so incurred.

Harbour-
master or
dock-master
may employ
labourers &c.
to expedite
vessel.

A.D. 1911.
 Penalty on
 giving a
 false draught
 of water.

130. If the master mate pilot or other person in charge of any vessel entering or leaving or intending to enter or leave any dock or slip gives false information of her draught of water to the harbour-master or dock-master he shall for every such offence be liable to a penalty not exceeding one hundred pounds besides being liable for any damages and expenses that may arise in consequence of such false information.

Trustees
 may employ
 persons to
 discharge or
 load ships.

131. Where the harbour-master or dock-master shall be of opinion that any unnecessary or inconvenient delay has taken place in the discharging or loading of any vessel either from the inadequacy or improper conduct of the persons employed for that purpose or from the negligence or default of the master of such vessel he may employ a sufficient number of persons to discharge or load or assist in discharging or loading the cargo of such vessel and may make a reasonable charge for the same which shall be paid to the treasurer by the master or owner of such vessel. The harbour-master or dock-master may regulate or stop the discharge of any vessel when he considers the sheds or other accommodation for goods in the harbour are congested.

Decks of
 vessels to be
 kept clear.

132. The master of any vessel who shall not upon request of the harbour-master or dock-master properly clear the deck of such vessel by stowing away such articles as may impede the delivery or loading of the cargo shall for every such offence be liable to a penalty not exceeding five pounds.

Penalty for
 wilfully
 cutting
 moorings.

133. Every person who shall wilfully cut break or destroy the mooring or fastening of any vessel lying in the harbour or docks wharves jetties piers or quays or at or near the same shall for every such offence be liable to a penalty not exceeding fifty pounds.

Penalty on
 opening
 dock gates
 without
 permission.

134. If any person opens or shuts or attempts to open or shut any swing bridge dock gate caisson sluice or clow without the consent of the harbour-master or dock-master he shall be liable for every such offence to a penalty not exceeding one hundred pounds.

Harbour-
 master or
 dock-master
 may remove
 nuisances.

135. The harbour-master or dock-master may remove or cause to be removed from any dock or quay any nuisance which may happen to be thereon and may also remove or cause to be removed from any dock or quay all idle or disorderly persons and all persons attempting to act in any way contrary to law or to any of the provisions in this Act.

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136. All timber deals and other goods and matters shall be so placed on the quays wharves jetties or piers on being landed as to leave a space of twenty feet clear for carriages and passengers unless the harbour-master shall for special cause fix and allow by written order a less space and any timber deals or other goods or matters otherwise placed upon the quays may be immediately removed by the Trustees or their officers and the expenses of such removal shall be recoverable from the owner of such timber deals or other goods or matters or the master of the vessel from which the same were landed and the harbour-master or dock-master may prevent the landing upon the quays of any additional timber deals or other goods or matters from the same vessel or belonging to the same owner in any case where the portion of the cargo already landed shall have remained twenty-four hours (excluding Sundays) upon the quays without removal.

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How timber
&c. shall be
laid upon
quays.

137. Any combustible explosive detonating or other similar dangerous goods landed transhipped or brought into any dock warehouse or other part of the land or premises of the Trustees without having been duly declared to be such shall be absolutely forfeited and may at the option of the Trustees either be sold for their benefit or be destroyed and such forfeiture shall not exonerate the owner of such goods from any penalty or any payment of rates or dues to which he may be liable.

Dangerous
goods not
declared to
be such to
be forfeited.

138. If the owner consignee or person in charge of any tar pitch resin faggots furze brandy or other spirituous liquors turpentine oil hay straw tallow grease shavings of wood petroleum or any other combustible matter or thing whatsoever permit or suffer the same or any part thereof to be and remain on the quays or wharves of the Trustees or any of them or any part thereof or upon the deck of any ship lighter barge boat or any other vessel in the docks basins locks cuts or entrances of the harbour or any of them above the space of two hours after he is required by the harbour-master or dock-master by notice in writing to take away the same therefrom every person so offending shall for every such offence be liable to a penalty not exceeding forty shillings for every hour the combustible matter or thing or any part thereof remains in that place or situation after the expiration of the two hours computed from the time of the requisition.

For remov-
ing combus-
tibles.

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For watch-
ing combust-
ibles.

139. In every such case the owner consignee or person in charge of the combustible matter or thing if the same respectively be on the quays or wharves or any of them or the master of the ship lighter barge boat or other vessel on the deck of which the same is shall at their own expense respectively maintain a sufficient number of careful and sober persons to be in that behalf appointed by the harbour-master or dock-master to guard and watch over the combustible matter or thing from or after the making of the requisition until the same respectively be removed and in case any such owner or master or other person fail to pay the expense on demand the expense shall be ascertained by any magistrate and be recovered in like manner as any penalty is recoverable under this Act.

Detention of
vessels until
damage
secured.

140. In case any float of timber or any vessel within the harbour shall injure or damage any of the harbour works or lighting or buoying appliances or any other float of timber or vessel the harbour-master shall be entitled to detain the same until sufficient security shall have been given to his satisfaction for payment of such damage or injury.

PART XIII.

HARBOUR RAILS.

Power to
work har-
bour rails.

141. The Trustees may provide place and run carriages trucks wagons and engines on and may work and use the harbour rails and may provide such plant materials and other things requisite or convenient for the purpose of such working or use and may take and charge rates therefor and for such services as the Trustees may render and for the use of such carriages trucks wagons and engines any sums not exceeding the rates specified in Schedule F to this Act annexed.

PART XIV.

STEAM TUGS AND LIFE-BOATS.

Trustees
may provide
and license
steam tugs.

142. The Trustees may from time to time build purchase contract for or hire and may maintain use and let steam tugs or other power for the use and accommodation of vessels frequenting the harbour and may also from time to time license such number of steam tugs or other power belonging to

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any person for such period and on such terms and conditions A.D. 1911.
as they think fit.

143. Every person who without the license of the Trustees first applied for and obtained shall use or employ any steam tug or other power for towing vessels within the harbour except such steam tugs or other power as shall be provided or employed by the Trustees or by their lessee contractor or other person having their authority and except also any licensed steam tug or other power which is being employed in towing a vessel from any other harbour to or beyond the harbour or from the harbour to any other harbour shall for every such offence be liable to a penalty not exceeding five pounds.

Penalty for
using or em-
ploying
steam tugs
without
license of
Trustees.

144. The Trustees may provide and maintain such and so many life-boats or other vessels to be used and established for the purpose of rendering assistance to vessels in distress as they may from time to time think necessary or expedient and may purchase by agreement either within the limits of the harbour or on the coast adjoining or elsewhere sites for and may build houses and landing-places for the accommodation of such boats their crews and stores and also for the shelter and safety of pilot boats when driven by stress of weather from their stations as they may think proper.

Power to es-
tablish life-
boats.

145. The master mate or any other person in charge of any steam tug within the harbour or licensed by the Trustees shall on the written requisition of the harbour-master proceed with such tug to the assistance of any vessel docking or undocking or on shore or in distress within any part of the harbour or entrances thereto and such compensation or allowance shall be made for such assistance as the harbour-master shall fix and determine and in case any such master mate or other person shall refuse or delay to comply with any requisition made as aforesaid he shall be liable to a penalty not exceeding fifty pounds for every such offence.

Assistance to
vessels in
distress &c.

PART XV.

HARBOUR RATES &C.

146. From and after the commencement of this Act the schedules of rates annexed to and authorised by the Harbour Acts or any of them shall be and are hereby repealed and

Repeal of
existing
rates and

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A.D. 1911. in lieu thereof the rates specified in Schedules B C D E F
commence- G H and I annexed to and authorised to be levied by this
ment of new Act shall commence and be leviable.
rates.

Rates on
vessels.

147. Subject to the provisions of this Act and of Schedule B to this Act annexed the Trustees may levy on and in respect of all vessels entering or departing from the harbour or using the works in or connected with the harbour or any of them the rates specified in the said Schedule B and all such rates shall be paid by the owner agent master consignee or other person in charge of such vessels.

Rates on
goods &c.

148. Subject to the provisions of this Act and of Schedule C to this Act annexed the Trustees may levy on and in respect of all goods animals and carriages shipped unshipped or transhipped within the harbour the rates specified in the said Schedule C and all such rates shall be paid by the owner consignee or other person in charge of such goods animals or carriages.

Rates on
goods not
enumerated.

149. All goods shipped unshipped or transhipped within the harbour and not particularly enumerated in the said Schedule C shall only be liable to rates equal to the rates specified in the said Schedule on such goods as in the judgment of the Trustees may be nearest in description and value to such unenumerated goods.

Rates for
graving
dock &c.

150. Subject to the provisions of this Act and of Schedule D to this Act annexed the Trustees may levy on and in respect of all vessels entering or using any graving dock patent slip or careening beach constructed or to be constructed within the harbour the rates specified in the said Schedule D and all such rates shall be paid by the owner agent master consignee or other person in charge of such vessels.

Rates for
cranes &c.

151. Subject to the provisions of this Act and of Schedule E to this Act annexed the Trustees may levy for and in respect of the use of cranes and rails at the harbour the rates specified in the said Schedule E and all such rates shall be paid by the owners or persons in charge of goods lifted or by the owner agent master consignee or other person in charge of vessels using the said cranes or by the owners or persons in charge of goods minerals and other traffic conveyed upon the said rails and the Trustees may from time to time enter into and carry out agreements with any company body or person under

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which such company body or person shall have the sole or partial use of any of such cranes or rails during such periods and at and for such rates charges or other consideration and under such conditions as the Trustees may fix and determine or as may be so agreed. A.D. 1911.

152. Subject to the provisions of this Act and of Schedule G to this Act annexed the Trustees may levy for and in respect of the use of sheds (other than lairage sheds or other works or conveniences for animals) and for and in respect of the weighing of goods the rates respectively specified in the said Schedule G and such rates respectively shall be paid as mentioned in the said Schedule. Rates for sheds and weighing of goods.

153. Subject to the provisions of this Act and of Schedule H to this Act annexed the Trustees may levy for and in respect of the lighting and buoying of the River or Firth of Tay on all ships and other vessels going out of or coming into or trading in the said River or Firth within the limits of the harbour the rates specified in the said Schedule H and such rates shall be paid as mentioned in the said Schedule. Rates for lighting and buoying.

154. So soon as the Trustees shall provide or possess any timber ponds they may from time to time enter into agreements with any company body or person for payment of such rates or other consideration in respect of the use of such timber ponds or any part thereof as to the Trustees may seem expedient. Rates for timber ponds.

155. The Trustees may levy and receive such rates or other consideration as they may think reasonable for the use of any warehouses sheds buildings cranes coal hoists jiggers works and conveniences belonging to the Trustees for the use of which rates are not specially fixed in the Schedules to this Act annexed. Rates for use of ware-houses &c.

156. Subject to the exercise by the Trustees of the powers contained in the immediately preceding section of this Act the rates for sheds in Schedule G to this Act annexed shall not apply to sheds used for the accommodation of fish traffic. Provision as to rates for sheds used for fish traffic.

157. The rates by this Act authorised to be levied at the harbour shall at all times be charged equally to all persons in respect of the same class or description of vessel or of voyages and the same description of goods and all the said rates payable to the Trustees shall be paid at their Shore Dues Office at the

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A.D. 1911. — harbour or at such other place as they may from time to time fix and appoint and for all such rates the Trustees in addition to all other available remedies may retain in security any goods or property of the party or parties liable to the payment of the same and may in default of payment sell such goods or property or any part thereof and apply the proceeds in payment of such rates and the expenses of sale.

Power to
vary rates.

158. With respect to alterations or variations of the rates by this Act authorised to be levied at the harbour the Trustees may from time to time as hereinafter mentioned exercise the following powers (that is to say):—

They may increase the rates or any of them specified in the Schedules B C D E G H and I to this Act annexed provided that such addition shall not at any time exceed one third part of such rates respectively :

They may reduce the rates or any of them specified in the said Schedules or as so increased :

They may increase the said rates again in the same manner provided the said rates when so increased do not exceed the rates specified in the said schedules with one third part more in addition thereto.

Rates to be
fixed and de-
clared
annually.

159. In order that the revenue of the harbour may annually be adjusted with reference to what may be annually required for the purposes of this Act the Trustees shall at their meeting to be held in the month of August in each year or at some adjournment thereof as hereinbefore provided on due consideration of the amount of revenue and expenditure for the year ending the thirty-first day of May preceding and of the probable amount of revenue and expenditure for the succeeding year then current fix and declare that the scheduled rates be levied for the year commencing on the first day of October following or that a specified percentage thereof be levied for such year or that the same be levied with a specified percentage of addition thereto for such year Provided that no such rates be in any case increased more than one third above the amounts authorised by this Act And provided also that such rates shall at all times be charged equally to all persons in respect of the same class or description of vessel and the same description of work service or goods and subject to the said provisions the Trustees may also during the currency of any year make any reduction of or increase to any one or more of such rates provided such

increase or reduction be resolved on at a special meeting of the Trustees duly called for the purpose by at least two thirds of the whole body of Trustees and be confirmed at another special meeting held not sooner than one month thereafter by at least two thirds of the Trustees present at such subsequent meeting Provided further that public notice shall be given in at least one newspaper published in Dundee of every resolution of the Trustees to increase or reduce any rate or rates and that no such reduction or increase shall take effect until the expiration of twenty-one days after the first publication of such notice. A.D. 1911.

160. The provisions contained in the immediately preceding section of this Act requiring the Trustees to pass and confirm resolutions at special meetings and to publish notice thereof in the event of their exercising the powers conferred by that section during the currency of any year to make any reduction or increase of the scheduled rates shall not apply to any reduction or increase of the rates for graving docks patent slip careening beach cranes and rails specified in Schedules D and E to this Act annexed but the said powers may as regards all such last mentioned rates be exercised by the Trustees according to their discretion. Provision as to reduction or increase of rates for graving dock slip and cranes.

161. The Trustees may subject to the approval of the Board of Trade from time to time fix such rates or charges as appear to them reasonable for or in respect of the use of such steam tugs or other power maintained used and let or licensed by them and such rates or charges shall be paid by the owner agent master consignee or other person having charge of the vessel obtaining the assistance of such steam tug or other power to the Trustees or to their lessee or to the person with whom they may contract or to the owner of such steam tug or other power if licensed by the Trustees as the case may be and such rates and charges shall be due and payable whether such steam tug or other power shall be actually employed or not provided the assistance thereof shall have been required and shall in consequence of such requisition have been tendered by the master or other person having the command of such steam tug or other power. Charges for steam tugs.

162. The Trustees may levy and receive from the owner agent master consignee or other person in charge of any vessel receiving a supply of water such rates as they think fit for Rates for water conveyed to vessels.

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A.D. 1911. defraying the expense of the conveyance by boat of water to vessels.

Charges for services not otherwise provided for.

163. The Trustees may make reasonable charges for all work done services rendered or facilities afforded for the despatch of business not otherwise expressly provided for by this Act.

Rates substituted for rates under Harbour Acts.

164. The rates by this Act authorised to be levied under Schedules B C D E F G H and I shall for all purposes whatsoever be substituted for the rates and duties leviable under the provisions of the Harbour Acts or any of them and the Schedules thereto annexed and the said rates shall be held and applied for the purposes and subject to the provisions of this Act.

Debts charged on former rates to be charged on rates under this Act.

165. The rates by this Act authorised to be levied under Schedules B C D E F G H and I shall be liable to and be charged with all the debts claims and demands whatsoever to which the rates and duties leviable and payable under the Harbour Acts or any of them are subject and liable under the provisions thereof and all mortgages or assignments or other securities granted under the authority of the Harbour Acts or any of them shall be as effectually charged upon the said rates by this Act authorised and the other revenues of the harbour as if such rates and revenues had been specifically and expressly conveyed and charged by such mortgages or assignments or other securities.

Claims for repayment of rates.

166. Any person claiming the return of the whole or any part of any moneys paid in respect of any rates by this Act authorised or for services rendered shall make such claim and produce all documents and give all information reasonably required in proof of such claim within twelve months from the time of payment and in default thereof the whole sum paid shall belong to the Trustees.

Exemption on transshipment of jute.

167. The rates paid in respect of jute verified by through Bills of Lading from original port of shipment imported from ports to the south of the thirty-fifth parallel of north latitude into the harbour shall be repaid by the Trustees on subsequent re-exportation of the same from the harbour or of such part of the same as shall be re-exported to any ports with certification that the jute is for foreign export as hereinafter provided and

such re-exported jute shall be exempt from rates on such re-exportation provided that a certificate shall be given under the hand of the owner of the jute (which expression whenever used in this section shall include the shipper and consignee and any person shipping or taking delivery on behalf of the owner shipper or consignee) or under the hand of the forwarding agent acting on behalf of the owner of the jute and such certificate shall be in such form as the Trustees may from time to time require. The certificate shall contain particulars of the description quantity destination route and mode of conveyance of such jute intended for re-exportation to such ports as aforesaid and shall be delivered to the collector (which expression as used in this section means any collector or officer for the time being authorised by the Trustees to collect rates on goods) previous to such re-exportation as aforesaid and shall contain such particulars as the Trustees shall require and shall certify that such jute so intended to be re-exported has remained from the time of the importation thereof in a warehouse belonging to or held under lease from the Trustees. The owner of any such jute as aforesaid shall at all times give such other information and evidence as may reasonably be required by the Trustees or their collector to prove that the jute proposed to be re-exported as aforesaid was part of a cargo of jute imported as aforesaid.

A.D. 1911.

PART XVI.

BORROWING POWERS.

168. The Trustees may (in addition to the sums already borrowed by the existing trustees at the commencement of this Act) from time to time borrow for the purposes of the harbour other than the Tay Ferries on the security of the rates by this Act authorised and the other revenue of the harbour and of the rates by this Act authorised to be levied at the Tay Ferries the sum of forty-five thousand two hundred and eight pounds sixteen shillings and threepence being the sum remaining unborrowed under the existing powers of the Harbour Acts at the commencement of this Act and in addition thereto the Trustees may from time to time borrow such sums as they think requisite for the purposes of the harbour other than the Tay Ferries not exceeding the sum of one hundred thousand

Power to
borrow
money.

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A.D. 1911. pounds and for paying the costs of this Act the amount necessary on the security of the said rates and revenues and the money which may be so borrowed shall be a part of the debt affecting the harbour and if after having borrowed the said sums or any part thereof the Trustees pay off the same except by means of the sinking fund it shall be lawful for them again to borrow the amount so paid off and so from time to time and the Trustees may grant to the persons advancing or lending the money so to be borrowed bonds mortgages or otherwise therefor containing an assignation of the said rates and revenues or any part thereof to such persons as a security for the payment of the money so to be borrowed with the interest thereof.

Trustees
 may borrow
 on credit of
 cash account.

169. The Trustees may accept and take from any bank or banking company on the security of the said rates and revenues credit on a cash account to be opened and kept with such bank or banking company in the name of the Trustees according to the usage of bankers in Scotland to the extent of the sum which the Trustees are for the time being authorised to borrow or any part thereof Provided that the whole sum due and owing by the Trustees on such cash account and for money borrowed by them and the existing trustees on bonds or other securities or vouchers of debt shall never when taken together exceed the amount already borrowed at the commencement of this Act and the amount which the Trustees are authorised to borrow under this Act.

Bonds &c.
 to be per-
 sonal estate.

170. All bonds mortgages or other securities or vouchers of debt granted by the existing trustees or to be granted by the Trustees and all money advanced and lent or to be advanced and lent on the security of the rates and revenues of the harbour shall be moveable or personal estate and transmissible as such.

Trustees not
 bound to see
 to execution
 of trusts.

171. The Trustees shall not be bound to see to the execution of any trust whether express implied or constructive to which any bond or other security or voucher of debt already granted or hereafter to be granted by the existing trustees or the Trustees or the money principal or interest thereby secured may be subject and the receipt of the person in whose name any such bond or security or voucher of debt stands in the books of the Trustees shall be a sufficient discharge to the Trustees for any money payable in respect of such bond or security or voucher of debt notwithstanding any trust to which the same

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or the money thereby secured may then be subject and the Trustees shall not be bound to see to the application of the money paid upon any such receipt. A.D. 1911.

172. If the sum contained in any bond or other security or voucher of debt already granted or hereafter to be granted by the existing trustees or the Trustees shall have become transmitted in consequence of the death bankruptcy or insolvency of any creditor or in consequence of the marriage of a female creditor or by any other means than by a transfer according to the provisions of this Act such transmission shall be authenticated by a declaration in writing in the form or as near as may be in the form of Schedule K to this Act annexed and every such declaration shall state the manner in which and the party to whom such bond or security or voucher of debt shall have been so transmitted and shall be made and signed by some credible person before a sheriff or justice of the peace and such declaration shall be left with the clerk who shall thereupon enter the name of the person entitled to such bond or security or voucher of debt under such transmission in the register of transfers and for every such entry the clerk may demand any sum not exceeding five shillings and until such transmission has been so authenticated and entered no person claiming by virtue of any such transmission shall be entitled to receive any portion of the sum contained in any such bond or security or voucher of debt. Transmission of bonds otherwise than by transfer.

173. If such transmission be by the marriage of a female creditor such declaration shall contain a copy of the register of such marriage or other particulars of the celebration or effecting thereof and shall declare the identity of the wife with the holder of such bond or security or voucher of debt and if such transmission has taken place by virtue of any testamentary instrument or by intestacy the probate of the will or the letters of administration or an official copy thereof obtained from any probate court if granted in England or Ireland or a testamentary instrument or testamentary dative if expedient in Scotland or an official extract thereof shall together with such declaration be produced to the clerk and upon such production in either of the cases aforesaid the clerk shall make an entry of such declaration in the said register of transfers. Transmission by marriage and by testamentary instruments.

174. Any person entitled to any such bond or security or voucher of debt may discharge the same and his right and interest therein in favour of the Trustees and every such discharge may Discharge of bonds &c.

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A.D. 1911. be written thereon and may be according to the form contained in the Schedule L to this Act annexed or to the like effect and when signed by the granter thereof shall be valid and effectual to all intents and purposes.

Existing securities not to be prejudiced.

175. Nothing in this Act contained shall be held or construed to alter affect or diminish any mortgage or assignment or other security granted for money borrowed under the Harbour Acts or the Tay Ferries Acts or any of them and which shall be subsisting at the commencement of this Act and all such mortgages or assignments or other securities shall remain valid and sufficient in favour of the holders thereof as if this Act had not been passed.

Notice to be given to creditors before exercising borrowing powers.

176. The power of borrowing the said sum of one hundred thousand pounds conferred by this Act shall not be exercised by the Trustees until they shall have intimated their intention to exercise such power to the creditors holding mortgages or assignments for money borrowed by the existing trustees or the Trustees by notices in writing delivered personally to such creditors or sent by post in registered letters to their respective addresses in the harbour and Tay Ferries registers in order that such creditors may if they think fit receive payment of the amount due to them respectively on such securities within a time to be specified in such notices nor until the Trustees shall have paid the moneys required to be paid by any such creditor by an answer in writing left at the office of the Trustees within two months after the date of delivery or posting of such notices and a certificate under the hands of any two justices of the peace of the county of Forfar that such notices have been given and that the moneys so required to be paid have been paid shall be sufficient evidence that the provisions of this section have been duly observed.

Application of money borrowed.

177. All moneys which shall be borrowed by the Trustees in virtue of this Act other than the moneys which may be reborrowed by them in virtue thereof to repay sums borrowed in virtue of the Harbour Acts and this Act shall be applied for the purposes of the harbour to which such moneys are applicable under this Act being in every case purposes to which capital is properly applicable.

Application of revenues of harbour.

178. The rates to be levied under this Act and the other revenues of the harbour shall be applied in working improving and maintaining the harbour in such manner as shall from time

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to time appear to the Trustees expedient and in carrying into effect the purposes of this Act. A.D. 1911.

179. The Trustees may close the register of transfers of bonds or assignments and vouchers of debt to be kept in accordance with the provisions of section 78 of the Commissioners Clauses Act 1847 incorporated herewith for any period not exceeding fourteen days before the fifteenth day of May and eleventh day of November in each year and any transfer made during the time when such register is closed shall (as between the Trustees and the transferee but not otherwise) be held as made after that time. Closing transfer books.

180. Where the existing trustees have borrowed or the Trustees shall borrow money on bond or mortgage or otherwise for the purposes of the harbour and by any such bonds or mortgage or otherwise have granted or shall grant an obligation for repayment of the principal sums therein contained otherwise than by fixed periodical instalments of principal and interest providing for repayment within sixty years the Trustees shall pay off the money so borrowed within the respective periods following (that is to say):— Sinking fund.

(A) As to money already borrowed at the commencement of this Act within fifty years from the date or dates of borrowing:

(B) As to money borrowed under the provisions of this Act within sixty years from the date or dates of borrowing the same Provided that when revenues are applied for purposes to which capital is properly applicable and are subsequently replaced by borrowed money the money so borrowed shall be deemed to have been borrowed on the date when such revenue was so applied.

For the purpose of paying off the money so borrowed the Trustees shall annually set apart out of the revenues of the harbour (a) a sum equal to two and a half per centum of the money borrowed and outstanding at the commencement of this Act and (b) a sum equal to one sixtieth part of the total amount borrowed under the provisions of this Act as sinking fund to be applied to the repayment of the whole of the moneys so borrowed or to be borrowed and shall apply the said sinking fund and any balance at the credit of the sinking fund existing at

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A.D. 1911. the commencement of this Act in repayment of the moneys secured by such bonds or mortgages or otherwise as the same shall fall due or at any such time as may be agreed with the holders of such bonds or mortgages or otherwise and the said sinking fund may be applied in repayment of any of such bonds or mortgages or otherwise. Provided that if at any time the existing trustees or the Trustees have paid off or shall pay off moneys secured by any such bonds or mortgages or otherwise to a greater extent than the amount for the time being available for that purpose from the sinking fund they may from time to time reborrow the amount so paid off in excess thereof.

Investment
of sinking
fund.

181. The Trustees shall invest the sums by this Act directed to be set apart as a sinking fund in the public or Government funds of Great Britain and Ireland or on heritable security or by way of deposit with any bank in Scotland incorporated under Act of Parliament or by royal charter until such sinking fund shall be applied in manner hereinbefore provided.

Annual
return to
Board of
Trade with
respect to
sinking fund.

182. The treasurer shall within two months after the expiration of each year during which any sum is required to be set apart for a sinking fund under this Act transmit to the Board of Trade a return in such form as may be prescribed by that Board and verified by statutory declaration if so required by them showing the amount which has been invested for the purpose of such sinking fund during the year preceding the making of such return and the description of the securities upon which the same has been invested and also showing the purposes to which any portion of the moneys invested for the sinking fund or any interest thereof has been applied during the same period and the total amount remaining invested at the end of the year and in the event of any wilful default in making such return the treasurer shall be liable to a penalty not exceeding twenty pounds. If it appear to the Board of Trade by such return or otherwise that the Trustees have failed to set apart the sum required by this Act for the sinking fund or have applied any portion of the moneys set apart for that fund or any interest thereof to any purposes other than those authorised by this Act the Board of Trade may by order direct that a sum not exceeding double the amount in respect of which such default shall have been made shall be set apart and invested as part of the sinking fund and such order shall

be enforceable by decree of either division of the Inner House of the Court of Session in Scotland in a summary application presented for that purpose. A.D. 1911.

183. The Trustees may after providing for their working and establishment expenses interest on borrowed money and contributions to the sinking fund set apart annually as a reserve fund out of the rates and revenues of the harbour to be received by them under the authority of this Act a sum of not more than two pounds ten shillings per centum of such rates and revenues which reserve fund shall from time to time be applied by the Trustees in their discretion for harbour improvements or to meet and provide against risks and losses by injury to or destruction of works other than ordinary wear and tear or to defray such claims of compensation or reparation consequent upon accidents or damages sustained that may be legally competent against the Trustees or for any other lawful purpose duly sanctioned by the Trustees at any meeting specially called for that end and the Trustees may invest the moneys so set apart when the same are not required in such way and manner as they may deem expedient and accumulate the interest thereof with the principal Provided always that the Trustees shall keep a special account applicable to such reserve fund which shall be balanced annually and that the said fund shall never be allowed to accumulate so as to exceed at any time the sum of twenty thousand pounds. Reserve fund.

184. The respective lenders of money borrowed under the provisions of the Harbour Acts or this Act for the purposes of the harbour shall be entitled one with another to their respective proportions of the rates and other revenues of the harbour according to the respective sums contained in and due under the mortgages assignments bonds or other securities held by them and to be repaid such sums with interest without any preference one above another by reason of the priority of advancing such moneys or of the dates of any such mortgages assignments bonds or other securities. Ranking of securities.

185. Any person lending or paying money to the Trustees shall not be bound or entitled to inquire as to the observance by them of any of the provisions of the Harbour Acts or the Tay Ferries Acts or of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of such money or of any part thereof. Protection of lenders from inquiry.

A.D. 1911.

PART XVII.

TAY FERRIES.

Vesting of
Tay Ferries
in Trustees.

186. On and after the appointed day the Tay Ferries and the ferries and passages across the River Tay between Newport and Woodhaven in the county of Fife and Dundee in the county of Forfar and the right of ferry and right of ferry harbours or landing-places at Dundee Newport and Woodhaven respectively and the right of ferry along the coast between Ferry-Port-on-Craig and Balmerino on the south and from Broughty Castle to Invergowrie Burn on the north (exclusive of Ferry-Port-on-Craig Broughty Castle and Balmerino) and the power of regulating and the jurisdiction over all ferries along the said lines of coast on both sides of the River Tay (exclusive of Ferry-Port-on-Craig and Broughty Castle) and also over Balmerino with the whole powers and privileges necessary or appertaining thereto with the harbours piers jetties landing-places houses buildings lands roads accesses and other works and conveniences constructed or acquired by or vested in the existing trustees and the whole property of the existing trustees in connection with the Tay Ferries and also the whole steamboats pinnaces and other plant matters and things which are now used in the working or management of the Tay Ferries or which are vested in or held or possessed or worked or managed by the existing trustees shall be transferred to and shall vest in the Trustees and shall become part of their undertaking under this Act.

Trustees to
maintain
ferry har-
bours and
piers.

187. The Trustees shall maintain and may improve the harbours basins piers jetties and landing-places on either side of the River Tay at and adjacent to the Craig Pier or ferry harbour of Dundee on the north side and at and adjacent to the ferry harbour of Newport on the south side respectively and the whole undertaking of the Tay ferries together with the superintendents houses lighthouses and places for the shelter of passengers and boatmen at or adjacent to each of the said ferry harbours of Dundee and Newport and other property connected with the said ferries now vested in the existing trustees and by this Act transferred to and vested in the Trustees and may improve widen and keep in repair the roads to and from such harbours basins piers jetties and landing-places.

Power to
maintain one
or more lines
of ferry.

188. The Trustees may maintain and carry on the ferry along the line of coast from Broughty Castle to Invergowrie

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Burn on the north to the ferry harbour of Newport on the south side of the River Tay exclusively and the vessels belonging to the Trustees may sail from and resort to the old harbours of Woodhaven and Newport or either of them. A.D. 1911.

189. The Trustees may purchase build hire keep and maintain a sufficient number of vessels of such construction or description as they may deem expedient and may carry on the Tay Ferries themselves or let the same by public auction for any period not exceeding five years and the Trustees may license the person taking a lease of the Tay Ferries to use the same on such terms and conditions as they think fit to prescribe or if the Trustees shall deem it more expedient they may grant licences for any period not exceeding five years to any person who may be willing to furnish vessels for the passage of the Tay Ferries on such terms and conditions as may be agreed on by and between the Trustees and such person and it shall not be lawful for any vessel to ply for hire on any of the ferries or passages vested in the Trustees or over which they have jurisdiction without a licence from the Trustees and the owner of every vessel and every person so plying without a licence shall for every such offence be liable to a penalty not exceeding five pounds. Trustees
may keep
vessels.

190. From and after the appointed day the Trustees shall subject to the provisions in this section mentioned (wind sand-banks and weather permitting and casualties excepted) work the ferries between Dundee and the ferry harbour of Newport so that there shall be at least sixteen trips each lawful day and five trips each Sunday from Dundee to Newport and at least sixteen trips each lawful day and five trips each Sunday from Newport to Dundee but the Trustees may restrict or limit the said number of trips per day in the event of the Trustees finding and resolving and publishing their resolution once a week for three successive weeks in a newspaper published in Dundee that the said number of trips is unnecessary for the service of the public but if fewer trips be then or at any time thereafter fixed the county council or the county council of the county of Fife or the corporation or any ten persons regularly using the ferries may within fourteen days after the reduction commences appeal to the Secretary for Scotland against the same who shall receive and hear such appeal and either quash the resolution reducing the number of trips or Provision as
to working
ferries.

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A.D. 1911. vary modify or confirm the same Provided that the resolution of the Trustees if not appealed against or the judgment of the Secretary for Scotland in any such appeal shall be the rule applicable to the subject matter of the resolution or judgment for three years from the date thereof respectively at the expiry of which three years it shall be open to the Trustees again to alter or vary the same on resolving and publishing their resolution as aforesaid and to the said county councils the corporation or ten persons aforesaid to appeal as aforesaid and so on at the expiry of every three years thereafter.

To prevent throwing ballast into harbours.

191. Every person who throws or empties any ballast dust ashes or rubbish shingle stones or other things into any harbour being part of the Tay Ferries or into any of the entrances thereto or digs or takes away any ballast shingle stones or other things therefrom to the prejudice of any of the harbours piers jetties landing-places or works of the Trustees or does any act whereby the same may be injured obstructed or interrupted shall for every such offence be liable to a penalty not exceeding ten pounds besides making payment to the Trustees of the expense incurred by them in taking up and removing all such ballast dust ashes rubbish shingle stones and other things and repairing the damage done by such person.

Surplus lands may be disposed of.

192. The Trustees may lease feu sell or otherwise dispose of any lands vested in them by this Act which may not be required for the purposes of the Tay Ferries or of their undertaking for such periods and on such terms and conditions and for such prices feu-duties rents or other consideration as they think fit and all capital moneys received by the Trustees for or in respect of the lands so leased feued sold or disposed of shall be applied in paying off money borrowed by the Trustees for the purposes of the Tay Ferries and all revenue derived from such lands shall be applied as part of the income of the Tay Ferries.

Repeal of existing Tay Ferries rates and commencement of new rates.

193. From and after the commencement of this Act the Schedules of Rates annexed to and authorised by the Tay Ferries Acts or any of them shall be and are hereby repealed and in lieu thereof the rates specified in Schedule J annexed to and authorised to be levied by this Act shall commence and be leviable.

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194. It shall be lawful for the Trustees to levy or to order or direct to be levied at the ferries of Dundee Newport or Woodhaven respectively and at the piers and ferry harbours vested in the Trustees for or in respect of the conveyance of passengers animals and goods by the ferry vessels from Dundee to Newport or Woodhaven or from Newport or Woodhaven to Dundee and also along the whole line of coast on both sides of the Tay over which the right of ferry vested in the Trustees extends the rates specified in the Schedule J to this Act annexed.

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Rates to be
levied at
Tay Ferries.

195. All animals and goods conveyed by the said ferry vessels and not particularly enumerated in the said Schedule J shall only be liable to rates equal to the rates specified in the said schedule in respect of the conveyance of such animals and goods as in the judgment of the Trustees may be nearest in description and value to such unenumerated animals and goods.

Rates on
goods not
enumerated.

196. With respect to alterations or variations of the rates by this Act authorised to be levied at the Tay Ferries the Trustees may from time to time as hereinafter mentioned exercise the following powers (that is to say):—

Power to
vary Tay
Ferries
Rates.

They may increase the rates or any of them specified in the Schedule J to this Act annexed provided that such addition shall not at any time exceed one third part of such rates respectively:

They may reduce the rates or any of them specified in the said schedule or as so increased:

They may increase the said rates again in the same manner provided the said rates when so increased do not exceed the rates specified in the said schedule with one third part more in addition thereto:

Provided that any such increase or reduction be resolved on at a special meeting of the Trustees duly called for the purpose by at least two thirds of the whole body of Trustees and be confirmed at another special meeting held not sooner than one month thereafter by at least two thirds of the Trustees present at such subsequent meeting Provided further that public notice shall be given in at least one newspaper published in Dundee of every resolution of the Trustees to increase or reduce any rate or rates and that no such reduction or increase shall take

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A.D. 1911. effect until the expiration of twenty-one days after the first publication of such notice.

Appeal to
 Secretary for
 Scotland as
 to increase
 of rates.

197. In the event of the Trustees at any time increasing the rates under Schedule J for or in respect of the conveyance of passengers animals and goods by the ferry vessels from Dundee to Newport or Woodhaven or from Newport or Woodhaven to Dundee or along the line of coast on both sides of the Tay over which the right of ferry vested in the Trustees extends or in the event of the Trustees refusing or delaying to credit the Tay Ferries with any sum or amount properly accruing to the ferries or in the event of the Trustees failing to reduce such rates should the revenues and state of the ferries reasonably and properly admit of any such reduction it shall be lawful for the county council the county council of the county of Fife the corporation or any ten persons regularly using the Tay Ferries to appeal to the Secretary for Scotland against any such increase refusal or delay or non-reduction who shall hear and dispose of such appeal and the Trustees shall carry out and give effect to any judgment or judgments which may from time to time be pronounced by the Secretary for Scotland on any such appeal.

Rates on
 passengers
 goods &c.
 from and to
 Ferry-Port-
 on-Craig and
 Broughty
 Castle.

198. It shall be lawful for the Trustees from time to time to order and direct to be levied for all passengers animals and goods in vessels arriving at the ferry harbours from the ferries of Ferry-Port-on-Craig and Broughty Castle or sailing to either of these last-mentioned ferries from the ferry harbours the same rates and duties as the Trustees shall have ordered to be levied at the ferries vested in them.

One sixth of
 rates to be
 paid to
 Trustees.

199. One sixth part of the rates and duties levied as afore- said for all passengers animals and goods in vessels arriving at the ferry harbours from either of the ferries of Ferry-Port-on-Craig and Broughty Castle shall be paid over without deduc- tion to the Trustees by the persons having charge of the said vessels for and in consideration of the accommodation which such vessels shall receive at the ferry harbours.

Penalties in
 case of full
 rates not
 being taken
 or one sixth
 of rates not
 paid over.

200. If the persons having charge of the said vessels shall fail or refuse to levy the full amount of the rates and duties so ordered to be levied at the ferries as aforesaid or to pay over one sixth part thereof to the Trustees as hereinbefore provided they shall forfeit and pay to the Trustees not only a sum equal

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to that part of the said rates and duties which they shall so fail or refuse to levy or to pay over but also a penalty not exceeding five shillings for every such evasion. A.D. 1911.

201. It shall be lawful for the Trustees to order and direct to be levied for all passengers animals and goods in vessels arriving at the ferry harbours or any of them from the ferry of Balmerino or sailing to that ferry from the ferry harbours or any of them the same rates and duties as are by this Act authorised to be levied at the ferry harbours and one sixth part of the rates and duties authorised to be levied by this Act shall be payable to the Trustees in consideration of the accommodation which the said vessels shall receive at the ferry harbours as aforesaid situate within the right of ferry and the remaining five sixth parts thereof shall be leviable by the persons having charge of the said vessels Provided that if such persons shall evade this provision by failing or refusing to levy the full amount of the five sixth parts of the said rates and duties they shall forfeit and pay to the Trustees not only a sum equal to that part of the said rates and duties which they shall so fail or refuse to levy but also a penalty not exceeding five shillings for every such evasion.

Rates on
passengers
goods &c.
to and from
Balmerino.

202. The several rates authorised to be levied by this Act at and in respect of the Tay Ferries shall at all times be charged equally and impartially and after the same rate in respect of the same description of passengers animals vessels and goods and any increase or reduction of the said rates shall be made so as not to operate directly or indirectly in favour of or against any particular person or company.

Ferry rates
to be charged
equally.

203. It shall be lawful for the Trustees to compound or contract with any person or company for the conveyance of passengers animals and goods across the Tay Ferries or any of them by the week month or year as may be agreed on at such rates and on such conditions as the Trustees may think reasonable and proper Provided that such power of compounding or contracting shall be exercised equally towards all persons and companies and that a like power of compounding or contracting shall extend and apply to all passengers animals and goods in vessels arriving at any of the ferry harbours from the ferries of Ferry-Port-on-Craig and Broughty Castle or sailing from either of these last-mentioned ferries to any of the ferry harbours.

Power to
compound
for con-
veyance of
passengers
and goods.

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Penalty on
collectors
taking more
than rates.

204. Every collector or other person employed by the Trustees who shall demand or take any fee or reward or demand or take a greater rate from any person than the rate authorised by this Act or by any byelaw rule or regulation at the ferries in force or made in pursuance of this Act or shall demand and take any rate from any person who shall be exempt from the payment thereof and claim such exemption or on the legal rate being paid or tendered shall unnecessarily detain any passenger or any animal or goods shall for every such offence be liable to a penalty not exceeding five pounds.

Penalty for
refusing to
pay rates or
assaulting a
collector.

205. Every person who delays or refuses to pay the freight or the rates leviable at the ferries under the authority of this Act when the same shall be demanded not being by this Act exempted from the payment of such freight or rates shall for every such offence be liable to a penalty not exceeding forty shillings and every person who assaults or interrupts in the collection of the said rates any person duly authorised to receive the same shall for every such offence be liable to a penalty not exceeding five pounds.

Trustees em-
powered to
appoint
superinten-
dents officers
&c.

206. It shall be lawful for the Trustees from time to time to appoint a superintendent or superintendents of the Tay Ferries or any part thereof and such other officers and servants as they shall deem necessary for carrying this Part of this Act into effect and to pay to such superintendent or superintendents officers and servants such salaries allowances or remuneration as may be fixed by the Trustees and to confer on such superintendent or superintendents officers or servants as the Trustees may think fit such powers as shall be necessary for enforcing the observance of this Act and the byelaws rules and regulations in force or to be made by the Trustees for the management of the Tay Ferries and the Trustees may dismiss any such superintendent officer or servant at pleasure and may appoint another person to fill the vacancy.

Prohibiting
sale of li-
quors.

207. It shall not be lawful for any superintendent or other officer or servant appointed by the Trustees or in their employment to sell ale beer or spirituous liquors nor shall any ale beer or spirituous liquors be sold in any boats or premises for the time being belonging to or leased by the Trustees for the purposes of the Tay Ferries.

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208. The Trustees may (in addition to the moneys already borrowed under the Act of 1873) from time to time borrow for the purposes of the Tay Ferries on the security of the Tay Ferries rates by this Act authorised to be levied and the rates and revenues of the harbour any sums of money not exceeding in the whole fifteen thousand four hundred and sixty-five pounds and fivepence being the sum remaining unborrowed under the Act of 1873 and to grant mortgages or assignments for the moneys so to be borrowed and the money which may be so borrowed under the authority of this Act shall be a part of the debt on and affecting the harbour and the rates and revenues thereof as well as a debt on and affecting the rates by this Act authorised to be levied at the Tay Ferries and the money so borrowed shall be applied for the purposes of the Tay Ferries to which capital is properly applicable.

A.D. 1914.

Power to
borrow
money for
Tay Ferries.

209. All moneys to be borrowed under the authority of this Act for the purposes of the Tay Ferries shall be secured by the granting of mortgages or assignments as before provided and such securities may be created and granted and may be transferred and discharged in the same manner and form as is directed by this Act with respect to the money borrowed or to be borrowed under the authority of this Act for the purposes of the harbour and all the provisions of this Act with respect to borrowing money for the purposes of the harbour and granting securities and the transfer or assignment of securities and the repayment and discharge of money so borrowed shall extend and apply to the moneys by this Act authorised to be borrowed for the purposes of the Tay Ferries and the respective holders of mortgages or assignments granted by the existing trustees under the authority of the Harbour Acts or the Tay Ferries Acts or any of them or to be granted by the Trustees under this Act shall be entitled one with another to their respective proportions of the rates and duties and other revenues comprised in such mortgages or assignments respectively according to the respective sums in such mortgages or assignments specified to be advanced and to be repaid the sums so advanced with interest without any preference one above another by reason of the priority of advancing such moneys or of the dates of any such mortgages or assignments respectively.

Security for
money bor-
rowed for
purposes of
Tay Ferries.

210. The Trustees shall annually set apart as a sinking fund out of the rates and revenues to be received by them under the

Sinking fund
for Tay
Ferries.

A.D. 1911. authority of this Act a sum equal to two pounds ten shillings per centum per annum on the moneys borrowed under the authority of the Tay Ferries Acts and this Act for the purposes of the Tay Ferries and such sinking fund and any balance at the credit of the sinking fund existing at the commencement of this Act shall be applied by the Trustees in paying off borrowed money for the purposes of the Tay Ferries until the same be wholly paid off and to no other purpose whatsoever Provided always that if at any time the Trustees have paid off or shall pay off money borrowed for the purposes of the Tay Ferries to a greater extent than the amount for the time being available for that purpose from the said sinking fund they may from time to time reborrow the amount so paid off in excess thereof.

Tay Ferries
reserve
fund.

211. The Trustees may out of the revenues of the Tay Ferries set apart annually as a reserve fund such sum as they think fit and may accumulate the interest thereof with the principal and such reserve fund shall not exceed at any one time the sum of twelve thousand pounds and the Trustees may use and apply the same for any of the purposes of the Tay Ferries.

Investment
of Tay
Ferries sink-
ing fund
and annual
return to
Board of
Trade.

212. The provisions of the sections hereof of which the marginal notes are "Investment of sinking fund" and "Annual return to Board of Trade with respect to sinking fund" shall also apply to the sinking fund to be set apart under the provisions of the section hereof of which the marginal note is "Sinking fund for Tay Ferries."

Debts
charged on
harbour
rates to be
also charged
on Tay
Ferries
rates.

213. The rates by this Act authorised to be levied at the Tay Ferries shall be liable to and be charged with all the debts claims and demands whatsoever to which the rates leviable and payable under the Harbour Acts and this Act relating to the harbour or any of them are or shall be subject and liable under the provisions thereof and all mortgages and assignments or other securities granted under the authority of the said Acts or any of them or this Act shall be as effectually charged upon the rates by this Act authorised to be levied at the Tay Ferries as if such rates had been specifically and expressly conveyed and charged by such mortgages or assignments or other securities.

Application
of funds and
revenues.

214. The Trustees may apply any part of the moneys borrowed or received or to be borrowed or received by them for the purposes of the Tay Ferries under the provisions of this Act

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and the rates and other revenues of the harbour and the Tay Ferries in working improving and maintaining the Tay Ferries and works connected therewith in such manner as shall from time to time appear to the Trustees expedient. A.D. 1911.

215. The rates levied and the money received and paid at and in respect of the Tay Ferries shall be included in the accounts kept by the Trustees and in the annual account to be prepared and transmitted by the Trustees to the sheriff clerk as provided by the Harbours Docks and Piers Clauses Act 1847. Provided that the accounts of the Trustees shall be so kept as to show separately the receipts and expenditure of and applicable to the Tay Ferries and the amount of borrowed money paid or applied for or in connection with the said ferries such receipts embracing all revenue of every kind arising from the working use and management of the ferries and such expenditure embracing all interest on borrowed money paid or applied for or in connection with the Tay Ferries the amounts payable to sinking fund and all expenses and disbursements attendant upon the working use and management of the ferries including such sum year by year as the Trustees shall fix for depreciation of steamboats and plant and which shall be carried to a depreciation account and applied from time to time as occasion may require in replacing or restoring steamboats and plant. Tay Ferries rates to be included in harbour accounts.

216. It shall not be lawful for the Trustees to debit the Tay Ferries with any charges or expenses for any extension or alteration of the harbour or with any charges or expenses for or in connection with dredging the ferry harbour of Dundee and the accesses thereto so far as such dredging may be necessary for the accommodation of the traffic of the said ferry harbour exceeding the sum of two hundred and fifty pounds in any one year and if in any one year no such dredging is executed then no charge shall be made for dredging for such year and if in any year the expense of such dredging shall be less than two hundred and fifty pounds the sum actually expended for dredging shall alone be charged in that year and in no year shall the expenditure on such dredging beyond two hundred and fifty pounds of any previous year be brought into account or charged and it shall not be lawful for the Trustees to make any alteration on the existing ferry landing-places at Dundee and Newport which may be less convenient to the public than the existing landing-places and the Secretary for Scotland shall hear and Appeal to Secretary for Scotland as to accounts &c.

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A.D. 1911. dispose of any appeal in these or any of these respects at the instance of the county council the county council of the county of Fife the corporation or any ten persons regularly using the Tay Ferries and such county councils or corporation or ten persons may at any time appeal to the Secretary for Scotland in or applicable to the aforesaid matters or any of them and the Trustees shall carry out and give effect to any judgment or judgments which may from time to time be pronounced by the Secretary for Scotland on any such appeals.

Payment of
costs of
Secretary
for Scotland.

217. All costs and charges paid or incurred by the Secretary for Scotland in or with respect to any appeal to the Secretary for Scotland under the provisions of this Act shall be paid to the Secretary for Scotland by the Trustees and the Appellants or either of them as the Secretary for Scotland may in his discretion determine and the amount of such costs and charges shall be a debt due from the Trustees and the Appellants or either of them as the Secretary for Scotland may determine to the Crown and shall be recoverable accordingly Provided that the Secretary for Scotland shall not be bound to receive or hear any such appeal unless and until sufficient security to his satisfaction be found by the Appellants for the payment of any such costs and charges which the Secretary for Scotland may award against the Appellants.

Portion of
ferry debt
transferred
to harbour.

218. The sum of twenty thousand pounds being part of the debt which affected or was charged or chargeable on or against the Tay Ferries having been transferred by the Act of 1889 to and made chargeable against the undertaking of the existing Trustees other than the Tay Ferries the same shall continue to be charged against the undertaking of the Trustees other than the Tay Ferries and the accounts shall be so kept and made accordingly.

Rights of
ferry be-
longing to
Earl of
Home.

219. And whereas the Right Honourable Charles Alexander Earl of Home Baron Douglas of Douglas K.T. as the successor to the estates of the Right Honourable Archibald Lord Douglas deceased claims a right to license the boats on the said ferries of Dundee Newport and Woodhaven and to levy certain small duties or customs on the boats plying there and on passengers goods and other things conveyed therein from which the said Earl of Home at present receives the sum of thirteen pounds ten shillings sterling annually and it is expedient that any

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such right should be vested in the Trustees. Therefore without prejudice to the general powers in this Act contained the said rights of ferry and of levying certain duties shall be and are hereby vested in the Trustees they being bound always to pay to the said Earl of Home and his heirs and successors to the said rights the aforesaid sum of thirteen pounds ten shillings sterling annually therefor beginning the first year's payment at the expiry of one year from the date of the last payment prior to the commencement of this Act or in the option of the Trustees they are hereby empowered to purchase and acquire from the said Earl of Home or his heirs or others having right thereto and he and they is and are hereby authorised and required to sell and convey to the Trustees all right of licensing the passage boats on the said ferries and of levying the said duties or customs on the boats passengers goods and others and every right of whatever kind or description over and concerning the said ferries in any way pertaining and belonging to the said Earl of Home and his heirs or others possessing or claiming such rights upon being paid the value of the foresaid annual rent of thirteen pounds ten shillings.

A.D. 1911.]

220. Nothing in this Act contained shall prejudice or affect any right of levying shore dues legally competent to William Berry of Tayfield in the county of Fife or his heirs or successors or the judgment of the Court of Session in Scotland dated the twenty-third and signed the twenty-fourth days of February one thousand eight hundred and thirty-two in the action of reduction improbation and declarator at the instance of the magistrates and town council or managers of the burgh of Dundee and others against William Berry of Tayfield and David Brand his tacksman both now deceased.

Saving as to shore dues.

221. Nothing in this Act contained with reference to any consent by the Board of Trade shall be deemed to alter prejudice or affect any right of property of His Majesty or of the Trustees or of any other person in any part of the alveus or shore of the River or Firth of Tay in or upon which the Tay Ferries are situate or any of the works connected therewith have been or may be constructed under the authority of the Tay Ferries Acts or this Act.

Rights of property in alveus of River Tay not to be affected.*

222. Without prejudice to any existing right of His Majesty and save as provided by the Army Act nothing in this Act shall extend to authorise any ferry rates or tolls to

As to rates &c. on persons &c. in service of Crown.

A.D. 1911 he demanded or received for the conveyance of any person when on duty in the service of the Crown (including in such expression any Government Department) or his baggage or of any goods for the service or being the property of the Crown or of any mail bag as defined by the Post Office Act 1908.

PART XVIII.

BYELAWS AND CRIMES AND OFFENCES.

Power to
make bye-
laws.

223. In addition to the powers of making byelaws contained in any other enactment enabling the Trustees to make byelaws the Trustees may from time to time make such byelaws applicable to the Harbour and to the Tay Ferries respectively as they shall think fit for all or any of the purposes following (that is to say) :—

- (1) For licensing persons to act as lumpers stevedores boatmen porters or barrowmen at the harbour regulating their conduct and the remuneration to be received by them :
- (2) For regulating carriages carts motors and other vehicles as well public as private coming or resorting to the harbour or the approaches thereto and the drivers conductors and persons in charge thereof or attendant thereon :
- (3) For preserving of order in the embarkation transhipment and landing of passengers horses cattle sheep and other animals carriages and goods :
- (4) For the safe custody of fierce and wild animals imported transhipped or exported or otherwise being on the premises of the Trustees and for providing for the manner of their removal and the kind of case or cage for holding the same and the materials used in its construction :
- (5) For regulating the place and manner in which combustible explosive detonating or other dangerous matters or things shall be landed transhipped or be deposited and kept on the quays and the notice to be given to the Trustees previously to their being brought into any part of the docks warehouses quays or any part of the land of the Trustees :

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- (6) For regulating the conduct of all persons working or employed at the harbour and for prohibiting all such persons from carrying on their persons or in any part of their clothing or otherwise matches or other articles or apparatus capable of being used for producing combustion or which might cause fire and for authorising police constables and all officers of the Trustees to search all such persons as they may suspect to be in possession of any such matches or other articles or apparatus and to take and destroy the same For the purposes of this subsection the harbour shall be held to consist of the following viz. The docks including graving docks and patent slip and the locks jetties and tidal harbours all at Dundee and the quays and piers used in connection therewith as also the sheds and warehouses of the Trustees on or adjoining to the said piers jetties and quays and all ships or vessels from time to time within any of the said docks including as aforesaid or within any of the said locks or tidal harbours or at any of the said jetties : A.D. 1911.
- (7) To prohibit and prevent betting or the making or settling of bets of any kind within the limits of the harbour :
- (8) To prohibit (notwithstanding anything contained in this or any other Act) the sale or retail on Sundays of intoxicating liquors on board of any vessel within the limits of the harbour :
- (9) To prohibit or regulate the carriage or conveyance of carcases of animals or offensive matter of any kind on the steam ferry boats or other boats of the Trustees or their lessees or licensees on or over the Tay Ferries or in the harbour :
- (10) To regulate dredging for mussels or other shell fish or for any other purpose on or near to any electric or other cable or main or other apparatus of the Trustees within the harbour :

Provided always that the penalty for breach of any byelaws made under this section shall not exceed forty shillings Provided further that all such byelaws shall be confirmed by the sheriff in terms of the Harbours Docks and Piers Clauses Act 1847.

A.D. 1911.

Persons
offending
against bye-
laws to be
also liable
for damage
&c.

Penalty for
smoking in
dock &c.

Power to
provide
places for
smoking.

Penalties on
evading
rates.

Prosecution
for offences
under Act or
byelaws.

224. Any person offending against any byelaw shall in addition to the penalty if any thereby incurred be also liable to make good the damage arising directly or indirectly from such breach not only to the Trustees but also to any other person whose vessel goods or property may be so damaged.

225. If any person shall at any time smoke tobacco or any herb or substance whatever the same may be in any shed warehouse or workshop erected or to be erected taken or held in lease by the Trustees or on or in any dock tidal harbour slip jetty quay pier or wharf belonging to them or on board any vessel therein or moored thereat or adjacent thereto the person so offending shall for every such offence be liable to a penalty not exceeding forty shillings.

226. The Trustees may provide and set apart on their own lands at and within the harbour covered shelters or other covered places within which smoking may take place under and subject to such rules and regulations as the Trustees may from time to time make alter and revoke and none of the provisions of the section hereof of which the marginal note is "Penalty for smoking in dock &c." prohibiting smoking of tobacco or any herb or substance within the harbour shall apply to smoking within such covered shelters or covered places nor shall any byelaws authorised by this Act apply thereto except in so far as the same may be thereby expressly declared so to apply.

227. If the master or owner of any vessel or the owner of any goods imported into transhipped in or exported out of the harbour shall by any means whatsoever at any time delay or refuse or elude or evade or attempt to elude or evade or neglect or omit to pay any of the rates specified in any of the schedules hereunto annexed every person so eluding or evading or attempting to elude or evade or neglecting or omitting payment as aforesaid shall for every such offence forfeit and pay to the Trustees by way of penalty any sum not exceeding twenty pounds.

228. All persons committing any contravention of or offence declared by this Act or any breach of any byelaw made or adopted by the existing trustees or the Trustees wheresoever the same shall be committed may be apprehended or taken into custody prosecuted dealt with tried and punished in the same manner as if such contravention offence or breach had

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been committed or had been charged to be committed within the police limits of the burgh and as if such breach were a crime or offence punishable by public general statute or common law. A.D. 1911.

229. The magistrates and all constables of the burgh shall have all and such like powers and jurisdiction as regards contraventions of and offences declared by this Act or by any byelaw of the existing trustees or the Trustees and as regards offences and breaches of byelaws and as regards all crimes or offences at common law or otherwise committed within any part of the harbour as they have and are entitled to exercise for the time being within the burgh as regards any crimes or offences committed within the burgh and all such contraventions or offences and breaches of byelaws shall be dealt with prosecuted and followed forth to a conviction and conclusion at the instance of the same prosecutor and in the same way and by the same means and under similar procedure and all penalties and forfeitures shall be applied to the same purposes as is for the time being provided with reference to such penalties and forfeitures within the burgh. Provided always that nothing in this section contained shall confer upon the magistrates or the constables of the burgh any jurisdiction in the county of Fife. Jurisdiction
of magis-
trates.

230. The Trustees may treat and agree with all persons having interest in regard to the sum to be paid annually or otherwise by the Trustees as the expense of trying all cases arising under this Act in the ordinary police court of the burgh or for the use of the cells or lock-up houses belonging to the burgh or for the management and administration of the police of the harbour as a separate undertaking and in case any dispute or difference shall arise in regard to such expense such dispute or difference shall be referred to the sheriff whose award in such matters shall be final. Provided that nothing in this section shall prejudice or affect the agreement secondly set forth in the Second Schedule to and confirmed by the Dundee Street Tramways Recreation Grounds Police and Improvement Act 1887. Trustees to
defray
expense of
police court
&c.

PART XIX.

MISCELLANEOUS.

231. The Trustees may at their discretion reward any official or servant for meritorious services and may make Allowances
and dona-
tions.

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A.D. 1911. provision for any official or servant who may at any time be disabled in the execution of his duty and the Trustees may grant yearly or other allowances to any official or servant who after long service may be unfitted for the execution of his duty and to the widows children and other persons dependent on any deceased official or servant who shall have been in the employment of the existing trustees or of the Trustees at the time of his death and the Trustees may give donations contributions or subscriptions to such public institutions or charities as the Trustees in their discretion think fit Provided that in no year shall the total amount of payments made under this section exceed the sum of one thousand pounds The words "official" and "servant" shall for the purposes of this section mean an official or servant in the exclusive service of the existing trustees or the Trustees and in the receipt of a salary or wages.

Commuting
duty on
Scotch coal.

232. The Trustees may and are hereby authorised to enter into an agreement with the corporation whereby the Trustees may commute the duty leviable by the corporation as patrons of the Kirk Fabric Fund and of the hospital of the burgh upon all Scotch coal coming into the harbour reserved in a Disposition granted by the magistrates and town council of Dundee in favour of the Trustees of the harbour dated the thirteenth day of April one thousand eight hundred and forty-one upon such terms and conditions and for such amount as may be agreed upon between the Trustees and the corporation.

Proclama-
tions and
orders.

233. The Trustees may if they think fit make and issue proclamations and orders for regulating the traffic upon or closing any part or parts of the harbour upon ceremonial or other similar occasions when there is likely to be extraordinary traffic in the harbour such proclamation or order to remain in force for such time as the Trustees may determine which period of time shall appear on the face of such proclamation or order and the proclamation or order shall be issued by advertisement in any daily newspaper published in Dundee and by being affixed to such part or parts of the harbour as the Trustees may determine at least twenty-four hours before the same shall come into force and any person or persons contravening any of the provisions of such proclamation or order shall for every such contravention be liable to a penalty not exceeding five pounds.

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234. It shall be lawful for the Trustees to pave light watch and cleanse all the streets quays piers jetties docks and other places within the harbour or precincts thereof in such manner as they shall deem necessary and also to erect and provide in some convenient situations such buildings as they may deem requisite for the reception and custody of one or more fire engines water carts and other apparatus for the prevention and extinguishing of fires in the said harbour or docks and from time to time to alter the situations of the said fire-engine stations and the expenses thereof and of such paving lighting watching and cleansing shall be defrayed by the Trustees out of the rates and duties authorised by this Act Provided that nothing in this section shall prejudice or affect the Agreement with respect to the matters referred to in this section firstly set forth in the Second Schedule to and confirmed by the Dundee Street Tramways Recreation Grounds Police and Improvement Act 1887.

A.D. 1911.
 For paving
 lighting &c.
 of harbour.

235. The whole dung fulzie soil dirt ashes and filth within the limits of the harbour and precincts thereof shall be and is hereby vested in the Trustees and it shall be lawful to the Trustees to gather and carry off or cause to be gathered and carried off the said dung fulzie soil dirt ashes and filth so vested in them of and from the streets piers quays jetties and other property within the harbour and precincts whether in lock-fast places or not and whether occupied by themselves or by others (excepting horse and cow dung only collected in a stable or byre within the precincts of the harbour which if wholly unmixed with any other dung or substance or thing shall belong to the owner or custodier of such horse or cow) and to deposit the said dung soil and others in such suitable place as they shall think fit and to sell and dispose of the same to such persons as may be willing to purchase the same and that in such manner as the Trustees may think fit and the money thence arising shall make part of the funds for the purposes of this Act.

Dung &c.
 vested in
 Trustees.

236. If any person other than the lessees or persons employed by them or persons authorised by the Trustees or some person employed by them shall collect carry away or sell or otherwise apply to his own purposes or throw or convey into any part of the harbour or into the river or firth of Tay within the precincts of the harbour any such dung fulzie soil dirt ashes filth and rubbish so vested in the Trustees he shall

Penalty for
 other persons
 collecting or
 selling dung
 or throwing
 it into Tay.

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A.D. 1911. — be liable to a penalty over and above the value of the same of not exceeding five pounds for each offence. Provided also that it shall be lawful to the Trustees to make and establish from time to time general regulations or to alter and amend the existing regulations in relation to the gathering collecting conveying depositing retaining and accumulating of the dung fulzie soil dirt ashes filth and rubbish within the limits of the harbour.

Dung may be leased.

237. It shall be lawful for the Trustees from time to time to grant leases for any period not exceeding three years of the dung fulzie soil dirt ashes filth and rubbish hereby vested in them either with or without such dung fulzie soil dirt ashes filth and rubbish as shall come to belong to them by forfeiture such leases being made by public roup to the highest bidder under such limitations restrictions and conditions and after such previous advertisement as to the Trustees shall appear proper.

Duties of harbour scavengers to be performed under a penalty.

238. The persons employed by or contracting from time to time with the Trustees for cleansing the streets quays piers jetties and other property south of the line of the foot pavement made on the north side of Dock Street or for removing the dung fulzie soil dirt ashes filth and rubbish from any house warehouse shipbuilding or timber yards smithies or other premises therein shall by themselves or their servants every lawful day and at such times and in such manner as the Trustees may from time to time appoint collect together all dung fulzie soil dirt ashes filth and rubbish from the streets piers quays jetties and other properties and from all houses warehouses shipbuilding yards and all other premises whatever within the limits of the harbour or precincts thereof and shall carry away all such dung fulzie soil dirt ashes filth and rubbish so collected to such place as shall be appointed by the Trustees for the depositing of the same and if any such persons fail to remove any dung fulzie soil dirt ashes filth or rubbish which he shall contract or be employed to remove at the time or in the manner prescribed by the Trustees for that purpose or shall deposit any of such dung fulzie soil dirt ashes filth or rubbish in any other place than such as shall be appointed by the Trustees for that purpose he shall for every such offence be liable to a penalty not exceeding ten pounds.

Penalty for obstructing scavengers.

239. Every person who may prevent or obstruct or in any way interfere with any contractor or other person employed by

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the Trustees in collecting or removing any dung fulzie soil dirt ashes filth or rubbish which such lessees or their contractor servants or other person are hereby authorised to remove shall be liable to a penalty not exceeding five pounds for each offence. A.D. 1911.

240. All bonds and mortgages made and granted by the Trustees shall be sealed with the common seal and signed by two Trustees and by the clerk and the treasurer. Signing of bonds &c.

241. Nothing in this Act contained shall extend or be construed to extend to take away diminish prejudice change or affect the rights and privileges of the community burgesses and inhabitants of the city of Perth in regard to the free navigation of the River Tay or any existing right privilege or exemption to which the said community burgesses and inhabitants are or may be entitled in virtue of the chartered rights vested in the lord provost magistrates and councillors of the burgh of Perth on behalf of the community thereof in regard to any rates customs or duties exigible at the harbour upon vessels or goods in virtue of this Act or otherwise howsoever and nothing in this Act contained shall extend or be construed to extend to take away diminish alter prejudice or affect any provisions in favour of the said lord provost magistrates and councillors contained in the North British Railway (New Tay Viaduct) Act 1881 and the North British Railway Act 1888 or any other Act or in any existing agreement entered into between the said lord provost magistrates and councillors and the North British Railway Company relating to the said river or the navigation thereof. Saving rights of burgesses &c. of Perth.

242. Nothing in this Act contained shall be deemed to exempt the harbour or the Trustees from the provisions of the Merchant Shipping Act 1894 or from any general Act relating to merchant shipping harbours or docks or to dues on shipping or on goods carried in vessels now in force or which may be passed during the present or any future session of Parliament or from any future revision and alteration under the authority of Parliament of the rates authorised by this Act. Reserving Merchant Shipping and general Acts.

243. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Trustees to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description. Saving rights of Crown.

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A.D. 1911. belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or of the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Saving rights of Trustees under Crown grants.

244. Nothing in this Act contained with reference to any consent by the Board of Trade shall be deemed to alter prejudice or affect any existing legal right of the Trustees under any Crown grants heretofore made.

Saving judgment in certain actions.

245. Nothing in this Act contained shall prejudice or affect the judgment of the House of Lords dated the twenty-second day of March one thousand eight hundred and fifty-two in an appeal from the Court of Session in Scotland in the conjoined actions of declarator and interdict between the Trustees of the Harbour of Dundee and the late William Stark Dougall of Scotsraig.

Nothing to be done inconsistent with Customs or Excise Acts.

246. Except as by this Act otherwise expressly provided nothing in this Act contained shall authorise the Trustees or any of their harbour-masters or other servants to do or cause to be done any act in any way repugnant to or inconsistent with any law relating to the Customs or Excise or any regulation of the Commissioners of His Majesty's Customs and Excise.

Saving rights of Commissioners of Northern Lighthouses &c.

247. Nothing in this Act contained shall extend to prejudice or derogate from the jurisdiction or authority or any of the rights or privileges of the Commissioners of Northern Lights or of the Corporation of Trinity House of Deptford Strond.

Expenses of Act.

248. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Trustees out of the rates authorised to be levied by and other revenues of the Trustees or the moneys authorised to be borrowed under the authority of this Act Provided that if the said costs charges and expenses be paid out of borrowed money the same shall be repaid within five years from the commencement of this Act.

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SCHEDULES referred to in the foregoing Act.

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SCHEDULE A.

REPEAL OF ACTS.

Acts.	Title of Acts.	Extent of Repeal.
11 Geo. IV. c. cxix.	An Act for more effectually maintaining improving and extending the harbour of Dundee in the county of Forfar.	Section 81.
6 & 7 Vict. c. lxxxiii.	An Act for altering and amending the Dundee Harbour Acts and for more effectually maintaining improving and extending the harbour of Dundee and for other purposes connected therewith.	Sections 104 115 116 117 118 119 170 and 171.
36 & 37 Vict. c. l.	The Dundee Harbour and Tay Ferries Act 1873.	The whole Act.
38 & 39 Vict. c. cl.	The Dundee Harbour Consolidation Act 1875	The whole Act.
52 & 53 Vict. c. lxxxvii.	The Dundee Harbour and Tay Ferries Act 1889.	The whole Act.
55 & 56 Vict. c. lxxxiv.	The Dundee Harbour (Amendment) Act 1892	The whole Act.
59 & 60 Vict. c. xxxiv.	The Dundee Harbour (Additional Powers) Act 1896.	The whole Act.
63 & 64 Vict. c. xxix.	The Dundee Harbour (Amendment) Act 1900	The whole Act.

SCHEDULES OF HARBOUR RATES.

SCHEDULE B.

RATES ON VESSELS.

I.—FOREIGN.

- All vessels navigating from or to the southward of the Tropic of Cancer—per register ton - - - - - s. d.
1 4
- All vessels from or to any port in North America Greenland Davis' Straits Fisheries and all within the Straits of Gibraltar—per register ton - - - - - 0 10

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	s.	d.
3. All vessels from or to any port in Europe to the north of Drontheim in Norway and from or to Iceland the Faroe Isles the Azores Madeira or Teneriffe Islands and the West Coast of Africa between the Tropic of Cancer and the Straits of Gibraltar—per register ton - - -	0	9
4. All vessels from or to any port in Europe between Gibraltar and Drontheim inclusive (except ports included in No. 5) and all ports in the Baltic—per register ton - - -	0	8
5. All vessels from or to any port between Brest and the Elbe inclusive—per register ton - - - - -	0	4
6. All steam vessels from or to foreign ports when employed in towing only—per register ton - - - - -	0	4
7. All vessels outwards to foreign ports as in Nos. 1 to 4 inclusive loaded with coals coke or cinders only—per register ton - - - - -	0	6

[In cases where it shall be shown to the satisfaction of the Trustees or their Collector of Rates that coals for export have been put on board of any such vessel equal in the number of tons to two-third parts of the vessel's registered tonnage other goods or articles may be put on board without increasing the last-mentioned rate on the vessel.]

II.—COASTING.

1. All vessels from or to any port in Great Britain or Ireland including the islands of Guernsey Jersey Alderney Sark Man the Shetland and Orkney Islands—per register ton -	0	3
2. All vessels from or to any port as in No. 1 loaded with coals coke cinders or lime only—per register ton - -	0	2
3. All steam vessels from or to any port as in No. 1 carrying passengers and their luggage exclusively or employed in towing—per register ton - - - - -	0	2

III.—RIVER.

1. All vessels from or to any port or place in the River Tay beyond the Harbour—per register ton - - - -	0	1½
Vessels compounding under section 12 of "Exemptions and regulations" at beginning of calendar month to be charged one trip per week.		
2. All steam vessels from or to any port or place in the River Tay beyond the Harbour carrying passengers and their luggage exclusively or employed in towing—per register ton - - - - -	0	1

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Vessels compounding under section 12 of "Exemptions and regulations" at beginning of calendar month for towing 5s. per month.

3. All vessels trading or carrying passengers from or to any place within the harbour—per register ton - - - 0 1

Vessels compounding under section 12 of "Exemptions and regulations" at beginning of calendar month $\frac{1}{2}d.$ per ton per trip (This applies to Nos. 2 and 3 hereof.)

4. All vessels from any part of the River Tay with sand only—per voyage - - - - - 1 0

All pleasure yachts of a gross tonnage of 25 tons or upwards although not carrying goods or passengers for hire are included under sections I. II. and III. of this schedule.

The following regulation shall apply to sections II. and III. of this schedule:—

All steam vessels carrying goods and passengers but landing the passengers and their luggage only shall be rated as steam vessels carrying passengers and their luggage exclusively.

IV.—MISCELLANEOUS RATES.

1. All vessels engaged in the herring fishery at Dundee in any fishing season thereat as a composition in full of rates for such vessels for the period of such fishing season payable in advance—for each vessel - - - 26 8
2. All vessels engaged in such fishery at Dundee for which the said composition shall not have been paid in any fishing season—on each occasion of any such vessel entering the harbour in such season and using the works of the Trustees - - - - - 2 0
3. All herring vessels not engaged in the herring fishery at Dundee entering the harbour and discharging herrings—on each occasion of any such vessel so entering the harbour and using the works of the Trustees - - - - - 3 0
4. All fishing vessels not engaged in the herring fishery at Dundee and also being vessels not engaged in (a) the trawl fishery or in (b) the spirling or sprat fishery in the River Tay entering the harbour and discharging any part of their cargo—on each occasion of so entering the harbour and using the works of the Trustees - - - 3 0

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5. All fishing vessels not engaged in the herring fishery at Dundee and also being vessels not engaged in (a) the trawl fishery or (b) the spirling or sprat fishery in the River Tay entering the harbour and not discharging any part of their cargo—on each occasion of so entering the harbour and using the works of the Trustees - - - 2 0
6. All vessels engaged in the trawl fishery as a composition in full of rates—for each vessel a yearly sum payable in advance of 12*l.* or in the option of the owners for each month or part thereof payable in advance of - - - 25 0
Should either of these composition rates not be paid—then on each occasion of any such vessel entering the harbour and discharging her cargo or any portion thereof - - - - - 5 0
Any such vessel entering the harbour and not discharging any portion of her cargo nor taking any goods on board - - - - - 3 4
7. All boats while engaged in the spirling or sprat fishery in the River Tay as a composition in full of rates—for each such boat for the season payable in advance - - - 20 0
Or in the option of the owners for each month or part thereof payable in advance - - - - - 6 0
Should either of these composition rates not be paid—then for each occasion such boat may use any dock work or tidal harbour or use any pier there shall be paid - - - - - 1 0
The rates in No. 7 above mentioned shall include the fish landed.
8. All vessels launched within the harbour shall pay half rates on the voyage outwards if sailing in ballast but if loading in whole or in part or taking passengers they shall be liable in full rates.
9. All vessels arriving in ballast for the purpose of being repaired in the graving docks or on the patent slip and departing in ballast shall be liable in half rates but if loading in whole or in part or taking passengers they shall be liable in full rates.
10. All vessels with cargoes arriving for the purpose of being repaired in the graving docks or on the patent slip shall be liable in half rates only provided they neither take goods on board (stores for their own use excepted) nor break bulk except to permit repairs to be effected and that they reload all the goods so landed otherwise they shall be liable in full rates.

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11. All vessels remaining in the harbour after two months shall pay in advance one penny per register ton per month when lying in any of the tide harbours and one penny halfpenny per register ton per month when lying in any of the docks Vessels which have been repaired in any of the graving docks or on the patent slip shall be allowed the time for which dues have been paid for the use of such graving dock or patent slip in addition to the above-mentioned two months.
12. All vessels lying in the harbour and employed for storage purposes per register ton per month - - - - 0 1
13. All vessels discharging or loading part cargo only and which (during the same voyage) either have called or are to call at another port shall be liable in rates equal to three-fourths of the rates otherwise exigible according to the most distant port at which the goods so discharged have been taken on board or at which the goods so loaded are to be discharged Provided always that in the case of vessels navigating from or to the southward of the Tropic of Cancer the amount of cargo loaded or discharged at another port during the same voyage necessary to entitle the vessel to the reduction of rates stated in this article shall be not less than one-fifth of the whole cargo computing the cargo by dead weight and measurement.
14. The net register tonnage of steam tugs shall in no case be deemed for the purposes of rating to be less than 18 per cent. of the gross register tonnage.

EXEMPTIONS AND REGULATIONS.

1. All vessels shall pay rates on the inward voyage and if they then sail in ballast they shall not be liable in rates outwards.
2. Vessels shall not be charged rates both on the inward and next outward sailing but if a vessel having paid river rates inwards shall sail with a cargo coastwise or foreign the difference between such river rates and the coasting or foreign rates respectively shall be charged or if a vessel having paid coasting rates inwards shall sail with a cargo foreign the difference between such coasting and foreign rates shall be charged or if a vessel having paid foreign rates inwards shall sail with a cargo to a foreign port the rates to which are higher than those paid inwards the difference between the two rates shall be charged.
3. All vessels leaving the harbour for the purpose of taking on board ballast in any part of the River Tay and returning to the harbour with ballast shall not be liable in rates for such convenience.

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4. Any vessel sailing from the harbour and put back by stress of weather or any other cause without having accomplished her voyage shall not be liable in rates for such return.

5. Vessels loaded with coals coke cinders or lime or in ballast but having dunnage deals or stow wood on board which have been used as such and are intended to be landed or having goods on board which are neither to be landed or re-shipped into any other vessel within the harbour shall be charged the same rates as vessels wholly loaded with coals coke cinders or lime.

6. All lighters from or to vessels in the roads which vessels have paid or will have to pay rates are exempted from rates but if any lighter does not enter any dock work or tidal harbour nor use any pier but convey the goods to another port or place rates shall be charged according to the port or place bound to.

7. The rates on vessels inwards shall be payable within twelve hours after the arrival of the vessel in the harbour and on vessels outwards before sailing and the harbour-master is authorised and required to refuse to allow any vessel to leave the harbour until he receive from the collector of rates a permit showing that all rates exigible on the vessel have been paid.

8. All steamers sailing with coals for their own use only shall be reckoned as vessels in ballast.

9. All fishing boats (except (a) herring drifters and trawlers of all descriptions and (b) fishing boats engaged in the spirling or sprat fishing in the River Tay) discharging fresh fish including fresh herrings caught in or by such boats for sale in the markets of Dundee and not using any jetty or work other than in or at the tidal harbour of Earl Grey and King William the Fourth Docks shall be exempt from rates provided they neither land nor take in other goods otherwise they shall be liable in rates according to the port or place arrived from or bound to.

This exemption from rates applicable to fishing boats (except as above specified) arriving at the tidal harbour of Earl Grey and King William the Fourth Docks shall also apply to fishing boats (except as above specified) discharging fresh fish including fresh herrings caught in or by such boats at the Trustees' Pier at Broughty Ferry for sale in the markets of Broughty Ferry or Dundee and not landing or taking in other goods.

10. All ferry boats or other vessels belonging to or licensed by the Trustees plying between the ferry harbours of Ferry-Port-on-Craig Newport Woodhaven Balmerino or any landing-place to be erected for the ferry at Craighead in the County of Fife and the ferry harbour of Dundee or between the ferry harbour of Dundee and any

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of these ferry harbours or landing-places are exempt from payment of rates. A.D. 1911.

11. The tonnage of British vessels shall be ascertained from the registers of such vessels and the tonnage of all other vessels shall be ascertained according to the rules of admeasurement established by law in force at the time and the master or owner of every such vessel shall pay the expense of such measuring over and above the rates in this schedule.

12. The Trustees may compound and agree with the owners of steam or other vessels plying within the harbour or between the harbour and ports or places in the River Tay for the rates payable in respect of such vessels.

13. It is provided that—

Vessels whether with cargoes or passengers or in ballast entering the harbour for any of the following purposes but not entering any dock work or tidal harbour or using any pier and not breaking bulk nor loading goods or passengers shall be dealt with as follows:—

For safety by stress of weather or for orders only—
Free.

For stores including coals for the use of their engines or for repairs—

From foreign ports 2*d.* per registered ton.

From coasting ports 1*d.* per registered ton.

From places within the River Tay beyond the harbour
 $\frac{1}{2}$ *d.* per registered ton.

Vessels whether with cargoes or passengers or in ballast entering the harbour for any of the following purposes and entering any dock work or tidal harbour or using any pier but not breaking bulk nor loading goods or passengers shall be dealt with as follows:—

For safety by stress of weather—

From foreign ports 2*d.* per registered ton.

From coasting ports or places within the River Tay
beyond the harbour 1*d.* per registered ton.

For orders stores repairs or convenience including coals for use of their engines—

From foreign ports 3*d.* per registered ton.

From coasting ports $1\frac{1}{2}$ *d.* per registered ton.

From places within the River Tay beyond the harbour
1*d.* per registered ton.

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SCHEDULE C.

RATES ON GOODS.

							Rates.	
							Inwards.	Outwards.
							s. d.	s. d.
Aerated or mineral waters	-	-	-	-	-	per ton	1 0	1 0
Alabaster	-	-	-	-	-	ditto	2 0	2 0
Ale and beer in casks	-	-	-	-	-	ditto	1 8	1 8
Ditto in bottles	-	-	-	-	-	ditto	1 6	1 6
Alferic stone	-	-	-	-	-	ditto	1 0	1 0
Alkali	-	-	-	-	-	ditto	0 9	0 9
Alum rock	-	-	-	-	-	ditto	1 0	1 0
Ditto waste	-	-	-	-	-	ditto	0 9	0 9
Alumina water	-	-	-	-	-	ditto	1 0	1 0
Aluminium	-	-	-	-	-	ditto	1 0	1 0
Ammonia liquor	-	-	-	-	-	ditto	2 0	2 0
Animals:—								
Cats	-	-	-	-	-	each	0 2	0 2
Deer	-	-	-	-	-	ditto	0 6	0 6
Dogs	-	-	-	-	-	ditto	0 3	0 3
Foxes	-	-	-	-	-	ditto	0 6	0 6
Monkeys	-	-	-	-	-	ditto	0 2	0 2
Seals	-	-	-	-	-	ditto	0 3	0 3
Walruses	-	-	-	-	-	ditto	0 6	0 6
Wild animals (not otherwise enumerated)	-	-	-	-	-	ditto	1 0	1 0
Antimony	-	-	-	-	-	per ton	1 0	1 0
Apples	-	-	-	-	-	ditto	0 5	0 5
Argol	-	-	-	-	-	ditto	1 6	1 6
Arms and ammunition	-	-	-	-	-	ditto	5 0	5 0
Asbestos	-	-	-	-	-	ditto	1 0	1 0
Ashes pot pearl weed and wood	-	-	-	-	-	ditto	1 6	0 6
Asphalte and bitumen	-	-	-	-	-	ditto	0 6	0 6
Asphalte paper	-	-	-	-	-	ditto	1 4	1 4
Ditto felt	-	-	-	-	-	ditto	1 4	1 4
Asses—see “Cattle &c.”								
Bacon or hams	-	-	-	-	-	per ton	1 0	1 0
Barilla	-	-	-	-	-	ditto	1 6	1 6
Bark linden or bast	-	-	-	-	-	ditto	1 0	1 0
Bark oak	-	-	-	-	-	ditto	1 0	1 0
Ditto quercitron	-	-	-	-	-	ditto	2 0	2 0
Ditto spent	-	-	-	-	-	ditto	0 1	0 1
Barley bere or big—see “Grains &c.”								
Barometers	-	-	-	-	-	per ton	4 0	4 0
Barrels empty herring	-	-	-	-	-	per dozen	0 4	0 4
Barrows iron or steel	-	-	-	-	-	per ton	1 6	1 6
Barytes	-	-	-	-	-	ditto	0 3	0 3
Basic slag	-	-	-	-	-	ditto	0 6	0 6
Basket rods	-	-	-	-	-	ditto	1 8	1 8

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	Rates.	
	Inwards.	Outwards.
Baskets viz. :—	<i>s. d.</i>	<i>s. d.</i>
Under 12 inches in diameter - - - per dozen	0 1	0 1
Above 12 inches in diameter - - - ditto	0 2	0 2
Empty fruit &c. &c. - - - per ton	1 6	1 6
Mill - - - per barrel bulk of 5 c.f.	0 1	0 1
Basketware - - - per ton	2 0	2 0
Beans—see “Grains &c.”		
Bear stuffed in case - - - per ton	4 0	4 0
Beef or pork cured - - - ditto	1 0	1 0
Ditto fresh - - - ditto	1 8	1 8
Bees' wax - - - ditto	1 8	1 8
Beetroot - - - ditto	0 5	0 5
Bicycles - - - each	0 6	0 6
Ditto motor - - - ditto	1 0	1 0
Birds - - - ditto	0 3	0 3
Biscuits - - - per ton	1 0	1 0
Bladders - - - ditto	2 0	2 0
Bleaching powder - - - ditto	0 9	1 6
Blubber - - - per ton or per 252 imperial galls.	1 0	1 0
Boats and cobbles new viz. :—		
12 feet keel and under - - - each	1 6	1 6
And for each 2 feet above 12 feet keel - - - ditto	0 6	0 6
Boiler composition - - - per ton	1 6	1 6
Bones bone dust bone ash and bone meal - - - ditto	0 8	0 8
Books and stationery - - - ditto	1 8	1 8
Boots and shoes - - - ditto	2 6	2 6
Boracic acid - - - ditto	1 6	1 6
Borax - - - ditto	1 6	1 6
Bottles glass—see “Glass.”		
Boxes cases crates hampers &c. empty if not returned - - - per ton	1 6	1 6
Bran—see “Grains &c.”		
Brass - - - per ton	2 0	2 0
Ditto utensils - - - ditto	2 6	2 6
Bricks Common common size - - - per 1,000	0 10	0 10
Ditto fire ditto - - - ditto	2 0	2 0
Ditto bath - - - ditto	2 0	2 0
All above common size in proportion.		
Brimstone refined - - - per ton	2 0	2 0
Ditto rough - - - ditto	0 9	0 9
Bristles - - - ditto	1 4	0 8
Bronze coin - - - ditto	3 0	3 0
Broom and brush handles heads and stocks - - - per ton of 40 c.f.	1 0	1 0
Brooms birch and heather - - - per dozen	0 1	0 1
Brush blocks - - - per ton	1 0	1 0
Brushes - - - per ton of 40 c.f.	1 8	1 8
Buffalo pickers (old) - - - per ton	0 8	0 8
Bulrushes - - - ditto	1 0	1 0
Butter - - - ditto	1 0	1 0
Cane drainers - - - ditto	2 0	2 0
Cane reeds - - - ditto	1 8	1 8
Cauvas hose pipe - - - ditto	1 6	1 6

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						Rates.	
						Inwards.	Outwards.
						s. d.	s. d.
Canvas shoes and slippers	-	-	-	-	per ton	1 8	1 8
Carbide of calcium	-	-	-	-	ditto	1 6	1 6
Carbon candles	-	-	-	-	ditto	1 0	1 0
Carbon—gas retort	-	-	-	-	ditto	1 0	1 0
Carbonic acid gas and cylinders	-	-	-	-	ditto	1 0	1 0
Carriages viz. :—							
With 4 wheels	-	-	-	-	each	5 0	5 0
With 2 wheels	-	-	-	-	ditto	2 6	2 6
Carts	-	-	-	-	ditto	1 6	1 6
Lorries	-	-	-	-	ditto	3 0	3 0
Lorries with show apparatus	-	-	-	-	ditto	5 0	5 0
Carriage bodies	-	-	-	-	per ton	4 0	4 0
Furniture vans with wheels	-	-	-	-	each	5 0	5 0
Furniture vans without wheels	-	-	-	-	ditto	2 6	2 6
Ditto with wheels returned empty	-	-	-	-	ditto	2 6	2 6
Ditto without wheels returned empty	-	-	-	-	ditto	1 3	1 3
Governess cars	-	-	-	-	ditto	2 6	2 6
Waggons ballast and contractors'	-	-	-	-	ditto	1 6	1 6
Ditto travelling and show vans	-	-	-	-	ditto	7 6	7 6
Circus properties	-	-	-	-	per ton	2 0	2 0
Motor cars	-	-	-	-	ditto	5 0	5 0
Carriages railway 1st class	-	-	-	-	each	50 0	50 0
Ditto ditto 2nd class	-	-	-	-	ditto	40 0	40 0
Ditto ditto 3rd class	-	-	-	-	ditto	30 0	30 0
Ditto ditto waggons closed	-	-	-	-	ditto	20 0	20 0
Ditto ditto ditto open	-	-	-	-	ditto	10 0	10 0
Carrots	-	-	-	-	per ton	0 5	0 5
Ditto preserved	-	-	-	-	ditto	1 0	1 0
Carytes	-	-	-	-	ditto	0 3	0 3
Casks empty not being returned packages	-	-	-	-	per ton of 40 c.f.	0 5	0 5
Flour	-	-	-	-	per dozen	0 3	0 3
Butter	-	-	-	-	ditto	0 4	0 4
Bleaching powder—							
Small	-	-	-	-	ditto	0 3	0 3
Ordinary	-	-	-	-	ditto	0 6	0 6
Large	-	-	-	-	ditto	1 0	1 0
Other casks in proportion.							
Cats—see "Animals."							
Cattle &c. :—							
Bulls cows and oxen	-	-	-	-	each	0 8	0 8
Calves	-	-	-	-	ditto	0 4	0 4
Horses	-	-	-	-	ditto	0 8	0 8
Pigs	-	-	-	-	ditto	0 1 $\frac{1}{3}$	0 1 $\frac{1}{3}$
Sheep and goats	-	-	-	-	per score	1 4	1 4
Lambs	-	-	-	-	ditto	0 8	0 8
Asses and mules	-	-	-	-	each	0 6	0 6
Cattle food not otherwise enumerated	-	-	-	-	per ton	0 8	0 8
Causeway stones dressed	-	-	-	-	ditto	0 1	0 1
Caustic liquor	-	-	-	-	ditto	0 9	0 9
Cellulose	-	-	-	-	ditto	0 9	0 9
Cement	-	-	-	-	ditto	0 6	0 6
Ditto linoleum	-	-	-	-	ditto	1 0	1 0
Chalk	-	-	-	-	ditto	0 3	0 3

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		Rates.	
		Inwards.	Outwards.
		s. d.	s. d.
Charcoal (wood) - - - - -	per ton	1 8	1 8
Cheese - - - - -	ditto	0 5	0 5
Chemical electrical and photographic apparatus -	ditto	2 6	2 6
Chimney cans 3 feet and above - - - - -	per 100	3 0	3 0
Ditto under 3 feet high - - - - -	ditto	2 0	2 0
Chinaware - - - - -	per ton	2 6	2 6
Chloride of calcium - - - - -	ditto	1 6	1 6
Ditto when for road-making - - - - -	ditto	0 6	0 6
Chloride of lime - - - - -	ditto	0 9	0 9
Chloride of magnesium - - - - -	ditto	1 6	1 6
Chloride of zinc - - - - -	ditto	1 6	1 6
Chrome ore—see “Ore.”			
Cider - - - - -	per ton	1 6	1 6
Cigars - - - - -	ditto	2 6	2 6
Cinders and coke - - - - -	ditto	0 2	0 2
Clay viz. :—			
China clay or stone clay - - - - -	ditto	0 6	0 6
Fire clay - - - - -	ditto	0 6	0 6
Pipe clay - - - - -	ditto	0 6	0 6
Other kinds in proportion.			
Clocks and timepieces - - - - -	per ton	4 0	4 0
Cloth including all fabrics of flax tow hemp jute - coir &c. whether pure or mixed such as sheeting hessian dowlas sailcloth canvas sacking bagging tarpauling pocketing car- peting &c. and bags and sacks of all kinds -	ditto	1 4	1 4
Clothiery and clothes made—see “Haberdashery.”			
Coals Scotch - - - - -	per ton	0 2	0 2
Ditto English smithy and culm - - - - -	ditto	0 2	0 2
Coals not re-shipped over side put on board steamers for the use of their engines - - -	ditto	—	0 2
Cochineal - - - - -	per cwt.	1 0	0 4
Cocoa nuts - - - - -	per 100	0 3	0 1
Cocoa fibre - - - - -	per ton	1 0	0 4
Cocoa shells - - - - -	ditto	1 0	1 0
Codilla - - - - -	ditto	1 8	0 5
Colours or dyes - - - - -	ditto	1 6	1 6
Concrete pipes or tubes - - - - -	ditto	1 0	1 0
Confections - - - - -	ditto	1 4	1 4
Copper - - - - -	ditto	2 0	2 0
Boiling pans - - - - -	ditto	2 6	2 6
Cable (old electrical) - - - - -	ditto	1 6	1 6
Ore—see “Ore.”			
Utensils - - - - -	per ton	2 6	2 6
Wire for electrical purposes - - - - -	ditto	2 6	2 6
Copperas - - - - -	ditto	0 6	0 6
Coppered springs for mattresses - - - - -	ditto	1 6	1 6
Coprolites - - - - -	ditto	0 6	0 6
Coral - - - - -	per cwt.	0 6	0 6
Cordage twines &c. - - - - -	per ton	1 4	1 4
Cordial - - - - -	ditto	1 0	1 0
Corkwood and corks - - - - -	ditto	3 0	1 0
Cork cuttings waste or refuse - - - - -	ditto	0 6	0 6

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								Rates.			
								Inwards.		Outwards.	
								s.	d.	s.	d.
Cork shavings	-	-	-	-	-	-	per ton	0	6	0	6
Corn—see “Grains &c.”											
Cotton Wool	-	-	-	-	-	-	per ton	1	6	1	6
Creosote oil	-	-	-	-	-	-	ditto	0	6	0	6
Creosote salts	-	-	-	-	-	-	ditto	2	0	2	0
Crystal	-	-	-	-	-	-	ditto	2	6	2	6
Crystal cullet	-	-	-	-	-	-	ditto	0	4	0	4
Curling stones	-	-	-	-	-	-	ditto	5	0	5	0
Cutch	-	-	-	-	-	-	ditto	1	0	1	0
Deer—see “Animals.”											
Dessicated grains	-	-	-	-	-	-	per ton	0	9	0	9
Dextrine	-	-	-	-	-	-	ditto	1	0	1	0
Disinfectant powder	-	-	-	-	-	-	ditto	1	0	1	0
Diving apparatus	-	-	-	-	-	-	ditto	2	0	2	0
Dogs—see “Animals.”											
Draff	-	-	-	-	-	-	per ton	0	3	0	3
Drain pipes	-	-	-	-	-	-	ditto	1	0	1	0
Drugs and all merchandise for druggists	-	-	-	-	-	-	ditto	2	0	2	0
Dye stuffs :—											
Antichlor (hypo.)	-	-	-	-	-	-	ditto	1	6	1	6
Bichromate of potash	-	-	-	-	-	-	ditto				
Boric chloride	-	-	-	-	-	-	ditto				
Chloride of calcium	-	-	-	-	-	-	ditto				
Chrome alum	-	-	-	-	-	-	ditto				
Fruit juice	-	-	-	-	-	-	ditto				
Permanganate of potash	-	-	-	-	-	-	ditto				
Soda crystals	-	-	-	-	-	-	ditto				
Sulphate alumina	-	-	-	-	-	-	ditto				
Sulphide of sodium	-	-	-	-	-	-	ditto				
Yellow prussiate of potash	-	-	-	-	-	-	ditto				
Zinc chloride	-	-	-	-	-	-	ditto				
Not otherwise enumerated	-	-	-	-	-	-	ditto	1	6	1	6
Earth alumina hydrate	-	-	-	-	-	-	ditto	1	0	1	0
Ditto crude	-	-	-	-	-	-	ditto	0	6	0	6
Ditto red or loam	-	-	-	-	-	-	ditto	0	1	0	1
Ditto fullers’	-	-	-	-	-	-	ditto	1	0	1	0
Earthenware	-	-	-	-	-	-	ditto	0	8	0	8
Eggs	-	-	-	-	-	-	ditto	1	0	1	0
Electrical apparatus and appliances	-	-	-	-	-	-	ditto	2	6	2	6
Elephants’ teeth	-	-	-	-	-	-	per cwt.	0	6	0	6
Emery stones	-	-	-	-	-	-	ditto	0	1	0	1
Engines portable fire	-	-	-	-	-	-	each	7	6	7	6
Esparto grass	-	-	-	-	-	-	per ton	0	8	0	8
Feathers	-	-	-	-	-	-	ditto	5	0	5	0
Felt	-	-	-	-	-	-	ditto	1	8	1	8
Felt asphalted or bitumen cloth	-	-	-	-	-	-	ditto	1	4	1	4
Fencing iron posts for—see “Iron.”											
Ferroid	-	-	-	-	-	-	per ton	1	6	1	6
Fire-arms	-	-	-	-	-	-	ditto	5	0	5	0
Fireclay goods	-	-	-	-	-	-	ditto	1	0	1	0

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		Rates.	
		Inwards.	Outwards.
		s. d.	s. d.
Firelighters - - - - -	per ton	1 8	1 8
Fish salted dry - - - - -	ditto	1 3	1 0
Ditto pickled or smoked - - - - -	ditto	1 3	1 0
Ditto fresh except salmon and smelts - - - - -	ditto	1 0	1 0
Ditto—see “Herrings.”			
Fish hooks and fishing tackle - - - - -	per ton	2 0	2 0
Flax - - - - -	ditto	1 8	0 6
Ditto dressed - - - - -	ditto	2 0	0 8
Flint stones - - - - -	ditto	0 4	0 4
Flock - - - - -	ditto	1 0	1 0
Flooreloth - - - - -	ditto	1 0	1 0
Flour rice - - - - -	ditto	1 0	0 8
Ditto wheat - - - - -	ditto	1 0	0 8
Flower roots - - - - -	ditto	0 5	0 5
Foxes—see “Animals.”			
Freestone hewn ashlar - - - - -	per ton	0 1	0 1
Ditto rough ashlar and rubble - - - - -	ditto	0 0½	0 0½
Fruit pulp - - - - -	ditto	1 4	1 4
Fullers' earth - - - - -	ditto	1 0	1 0
Furniture - - - - -	{ per ton of 40 c.f. per ton of 20 cwt.	1 0	1 0
Furriers' waste - - - - -		4 0	4 0
Furs - - - - -	per ton	0 3	0 3
	ditto	4 0	4 0
Gambia - - - - -	ditto	1 6	1 6
Game - - - - -	ditto	5 0	5 0
Gelatine - - - - -	ditto	1 4	1 4
Glass window and bottles - - - - -	ditto	1 0	1 0
Ditto hollow ware - - - - -	ditto	1 0	1 0
Ditto broken - - - - -	ditto	0 4	0 4
Glucose - - - - -	ditto	1 0	1 0
Glue - - - - -	ditto	1 8	1 8
Glue (marine) for ship's caulking - - - - -	ditto	0 6	0 6
Glycerine - - - - -	ditto	1 6	1 6
Goats—see “Cattle &c.”			
Gold and silver plate - - - - -	per ton	5 0	5 0
Golf clubs - - - - -	ditto	2 6	2 6
Grains &c. viz. :—			
Barley bere or big - - - - -	ditto	0 8	0 5
Barley pot shelled and pearl - - - - -	ditto	1 0	1 0
Beans - - - - -	ditto	0 8	0 5
Bran - - - - -	ditto	0 8	0 5
Groats - - - - -	ditto	1 0	1 0
Indian corn - - - - -	ditto	0 8	0 5
Malt - - - - -	ditto	1 0	1 0
Oats - - - - -	ditto	0 8	0 5
Pease - - - - -	ditto	0 8	0 5
Pease split - - - - -	ditto	1 0	1 0
Rye - - - - -	ditto	0 8	0 5
Tares - - - - -	ditto	0 8	0 5
Wheat - - - - -	ditto	0 8	0 5
Granite dust - - - - -	ditto	0 3	0 3

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							Rates.	
							Inwards.	Outwards.
							s. d.	s. d.
Granite rough	-	-	-	-	-	per ton	1 0	1 0
Ditto polished	-	-	-	-	-	ditto	2 0	2 0
Grapes	-	-	-	-	-	ditto	0 5	0 5
Graphite	-	-	-	-	-	ditto	1 0	1 0
Gravestones	-	-	-	-	-	ditto	2 6	2 6
Grease	-	-	-	-	-	ditto	1 0	1 0
Green fruit not otherwise enumerated	-	-	-	-	-	ditto	0 5	0 5
Grindstones	-	-	-	-	-	ditto	0 8	0 8
Groats—see “Grains &c.”	-	-	-	-	-			
Groceries not otherwise enumerated	-	-	-	-	-	per ton	1 0	1 0
Guano from foreign (Peruvian)	-	-	-	-	-	ditto	1 0	0 3
Ditto coastwise (ditto)	-	-	-	-	-	ditto	0 9	0 3
Ditto fish as chemical manure	-	-	-	-	-	ditto	0 8	0 8
Ditto Liebig's	-	-	-	-	-	ditto	0 8	0 8
Gum	-	-	-	-	-	ditto	1 4	1 4
Gunpowder and explosives	-	-	-	-	-	per cwt.	0 3	0 3
Gut in brine	-	-	-	-	-	per ton	1 6	1 6
Gypsum	-	-	-	-	-	ditto	0 6	0 6
Haberdashery and clothiery including cotton silk								
flannel and hosiery goods &c.	-	-	-	-	-	ditto	1 8	1 8
Hair—cow ox bull or horse	-	-	-	-	-	ditto	1 6	1 6
Ditto goats' or wool	-	-	-	-	-	ditto	3 4	3 4
Ditto seal and whale	-	-	-	-	-	ditto	2 0	2 0
Hams or bacon	-	-	-	-	-	ditto	1 0	1 0
Hardening powder	-	-	-	-	-	ditto	0 10	0 10
Hardware	-	-	-	-	-	ditto	1 6	1 6
Harness composition	-	-	-	-	-	ditto	1 6	1 6
Hay	-	-	-	-	-	ditto	0 10	0 10
Hearth stones	-	-	-	-	-	ditto	0 8	0 8
Hemp dressed	-	-	-	-	-	ditto	2 0	0 8
Ditto rough	-	-	-	-	-	ditto	1 8	0 6
Herrings salted	-	-	-	-	-	per barrel of 26 $\frac{2}{3}$ gallons	0 2	0 1
Ditto fresh	-	-	-	-	-	in barrels per ton	1 0	1 0
Ditto red or smoked	-	-	-	-	-	per ton	2 0	1 0
Ditto in bulk	-	-	-	-	-	per cran of 37 $\frac{1}{2}$ gallons	0 1 $\frac{1}{2}$	0 1 $\frac{1}{2}$
Hides and kips wet	-	-	-	-	-	per ton	1 0	1 0
Ditto ditto dried	-	-	-	-	-	ditto	2 0	2 0
Honey	-	-	-	-	-	ditto	1 0	1 0
Hoops of wood	-	-	-	-	-	ditto	1 0	1 0
Hops	-	-	-	-	-	ditto	2 0	2 0
Horns piths slugs tips and hoofs	-	-	-	-	-	ditto	5 0	5 0
Horses—see “Cattle &c.”	-	-	-	-	-			
Husbandry utensils viz. :—								
Box cart	-	-	-	-	-	each	1 6	1 6
Harrows	-	-	-	-	-	ditto	0 6	0 6
Plough	-	-	-	-	-	ditto	0 6	0 6
Waggon with four wheels	-	-	-	-	-	ditto	3 0	3 0
Wheelbarrow wood	-	-	-	-	-	ditto	0 2	0 2
Ditto iron or steel	-	-	-	-	-	per ton	1 6	1 6
Other husbandry implements	-	-	-	-	-	ditto	1 8	1 8

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		Rates.	
		Inwards.	Outwards.
		s. d.	s. d.
Ice	per ton	0 6	0 6
Indian Corn—see “Grains &c.”			
India-rubber and gutta percha	per ton	1 6	1 6
Ditto ditto manufactured	ditto	2 0	2 0
Ditto old	ditto	0 8	0 8
Indigo	ditto	3 4	3 4
Ink	ditto	1 8	1 8
Iron viz. :—			
Bar bolt and rod	ditto	0 6	0 6
Castings	ditto	1 0	1 0
Cast-iron goods commonly called ironmongery	ditto	1 6	1 6
Cast-iron pipes	ditto	1 0	1 0
Galvanised	ditto	1 6	0 9
Machinery	ditto	1 6	1 6
Made work including boilers	ditto	1 6	1 6
Nails and rivets	ditto	0 6	0 6
Old and scrap iron	ditto	0 4	0 4
Ore	ditto	0 2	0 2
Pig	ditto	0 4	0 2
Posts for fencing	ditto	1 0	1 0
Plate sheet and forged and hoops	ditto	0 6	0 4
Plates coated with lead	ditto	1 0	1 0
Ditto tinned	ditto	1 0	1 0
Railway bars and chairs	ditto	0 6	0 6
Wire for fencing	ditto	1 0	1 0
Ivory	per cwt.	0 6	0 2
Jewellery, excluding gold and silver plate	ditto	1 6	1 6
Joiner work	per ton	1 6	1 6
Jute	ditto	1 0	0 4
Ditto dressed	ditto	1 6	0 6
Kelp	ditto	0 6	0 6
Kerb stones	ditto	0 1	0 1
Lambs—see “Cattle &c.”			
Lamps	per ton	1 6	1 6
Lard	ditto	1 0	1 0
Launches steam 24 feet keel and under	each	6 6	6 6
And for each 2 feet above 24 feet keel	ditto	0 6	0 6
Laundry bleach in packets	per ton	1 0	1 0
Lead ashes	ditto	0 6	0 6
Lead ore—see “Ore.”			
Lead pig	per ton	1 6	0 6
Ditto black red and white	ditto	1 0	1 0
Ditto shot	ditto	1 6	0 6
Ditto old and pewter	ditto	0 6	0 6
Ditto pipes	ditto	1 6	1 6
Ditto scrapings	ditto	0 9	0 9
Ditto sulphide sludge (dry)	ditto	0 6	0 6
Leather	ditto	1 6	1 6
Lemons	ditto	0 5	0 5
Lemon juice	ditto	2 0	2 0

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							Rates.	
							Inwards.	Outwards.
							s. d.	s. d.
Limes	-	-	-	-	-	per ton	2 0	2 0
Lime juice	-	-	-	-	-	ditto	2 0	2 0
Lime	-	-	-	-	-	ditto	0 2½	0 2½
Lime stone	-	-	-	-	-	ditto	0 1	0 1
Ditto polished	-	-	-	-	-	ditto	1 6	1 6
Linoleum	-	-	-	-	-	ditto	1 0	1 0
Linoleum cement	-	-	-	-	-	ditto	1 0	1 0
Linseed rape cotton &c. cakes	-	-	-	-	-	ditto	0 8	0 6
Linseed meal	-	-	-	-	-	ditto	1 0	1 0
Litharge or litherage	-	-	-	-	-	ditto	1 0	1 0
Loam	-	-	-	-	-	ditto	0 1	0 1
Locust beans	-	-	-	-	-	ditto	0 8	0 8
Ditto meal	-	-	-	-	-	ditto	0 9	0 9
Madder	-	-	-	-	-	ditto	2 6	0 10
Ditto roots	-	-	-	-	-	ditto	2 0	0 8
Magic lanterns	-	-	-	-	-	ditto	4 0	4 0
Magnolia metal	-	-	-	-	-	ditto	3 0	3 0
Malt—see “Grains &c.”	-	-	-	-	-			
Manganese	-	-	-	-	-	per ton	1 0	0 4
Mangold wurzell	-	-	-	-	-	ditto	0 4	0 4
Manna	-	-	-	-	-	ditto	1 0	1 0
Manure street	-	-	-	-	-	ditto	0 1	0 1
Ditto chemical not otherwise enumerated	-	-	-	-	-	ditto	0 8	0 8
Marble	-	-	-	-	-	ditto	1 0	1 0
Ditto dressed or polished	-	-	-	-	-	ditto	2 0	2 0
Margarine	-	-	-	-	-	ditto	0 8	0 8
Marmalade	-	-	-	-	-	ditto	1 4	1 4
Marmormel or pulverised marble	-	-	-	-	-	ditto	0 3	0 3
Matches	-	-	-	-	-	ditto	2 0	2 0
Mats cargo and dunnage	-	-	-	-	-	per 100	0 6	0 2
Matting of cocoa nut fibre	-	-	-	-	-	per ton	1 4	1 4
Meal linseed	-	-	-	-	-	ditto	1 0	1 0
Ditto locust	-	-	-	-	-	ditto	0 9	0 9
Ditto oat	-	-	-	-	-	ditto	1 0	0 8
Metal patent	-	-	-	-	-	ditto	3 0	3 0
Ditto old gun	-	-	-	-	-	ditto	2 0	2 0
Mica	-	-	-	-	-	ditto	2 6	2 6
Mica waste	-	-	-	-	-	ditto	0 8	0 8
Millstones	-	-	-	-	-	ditto	0 8	0 8
Mill dust	-	-	-	-	-	ditto	0 8	0 8
Mill furnishings not otherwise enumerated	-	-	-	-	-	ditto	1 6	1 6
Mine dust	-	-	-	-	-	ditto	0 2	0 2
Mineral fibre	-	-	-	-	-	ditto	1 0	1 0
Molasses and treacle	-	-	-	-	-	ditto	0 8	0 8
Monkeys—see “Animals.”	-	-	-	-	-			
Moss rock	-	-	-	-	-	per ton	1 6	1 6
Ditto litter	-	-	-	-	-	ditto	0 5	0 5
Motor cars	-	-	-	-	-	ditto	5 0	5 0
Ditto cycles	-	-	-	-	-	each	1 0	1 0
Ditto tricycles	-	-	-	-	-	ditto	1 6	1 6
Mouldings for carvers and gilders	-	-	-	-	-	per ton of 40 c.f.	2 0	2 0
Mules—see “Cattle &c.”	-	-	-	-	-			

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	Rates.	
	Inwards.	Outwards.
	s. d.	s. d.
Musical instruments - - - - - { per ton of 40 c.f.	2 6	2 6
- - - - - { per ton of 20 cwt.	7 6	7 6
Mussels winkles &c. - - - - - per ton	1 0	1 0
Myrobalans - - - - - ditto	0 6	0 6
Naphtha - - - - - ditto	2 0	2 0
Nautical instruments :—		
Chronometers - - - - - each	0 6	0 6
Compasses - - - - - ditto	0 3	0 3
Other nautical instruments - - - - - per ton of 40 c.f.	2 6	2 6
Nets fishing - - - - - per ton	1 6	1 6
Nitrate of soda - - - - - ditto	0 8	0 8
Ditto of potash - - - - - ditto	0 8	0 8
Nitro-naphthalene - - - - - ditto	1 0	1 0
Oak extract - - - - - ditto	1 6	1 6
Oakum - - - - - ditto	1 0	1 0
Oatmeal - - - - - ditto	1 0	0 8
Oats—see “Grains &c.”		
Ochre - - - - - per ton	0 6	0 6
Offal - - - - - ditto	2 0	2 0
Oils not otherwise enumerated - - - - - ditto	1 0	1 0
Oil refuse or “foots” - - - - - ditto	0 9	0 9
Oilskins - - - - - ditto	1 8	1 8
Onions - - - - - ditto	0 5	0 5
Oranges - - - - - ditto	0 5	0 5
Orange juice - - - - - ditto	2 0	2 0
Orchella weed - - - - - ditto	2 0	2 0
Ore :—		
Bog - - - - - ditto	0 6	0 6
Burnt - - - - - ditto	0 6	0 3
Chrome - - - - - ditto	0 6	0 6
Copper - - - - - ditto	0 9	0 3
Iron - - - - - ditto	0 2	0 2
Lead - - - - - ditto	1 0	1 0
Oxide of iron - - - - - ditto	0 6	0 6
Ditto spent - - - - - ditto	0 3	0 3
Oysters - - - - - ditto	1 6	1 6
Paints - - - - - ditto	1 0	1 0
Paper - - - - - ditto	1 4	1 4
Paper pulp - - - - - ditto	0 9	0 9
Ditto from wood - - - - - ditto	0 9	0 9
Passengers' luggage if under 2 cwt. free—all above - ditto	4 0	4 0
Pasteboard paper pulp boards strawboards - - - - - ditto	1 4	1 4
Pavement - - - - - ditto	0 3	0 3
Pears - - - - - ditto	0 5	0 5
Pease—see “Grains &c.”		
Peats - - - - - per ton	0 5	0 5
Peel orange lemon &c. in pickle - - - - - ditto	1 4	1 4
Perambulators - - - - - each	0 2	0 2
Peroxide - - - - - per ton	1 6	1 6
Personal effects - - - - - ditto	4 0	4 0

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		Rates.	
		Inwards.	Outwards.
		s. d.	s. d.
Personal effects - - - - -	per barrel bulk of 5 c.f.	0 4	0 4
Photographic apparatus or goods - - - - -	per ton	2 6	2 6
Phosphate of lime - - - - -	ditto	0 6	0 6
Ditto rock - - - - -	ditto	0 6	0 6
Ditto slag - - - - -	ditto	0 6	0 6
Pictures and mirrors - - - - -	per ton of 40 c.f.	2 6	2 6
Ditto - - - - -	per ton	5 0	5 0
Pigs—see “Cattle &c.” - - - - -			
Pitch coal tar - - - - -	per ton	0 6	0 6
Ditto oil - - - - -	ditto	1 0	1 0
Ditto vegetable - - - - -	ditto	1 0	0 4
Planes - - - - -	ditto	2 6	2 6
Plants of trees or shrubs - - - - -	ditto	0 5	0 5
Plaster of Paris - - - - -	ditto	0 6	0 6
Plaster slabs for partitions - - - - -	ditto	0 6	0 6
Porter in casks - - - - -	ditto	1 8	1 8
Ditto in bottles - - - - -	ditto	1 6	1 6
Potatoes - - - - -	ditto	0 4	0 4
Ditto preserved - - - - -	ditto	0 8	0 8
Poultry - - - - -	per dozen	0 2	0 2
Printers' plates castings and types - - - - -	per ton	1 6	1 6
Pumice stones - - - - -	ditto	1 6	1 0
Putty - - - - -	ditto	1 0	1 0
Pyrites - - - - -	ditto	0 4	0 4
Quartz for rockeries - - - - -	ditto	0 2	0 2
Quills undressed - - - - -	ditto	5 0	5 0
Rabbits - - - - -	ditto	3 4	3 4
Rags of all kinds waste old ropes old or waste paper rag mats &c. - - - - -	ditto	0 8	0 8
Rice - - - - -	ditto	1 0	0 8
Ditto broken - - - - -	ditto	0 8	0 8
Ditto dust bran - - - - -	ditto	0 6	0 6
Road metal - - - - -	ditto	0 1	0 1
Rock composition - - - - -	ditto	0 6	0 6
Rope—wire - - - - -	ditto	1 6	1 6
Rosin - - - - -	ditto	0 10	0 10
Rubble and rough ashlar freestone - - - - -	ditto	0 0½	0 0½
Rubble causeway and road metal - - - - -	ditto	0 1	0 1
Rushes or shives for coopers - - - - -	ditto	1 8	1 8
Rye—see “Grains &c.” - - - - -			
Saccharine - - - - -	per ton	2 0	2 0
Saddlery not otherwise enumerated - - - - -	ditto	2 6	2 6
Salmon - - - - -	ditto	2 6	2 6
Salt rock white and agricultural - - - - -	ditto	0 6	0 6
Saltpetre - - - - -	ditto	2 6	2 6
Salts Epsom :—			
For druggists - - - - -	ditto	2 0	2 0
For manufacturers - - - - -	ditto	1 0	1 0

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	Rates.	
	Inwards.	Outwards.
	s. d.	s. d.
Sand - - - - - per ton	0 1	0 1
Sandpaper - - - - - ditto	1 6	1 6
Sawdust - - - - - ditto	0 6	0 6
Sealskins dressed - - - - - ditto	4 0	4 0
Seals—see “Animals.”		
Seaweed (dried) - - - - - per ton	1 6	1 6
Seeds of all kinds except those for crushing - - - ditto	1 6	1 6
Seeds for crushing - - - - - ditto	0 8	0 8
Shakes of casks pipe or puncheon - - - - - each	0 1	0 1
Others in proportion.		
Shavings (wood) - - - - - per ton	0 6	0 6
Ditto curriers’ - - - - - ditto	0 4	0 4
Sheep—see “Cattle &c.”		
Sheep dip - - - - - per ton	1 0	1 0
Shellac - - - - - ditto	1 4	1 4
Shell fish not otherwise enumerated - - - - - ditto	1 0	1 0
Shells (oyster) crushed for poultry food - - - ditto	0 2	0 2
Ships’ models in cases - - - per barrel bulk of 5 c.f.	0 6	0 6
Showcards - - - - - per ton	2 6	2 6
Shumach - - - - - ditto	1 6	1 6
Silica - - - - - ditto	1 8	1 8
Silver plate - - - - - ditto	5 0	5 0
Size - - - - - ditto	1 0	1 0
Skins untanned viz. :—		
Calf wet - - - - - ditto	1 0	1 0
dried - - - - - ditto	2 0	2 0
Bear (in casks) - - - - - ditto	2 6	2 6
Bear - - - - - per score	0 10	0 10
Sheep - - - - - ditto	0 3	0 3
Deer - - - - - ditto	0 10	0 10
Fox - - - - - ditto	0 6	0 6
Kid - - - - - ditto	0 4	0 4
Lamb - - - - - ditto	0 3	0 3
Musk ox - - - - - ditto	0 6	0 6
Seal - - - - - ditto	0 3	0 1
Ditto in casks - - - - - per ton	—	2 0
Narwhal and white whale - - - - - per score	0 6	0 2
Ditto in casks - - - - - per ton	—	2 0
Wolf - - - - - per score	0 6	0 6
Walrus - - - - - per ton	1 0	1 0
Ditto in casks - - - - - ditto	—	2 0
Sheep dressed - - - - - ditto	2 0	2 0
Ditto pelts - - - - - ditto	1 0	1 0
Hare and rabbit - - - - - ditto	2 0	2 0
Scrows spetches - - - - - ditto	0 4	0 4
Other skins in proportion to those enumerated.		
Slag - - - - - per ton	0 6	0 6
Slates undersize - - - - - per 1,200	0 10	0 10
Sizeable - - - - - ditto	1 3	1 3
Oversize - - - - - ditto	2 0	2 0
Mixed and drain slates and slate slabs - - - per ton	1 0	1 0
Slates school and slate pencils - - - - - ditto	1 8	1 8

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							Rates.	
							Inwards.	Outwards.
							s. d.	s. d.
Slates enamelled	-	-	-	-	-	per ton	2 6	2 6
Smalts	-	-	-	-	-	ditto	2 6	2 6
Smelts	-	-	-	-	-	ditto	3 4	3 4
Snuff	-	-	-	-	-	ditto	2 6	2 6
Soap	-	-	-	-	-	ditto	1 0	1 0
Soapers' waste	-	-	-	-	-	ditto	0 3	0 3
Ditto salts	-	-	-	-	-	ditto	0 6	0 6
Soda and soda ash	-	-	-	-	-	ditto	0 9	0 9
Soda bicarbonate of	-	-	-	-	-	ditto	1 0	1 0
Solder	-	-	-	-	-	ditto	1 0	1 0
Soot	-	-	-	-	-	ditto	0 3	0 3
Spades and shovels	-	-	-	-	-	per dozen	0 2	0 2
Specie	-	-	-	-	-	per cwt.	0 6	0 6
Spelter	-	-	-	-	-	per ton	1 0	1 0
Spermaceti	-	-	-	-	-	ditto	2 0	2 0
Spirits	-	-	-	-	-	ditto	2 6	2 6
Sponges	-	-	-	-	-	per barrel bulk of 5 c.f.	0 3	0 3
Steel cast	-	-	-	-	-	per ton	2 0	2 0
Old cast	-	-	-	-	-	ditto	1 0	1 0
Plates angles and bulbs for shipbuilding purposes	-	-	-	-	-	ditto	0 6	0 4
Sheets for canister-making	-	-	-	-	-	ditto	1 6	1 6
Stereo dross	-	-	-	-	-	ditto	0 6	0 6
Sticks walking	-	-	-	-	-	ditto	1 8	1 8
Stones viz. :—								
Causeway stones dressed	-	-	-	-	-	ditto	0 1	0 1
Curling	-	-	-	-	-	ditto	5 0	5 0
Flint	-	-	-	-	-	ditto	0 4	0 4
Granite rough	-	-	-	-	-	ditto	1 0	1 0
Ditto polished	-	-	-	-	-	ditto	2 0	2 0
Gravestones	-	-	-	-	-	ditto	2 6	2 6
Grindstones and millstones	-	-	-	-	-	ditto	0 8	0 8
Hearth	-	-	-	-	-	ditto	0 8	0 8
Hewn ashlar freestone	-	-	-	-	-	ditto	0 1	0 1
Kerb	-	-	-	-	-	ditto	0 1	0 1
Lime	-	-	-	-	-	ditto	0 1	0 1
polished	-	-	-	-	-	ditto	1 6	1 6
Marble	-	-	-	-	-	ditto	1 0	1 0
dressed or polished	-	-	-	-	-	ditto	2 0	2 0
Pavement	-	-	-	-	-	ditto	0 3	0 3
Quartz for rockeries	-	-	-	-	-	ditto	0 2	0 2
Rubble and rough ashlar freestone	-	-	-	-	-	ditto	0 0½	0 0½
causeway and road metal	-	-	-	-	-	ditto	0 1	0 1
Scythe stones	-	-	-	-	-	per gross	0 4	0 4
Stores ship not otherwise enumerated	-	-	-	-	-	per ton	1 8	1 8
Straw	-	-	-	-	-	ditto	0 10	0 10
Ditto envelopes	-	-	-	-	-	ditto	1 8	1 8
Street sweeping machines	-	-	-	-	-	each	1 0	1 0
Stucco	-	-	-	-	-	per ton	0 6	0 6
Ditto figures	-	-	-	-	-	ditto	2 6	2 6
Sugar	-	-	-	-	-	ditto	0 8	0 8
Sulphate of ammonia	-	-	-	-	-	ditto	0 8	0 8
Ditto potash	-	-	-	-	-	ditto	0 8	0 8

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		Rates.	
		Inwards.	Outwards.
		s. d.	s. d.
Tallow - - - - -	per ton	1 0	1 0
Tanners' waste and curriers' shavings - - -	ditto	0 4	0 4
Ditto materials not otherwise enumerated - -	ditto	1 6	1 6
Tar coal - - - - -	ditto	0 6	0 6
Ditto salt - - - - -	ditto	1 0	1 0
Ditto vegetable - - - - -	ditto	1 0	0 4
Tares—see "Grains &c."			
Tea - - - - -	per ton	1 8	1 8
Tents material for - - - - -	ditto	1 6	1 6
Tiles common size - - - - -	per 1,000	1 3	1 3
Ditto drain common size - - - - -	ditto	0 9	0 9
Others in proportion.			
Tiles mosaic - - - - -	per ton	1 6	1 6
Tinfoil - - - - -	ditto	1 8	1 8
Tin of all kinds - - - - -	ditto	3 0	3 0
Tin scrap - - - - -	ditto	0 6	0 6
Tinware - - - - -	ditto	2 0	2 0
Tinned plates - - - - -	ditto	1 0	1 0
Tobacco - - - - -	ditto	1 6	1 6
Tobacco juice tobacco paper and tobacco cloth	ditto	1 6	1 6
Tobacco pipes - - - - -	ditto	2 6	2 6
Tongues smoked or pickled - - - - -	per dozen	0 1½	0 1½
Tortoiseshell - - - - -	per cwt.	0 6	0 6
Tow - - - - -	per ton	1 8	0 5
Ditto dressed - - - - -	ditto	2 0	0 8
Toys - - - - -	per ton of 40 c.f.	1 8	1 8
	per ton of 20 cwt.	5 0	5 0
Tricycles - - - - -	each	0 9	0 9
Turf - - - - -	per ton	0 5	0 5
Turmeric - - - - -	ditto	2 6	2 6
Turnips - - - - -	ditto	0 4	0 4
Turpentine - - - - -	ditto	1 0	1 0
Typewriting machines - - - - -	ditto	2 6	2 6
Valonia - - - - -	ditto	1 6	1 6
Varnish - - - - -	ditto	1 0	1 0
Vases or sculptured marble - - - - -	ditto	5 0	5 0
Vegetables - - - - -	ditto	0 5	0 5
Ditto preserved - - - - -	ditto	1 0	1 0
Veneers of all kinds - - - - -	ditto	5 0	5 0
Verdigris - - - - -	ditto	2 0	2 0
Vermilion - - - - -	per cwt.	0 6	0 6
Vinegar - - - - -	per ton	1 0	1 0
Vitriol - - - - -	ditto	1 8	1 8
Walrus Tusks—see "Ivory."			
Walruses—see "Animals."			
Watches trinkets and jewellery (excluding gold and silver plate) - - - - -	per cwt.	1 6	1 6
Water soda and seltzer - - - - -	per ton	1 0	1 0
Waters oxidised - - - - -	ditto	1 0	1 0

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		Rates.	
		Inwards.	Outwards.
		s. d.	s. d.
Wax mouldings - - - - -	per ton	2 6	2 6
Whalebone dressed or undressed - - - - -	ditto	5 0	2 6
Wheat—see “Grains &c.”			
Whelks - - - - -	per ton	1 0	1 0
Whitening and pulverised marble - - - - -	ditto	0 3	0 3
Willow reeds - - - - -	ditto	1 8	1 8
Wine - - - - -	ditto	2 6	2 6
Wool - - - - -	ditto	1 6	1 6
Wood foreign viz. (calliper measure) :—			
Ash birch elm iron bark oak teak and other hard			
woods pine pitch pine fir deals and deal ends			
battens &c. - - - - -	per 50 c.f.	0 9	0 3
Cart wheel spokes and felloes - - - - -	per 60 pcs.	0 4	0 1 $\frac{1}{3}$
Fibre for basketmakers - - - - -	per ton	1 6	0 6
Firewood - - - - -	per 50 c.f.	0 6	0 2
Ditto deal ends and batten ends &c. - - - - -	ditto	0 6	0 2
Flooring dressed - - - - -	per 50 c.f.	0 9	0 3
Handspikes boat-hook handles and hoops - - - - -	per 120 pcs.	0 9	0 3
Lathwood - - - - -	per fathom of 216 c.f.	1 3	0 5
Ditto split - - - - -	ditto	2 6	1 3
Masts and spars viz. :—			
Spars and rickers under 4 ins. dia. - - - - -	per 60 pcs.	1 0	0 4
4 ins. dia. and under 6 ins. - - - - -	ditto	1 6	0 6
6 ins. dia. and above - - - - -	per 50 c.f.	0 9	0 3
Oars and oar rafters - - - - -	per 120 pcs.	1 0	0 4
Spade handles and scoops - - - - -	ditto	0 9	0 3
Treenails and wedges - - - - -	per 1,000 pcs.	0 6	0 6
Wainscot logs and oak or wainscot boards and			
planks - - - - -	per 50 c.f.	1 0	0 6
Delivered by weight :—			
Barwood boxwood Brazilwood camwood ebony.			
fustic lancewood logwood Nicaragua wood			
redwood sassafras &c. - - - - -	per ton	2 0	0 8
Mahogany and lignum vitæ - - - - -	ditto	1 0	0 6
Staves viz. :—			
American pipe - - - - -	per standard 1,000	10 0	3 4
Ditto single hhd. - - - - -	per 1,200	4 0	1 4
Ditto ditto barrel - - - - -	ditto	2 0	0 8
Ditto hhd. billets - - - - -	ditto	6 8	2 2 $\frac{2}{3}$
Ditto barrel - - - - -	ditto	5 4	1 9 $\frac{1}{3}$
Baltic and Hamburg pipe - - - - -	ditto	20 0	6 8
Ditto ditto hhd. - - - - -	ditto	13 4	4 5 $\frac{1}{3}$
Ditto ditto best barrel - - - - -	ditto	6 8	2 2 $\frac{2}{3}$
Ditto ditto barrel inferior quality - - - - -	ditto	3 4	1 1 $\frac{1}{3}$
Brandy - - - - -	ditto	16 0	5 4
West India - - - - -	ditto	4 0	1 4
Wood home viz. :—			
Burnwood - - - - -	per ton	0 6	0 6
Cart wheel spokes and felloes - - - - -	per 100 pieces	0 6	0 6
Fir - - - - -	per 50 c.f.	0 6	0 6
Hard wood - - - - -	ditto	1 0	1 0
Ditto rollers - - - - -	ditto	1 3	1 3
Ditto - - - - -	per ton	1 0	1 0

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	Rates.	
	Inwards.	Outwards.
	s. d.	s. d.
Wood home viz. :—		
Pit props mining and telegraph poles fencing posts and rails - - - - - per 50 c.f.	0 6	0 6
Planks and deals fir - - - - - ditto	1 0	1 0
Ditto hard wood - - - - - ditto	1 3	1 3
Sleepers 9 ft. long and 12 in. by 6 in. - - - per 100	3 6	3 6
All others in proportion.		
Staves hhd. - - - - - ditto	0 4	0 4
Ditto barrel - - - - - ditto	0 2	0 2
Wedges - - - - - per 1,000	0 6	0 6
Wood pulp boards - - - - - per ton	0 9	0 9
Wood carved and turned - - - - - ditto	1 6	1 6
Wood pulp - - - - - ditto	0 9	0 9
Wood :—Creosoted blocks - - - - - ditto	0 9	0 9
Payement and blocks - - - - - ditto	0 9	0 9
Poles dressed various lengths under 6 feet and under 4 inches diameter - - - ditto	1 6	1 6
Sawn fir for boxmaking - - - - - ditto	1 6	1 6
Wool and fibre - - - - - per 50 c.f.	0 9	0 9
Turners' waste and sawdust - - - - - per ton	0 6	0 6
ditto - - - - - ditto	0 6	0 6
Wreck materials to be charged one-half per cent. on the value.		
Yachts - - - - - each	5 0	5 0
Yarn viz. :—		
Flax cotton tow hemp and jute - - - - - per ton	1 4	1 4
Worsted - - - - - ditto	3 4	3 4
Yeast - - - - - ditto	1 6	1 6
Zinc - - - - - ditto	1 0	1 0
Ditto old - - - - - ditto	0 6	0 6
Ditto ashes - - - - - ditto	0 6	0 6

All goods shipped unshipped or transhipped in the harbour and not particularly enumerated in the foregoing Schedule C shall only be liable to rates equal to the rates specified in the said schedule on such goods as in the judgment of the Trustees may be nearest in description and value to such unenumerated goods.

The ton mentioned in the foregoing schedule is the ton of 20 cwt. or in cases where weight cannot be got of 40 cubic feet.

EXEMPTIONS AND REGULATIONS.

1. All goods imported from or exported to any port or place in the River Tay not being within the harbour shall be charged one half of the rates specified in the foregoing schedule.

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2. All goods imported and re-shipped overside or conveyed direct to another vessel in the harbour to be carried to a port or place in the river Tay beyond the harbour shall be charged one half of the rates inwards specified in the foregoing schedule but if the goods are to be conveyed to a port not in the River Tay then subject to the provisions of Articles 4 and 6 hereof full rates inwards shall be charged.

3. All goods discharged by vessels verified by through bills of lading or ship's manifests from the port of shipment to have been destined for conveyance viâ Dundee to any place not within ten miles of Dundee sent by rail and certified by the railway or shipping companies within ninety-six hours after dispatch of goods to have been actually forwarded to any place of destination not within ten miles of Dundee whether it be the place specified in the bill of lading or ship's manifest or not or if otherwise sent certified to the satisfaction of the Trustees to have been actually forwarded to such place of destination shall be liable in half the rates leviable on such goods provided the goods are removed from the quays or works of the Trustees within ninety-six hours after they have been landed otherwise they shall be liable in full rates provided also that in cases where not less than two hundred and fifty tons of goods verified and destined as above specified are landed from the same vessel the time within which such goods must be removed shall be extended to one hundred and twenty hours.

4. All goods discharged by vessels verified by through bills of lading or ship's manifests from the port of shipment to have there been destined for conveyance viâ Dundee to another port and shipped at Dundee overside to that port or conveyed direct from the one vessel to the other at Dundee shall be liable in half the rates leviable inwards on such goods. If the goods cannot be shipped overside nor conveyed direct from the one vessel to the other at Dundee but require to be landed they shall be liable in half the rates leviable inwards on such goods and shall be exempt from outward rates provided they have not been removed from the quays or works of the Trustees and are re-shipped within ninety-six hours after they have been landed otherwise they shall be liable in full rates inwards and also in outward rates.

5. All goods other than those mentioned in Article 3 hereof discharged on or into the quays or works of the Trustees from any vessel may be sent by rail or otherwise to any place not within ten miles of Dundee and in such case be liable in only half the rates leviable inwards on such goods provided that within forty-eight hours after the cargo brought by such vessel has been reported at the Shore-Dues office as provided for in Article 17 or Article 18 hereof

according to the class of vessel intimation in writing is given to the Harbour Treasurer at the said office that the said goods are to be sent by rail or otherwise and provided also that they are so forwarded and certified to have been so by carrier's certificate to be lodged within ninety-six hours after dispatch of goods as in Article 3 hereof without having previously been removed from the quays or works of the Trustees within ninety-six hours after they have been landed otherwise they shall be liable in full rates. A.D. 1911.

6. All goods other than those mentioned in Article 4 hereof discharged on or into the quays or works of the Trustees from any vessel may be re-shipped into another vessel and in such case be liable in only half the rates leviable inwards on such goods and shall also be exempt from outward rates provided that within forty-eight hours after the cargo brought by such vessel has been reported at the Shore-Dues office as provided for in Article 17 or Article 18 hereof according to the class of vessel intimation in writing is given to the Harbour Treasurer at the said office that the said goods are to be re-shipped and provided also that they are so re-shipped without having previously been removed from the quays or works of the Trustees within ninety-six hours after they have been landed otherwise they shall be liable in full rates inwards and also in outward rates.

7. In ascertaining distances from Dundee under Articles 3 and 5 hereof the measurements shall be made in a straight line from the Town House of Dundee to the destination of the goods.

8. For the purposes of Articles 3 4 5 and 6 hereof the expression "goods" shall not include animals or fish.

9. Outward rates are not exigible on goods re-shipped overside or conveyed direct from one vessel to another.

10. All goods for re-shipment other than those mentioned in Articles 4 and 6 hereof which cannot be conveyed direct from the one vessel to the other but require to be landed shall be liable in full rates inwards but they shall be exempt from rates outwards provided that they have not been removed from the quays or works of the Trustees and are re-shipped within ninety-six hours after having been landed otherwise they shall be liable in outward rates also.

11. All goods landed from vessels requiring repairs either in the graving docks or on the patent slip or otherwise shall be exempt from rates provided such goods are again put on board the vessels from which they have been landed but they shall be charged such sum in name of quay rent or otherwise as shall be fixed by the Trustees If such goods are not re-shipped on board the vessel from which they have been landed they shall be liable in rates.

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This exemption from rates applicable to fresh fish including fresh herrings discharged at the Tidal Harbour of Earl Grey and King William the Fourth Docks shall also apply to such fish and herrings landed at the Trustees' pier at Broughty Ferry for sale in the markets of Broughty Ferry or Dundee.

13. All goods having paid rates outwards shall if returned to the original shipper and in the original state be exempt from rates inwards.

14. All returned empty boxes barrels bags sacks and pack sheets are exempt from rates.

15. All goods merchandise wares or commodities whatsoever and all animals conveyed in passage boats belonging to or licensed by the Trustees from any of the ferry harbours of Ferry-Port-on-Craig Newport Woodhaven Balmerino or any landing-place to be erected for the ferry at Craighead in the county of Fife to the ferry harbour of Dundee or from the ferry harbour of Dundee to any of these ferry harbours or landing-places are exempt from payment of rates.

16. All stones wood coals and other articles whatsoever brought into the harbour for the use of the harbour works ferry harbour works or the steam boats or other vessels licensed by the Trustees navigating or using the ferry or for the use of the police works or any of the public works of the town of Dundee when such stones &c. are imported by the Trustees or other public authorities themselves shall be exempt from rates but the vessels bringing all such materials shall be liable in rates.

17. Every shipmaster (except of steam or other vessels being regular traders as after provided for) shall call at the Shore-Dues office within twelve hours after the arrival of the vessel in the harbour and give an account of the cargo inwards by producing the manifest bills of lading manifest book freight account book cargo book invoices of goods Custom House papers and such other documents as the Treasurer shall deem necessary or demand for ascertaining the true contents of the cargo and grant security either by consignment or otherwise before a permit or warrant is issued for discharging the same and every shipmaster taking on-board goods shall give intimation at the Shore-Dues office before he begins to load and procure a permit or warrant to ship the

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same before allowing such goods to be put on board and shall immediately on being laden or before sailing give an account of his cargo outwards by producing the manifest bills of lading mate or ship's book or other documents and pay the rates on said goods so far as not already paid all under a penalty of ten pounds for each transgression. A.D. 1911.

18. Every shipmaster owner manager consignee or other person duly authorised of a steam or other vessel being a regular trader to the port of Dundee shall call at the Shore-Dues Office immediately on the arrival or departure of the vessel or so soon thereafter as the office is open and give an account of the cargo by production of the documents mentioned in Article 17 hereof and grant security or make consignment as above expressed under the like penalty of ten pounds for each transgression.

19. The rates on goods imported shall be payable before the goods are unshipped or removed from the works of the Trustees and on goods exported before being put on board the vessel under a penalty of five pounds for each offence and the harbour-master is authorised and required to refuse to allow any vessel to leave any part of the harbour until he receive from the collector of rates a permit showing that all rates exigible on goods imported or exported by such vessel have been paid.

20. Ships' outfit and stores of all kinds (except coals put on board steamers for the use of their engines) including provisions when taken direct on board of any vessel for her own use or landed for the purpose of being again re-shipped for the use of the same vessel out of which they had been so landed are exempt from payment of rates.

21. In weighing and measuring goods for ascertaining the rates payable the weight or measurement of the packing materials is to be included.

22. In laying on and collecting the rates authorised by this schedule the following rules shall apply to the extent following viz. :—

(A) In the administration of Articles 3 4 5 and 6 Sundays and public holidays when work is suspended shall be excluded from the forty-eight hours after the reporting of the cargoes of vessels at the Shore-Dues office within which the declaration of goods to be sent to places not within ten miles of Dundee and of goods to be re-shipped must be made and Sundays and such public holidays shall also be excluded from the ninety-six hours or the one hundred and twenty hours as the case may be within which the removal of such goods from the sheds and quays and their re-shipment must take place :

(B) In the administration of Articles 5 and 6 relative to the reporting of the cargoes of vessels at the Shore-Dues office the hour

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of reporting shall not be reckoned until twelve o'clock noon although the report may have actually been made previous to that hour and in case of reports made after four o'clock afternoon the hour of report shall not be reckoned till twelve o'clock noon of the next day:

(c) In the administration of Articles 3 4 5 and 6 should a small part only of a lot of goods under through bills of lading or under declaration be not removed within the prescribed time that part shall also be allowed to be removed although a few days (but not exceeding a week) beyond the prescribed time may have elapsed and shall be charged only half-rates inwards and shall be exempt from rates outwards. Further in the case of goods for re-shipment the removal of the goods from the place where they may have been landed to the place where they are to be re-shipped shall be reckoned as equivalent to re-shipment. Provided however that in all such cases shed rates shall be charged when the goods remain in any shed beyond forty-eight hours as provided for in Schedule G.:

(d) In the administration of Article 10 goods stored in any harbour warehouse from the quays or sheds and on which shed dues have not become exigible shall be allowed to be re-shipped free of outward dues although the re-shipment may take place beyond ninety-six hours after the goods have been landed.

SCHEDULE D.

RATES FOR GRAVING DOCKS AND PATENT SLIP.

1. Every vessel entering the graving dock shall be charged at the rate of one penny and one farthing per register ton per day of not exceeding twenty-four hours for the first forty-eight hours. After forty-eight hours the rate shall be one penny per register ton per day.
2. Every vessel taken on the patent slip shall be charged threepence per register ton for hauling upon the slip but vessels of greater register tonnage than one hundred and fifty shall be allowed deduction from the amount of their tonnage beyond one hundred and fifty of one half thereof the said deduction to apply only to the charge for hauling.

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3. All vessels shall be charged for the use of the patent slip three farthings per register ton per day. A.D. 1911.
4. Steam vessels shall be charged by the ton of measurement including the engine room.
5. The minimum charge for the use of the graving docks and patent slip shall be one pound one shilling.
6. No vessel shall be allowed more ballast on board at the time she is taken on the patent slip than the patent slip keeper shall fix and allow and all ballast so allowed above twenty tons shall be paid for at the rate of sixpence per ton.
7. The day a vessel goes in or on and the day she leaves the said dock or slip to count as one day Sundays and holidays not to be charged unless work is done.

RATES FOR CAREENING BEACH.

1. Vessels to pay for every two successive day tides on the beach:—

	£	s.	d.
If under 40 tons - - - -	0	2	6
40 tons and under 60 tons - -	0	3	6

And for every 20 tons above 60 one shilling additional.

2. Vessels occupying the beach for one tide only to pay as for two and for three tides to pay as for four and so on (Sundays excepted).

NOTE.—Vessels shall (in ordinary circumstances and unless the exigencies of the traffic of the dock necessitate other arrangements) be entitled to their turn in the rotation of entry in the Dock Keeper's Regulating Book provided such vessel be ready for her turn but if not ready the turn and entry money shall be forfeited and a new entry and deposit made before such vessel be admitted into a dock or taken upon the slip or careening beach.

SCHEDULE E.

RATES FOR CRANES &C.

RATES FOR THE NINETY-TON CRANE.

	£	s.	d.
For each lift not exceeding 3 tons - - - -	0	10	0
Or (in the option of the parties using the crane) for one hour or any shorter time - - - -	0	10	0
For each hour after the first - - - -	0	6	6

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							£	s.	d.
For each lift exceeding 3 tons and not exceeding 4 tons							0	12	6
Do.	do.	4	„	do.	do.	6	1	0	0
Do.	do.	6	„	do.	do.	8	1	7	6
Do.	do.	8	„	do.	do.	10	2	0	0
Do.	do.	10	„	do.	do.	12	3	0	0
Do.	do.	12	„	do.	do.	15	3	15	0
Do.	do.	15	„	do.	do.	20	4	10	0
Do.	do.	20	„	do.	do.	25	5	15	0
Do.	do.	25	„	do.	do.	30	6	15	0
Do.	do.	30	„	do.	do.	35	7	15	0
Do.	do.	35	„	do.	do.	40	8	15	0
Do.	do.	40	„	do.	do.	45	9	15	0
Do.	do.	45	„	do.	do.	50	10	15	0
Do.	do.	50	„	do.	do.	55	11	15	0
Do.	do.	55	„	do.	do.	60	12	15	0
Do.	do.	60	„	do.	do.	65	13	15	0
Do.	do.	65	„	do.	do.	70	14	15	0
Do.	do.	70	„	do.	do.	75	15	15	0
Do.	do.	75	„	do.	do.	80	16	15	0
Do.	do.	80	„	do.	do.	85	17	15	0
Do.	do.	85	„	do.	do.	90	18	15	0

No article exceeding 90 tons to be lifted by this crane and all lifts exceeding 30 tons to have a preference at it. The Trustees also to have power to withhold the use of the crane for any lift or lifts under ten tons.

For loading or unloading coals or other minerals 2d. per ton.

FOR THE THIRTY-TON CRANE.

							£	s.	d.
For each lift not exceeding 3 tons							0	10	0
Or (in the option of the parties using the crane) for one hour or any shorter time							0	10	0
For each hour after the first							0	6	6
For each lift exceeding 3 tons and not exceeding 4 tons							0	12	6
Do.	do.	4	„	do.	do.	6	1	0	0
Do.	do.	6	„	do.	do.	8	1	7	6
Do.	do.	8	„	do.	do.	10	2	0	0
Do.	do.	10	„	do.	do.	12	3	0	0
Do.	do.	12	„	do.	do.	15	3	15	0
Do.	do.	15	„	do.	do.	20	4	10	0
Do.	do.	20	„	do.	do.	25	5	15	0
Do.	do.	25	„	do.	do.	30	6	15	0

The charge for vessels' masts at either of the above cranes to be made at the rate of 1s. for every 10 tons register divided by the number of masts for each mast put in or taken out.

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Thus the dues for a sloop of 60 tons are 6s. for one mast.

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Do	do.	100	„	10s. for one mast.
A brig or schooner of		150	„	7s. 6d. for one mast and 15s. for two.
Do.	do.	250	„	12s. 6d. for one mast and 25s. for two.
A ship or barque of		300	„	10s. for one mast 20s. for two and 30s. for three.
Do.	do.	400	„	13s. 4d. for one mast 26s. 8d. for two and 40s. for three.

Besides the charge for time or lifts as stated in the foregoing tables.

When masts have to be lifted by the crane and placed on the quay or otherwise for adjustment previous to the masting of the vessel proper the charge for each lift shall be one-half of the above rates for lifts.

The charge for masting steam vessels shall be two-thirds of the above rates.

No article exceeding 30 tons to be lifted by this crane and all lifts exceeding 20 tons to have a preference at it.

All necessary use of either of the above cranes from the lifting of an article off its carriage until stowed or adjusted in the vessel or from the lifting of an article from the vessel until placed on the carriage shall be included in one lift but if the work is not proceeded with continuously each lift of an article after the first lift shall be charged one-half of the foregoing rates and the first lift itself shall be charged the foregoing rates.

FOR THE TWENTY-TON HYDRAULIC CRANE.

						£	s.	d.
For each lift not exceeding 3 tons	-	-	-	-	-	0	3	4
Or (in the option of the parties using the crane) for one hour or any shorter time	-	-	-	-	-	0	3	4
For each hour after the first	-	-	-	-	-	0	2	6
For each lift exceeding 3 tons and not exceeding 4 tons	-				-	0	6	8
Do.	do.	4	„	do.	do.	5	„	-
Do.	do.	5	„	do.	do.	6	„	-
Do.	do.	6	„	do.	do.	8	„	-
Do.	do.	8	„	do.	do.	10	„	-
Do.	do.	10	„	do.	do.	12	„	-
Do.	do.	12	„	do.	do.	15	„	-
Do.	do.	15	„	4s. 6d. per ton in addition to the last-mentioned rate.				

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For loading or unloading coals or other minerals 2d. per ton.

No article exceeding 20 tons to be lifted by this crane and all lifts exceeding 10 tons to have a preference at it.

FOR THE TEN-TON HAND CRANE.

When used for lifts not exceeding 2 tons—for one hour or							£	s.	d.
any shorter time							0	1	6
For each hour after the first							0	1	0
For each lift exceeding 2 tons and not exceeding 2½ tons							0	2	0
Do.	do.	2½	„	do.	do.	3	0	3	0
Do.	do.	3	„	do.	do.	4	0	5	0
Do.	do.	4	„	do.	do.	5	0	7	0
Do.	do.	5	„	do.	do.	6	0	10	6
Do.	do.	6	„	do.	do.	7	0	16	0
Do.	do.	7	„	do.	do.	8	1	2	6
Do.	do.	8	„	do.	do.	9	1	7	6
Do.	do.	9	„	do.	do.	10	1	15	0

No article exceeding 10 tons to be lifted by this crane and all lifts exceeding 4 tons to have a preference at it.

FOR THE FOUR-TON IRON HAND CRANES.

When used for lifts not exceeding 2 tons—for one hour or							£	s.	d.
any shorter time							0	1	6
For each hour after the first							0	1	0
For each lift exceeding 2 tons and not exceeding 2½ tons							0	1	6
Do.	do.	2½	„	do.	do.	3	0	2	6
Do.	do.	3	„	do.	do.	4	0	4	0

No article exceeding 4 tons to be lifted by these cranes.

FOR THE THREE-TON IRON HAND CRANES.

When used for lifts not exceeding 2 tons—for one hour or							£	s.	d.
any shorter time							0	1	6
For each hour after the first							0	1	0
For each lift exceeding 2 tons and not exceeding 2½ tons							0	1	6
Do.	do.	2½	„	do.	do.	3	0	2	6

No article exceeding 3 tons to be lifted by these cranes.

TIME FOR LIFTS AT ALL THE CRANES EXCEPT THE 90-TON
AND 30-TON CRANES.

Time as after specified will be allowed for each lift chargeable by the weight including the whole time that the crane may be occupied

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or obstructed or that the articles which have been or are to be lifted shall remain on the quay within range of the crane:— A.D. 1911.

2 tons and not exceeding 4 tons 2 hours and for every extra hour one fourth,

4 tons and not exceeding 6 tons 3 hours and for every extra hour one sixth,

6 tons and not exceeding 8 tons 4 hours and for every extra hour one eighth,

8 tons and not exceeding 10 tons 5 hours and for every extra hour one tenth,

of the aforesaid rates applicable to the crane in use to be charged in addition.

In the case of each of the hand cranes 8*d.* for each hour the crane is used will be charged for wages of each man provided by the Trustees to assist in working the crane in addition to the rates above specified.

When dues are chargeable by the hour the amount of them shall be ascertained by calculating the time from the giving out of the handles until they are returned. No article shall be lifted at any of the cranes until the shore-dues and any other claim exigible by the Trustees in respect of it have been paid.

When an entry has been made for any of the cranes and the crane is not employed as entered for the sums after named shall be forfeited:—For the 90-ton and 30-ton cranes 40*s.* for the 20-ton hydraulic crane 20*s.* and for the 10-ton and smaller cranes 7*s.* 6*d.*

In the foregoing schedule the expression “each hour” shall mean an hour or part of an hour.

FOR THE USE OF THE HARBOUR RAILS.

For all goods minerals and other traffic thereon 1*d.* per ton or in the case of railway companies such yearly or periodical payment for the use of the harbour rails as may be agreed on with such companies in lieu of the said rate per ton.

SCHEDULE F.

RATES FOR HARBOUR RAILS.

For all traffic to and from the western side of the street called Caledon Street westward to the western boundary of the harbour - - - - -

3*d.* per ton

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 harbour eastward of the said western side of the said
 Caledon Street - - - - - 6d. per ton

SCHEDULE G.

RATES FOR SHEDS.

OTHER THAN LAIRAGE SHEDS OR OTHER WORKS OR CONVENIENCES
 FOR ANIMALS.

For each ton of 40 cubic feet or for each ton of 20 cwt. which shall remain in the sheds on the quays or jetties of the harbour or docks beyond forty-eight hours the sum of 1d. sterling per ton for each day or part of a day during which the said goods shall remain after the said forty-eight hours but not more than four days. If the goods shall remain longer than the six days above provided for the charge shall be 3d. per ton for each day or part of a day during which the goods shall remain after the said six days. But in every case all goods must be removed from the sheds within twenty-four hours after notice has been given to the owners consignees or other persons in charge to that effect by the harbour-master and failing their being so removed the harbour-master shall be entitled to remove the same at the expense and risk of the owners consignees or other persons in charge and to detain them until all rates due to the Trustees and all charges incurred for their storing watching removal or otherwise have been paid. The said rates and charges shall be paid by the owners consignees or other persons in charge of the goods.

RATES FOR WEIGHING.

On steelyards—	s.	d.
For goods of all kinds per ton	0	1
On beams and scales—		
For goods of all kinds per ton	0	1

All flax hemp tow codilla of flax and hemp and all jute imported within the limits of the harbour from any port or place not being a port or place within the United Kingdom shall prior to their being removed from the docks or piers of the harbour or other place at which the same are unshipped be weighed so far as required by and according to regulations to be prescribed from time to time by the Trustees and the expense of such weighing shall be paid before removal of the goods. The rates for weighing shall be per ton. - - - 0 3

Whereof one-third shall be paid by the shipowner agent s. d. A.D. 1911.
 or other person in charge of the vessel and two-thirds by the
 owner consignee or other person in charge of the goods
 besides the charge for the use of the beams and scales as
 above payable by the owner consignee or other person in
 charge of the goods.

When jute is not weighed but delivery is taken by the ton
 as consisting of a certain number of bales then the weighing
 dues shall be per ton - - - - - 0 2
 The one-half thereof being payable by the shipowner agent
 or other person in charge of the vessel and the other half
 by the owner consignee or other person in charge of the
 goods.

In the administration of this Act the rates for weighing shall be
 charged for and in respect of all the goods mentioned in this Schedule
 whether the weighing be at the instance of the Trustees themselves
 or at the instance of the shipowner agent or other person in charge of
 the vessel or the owner consignee or other person in charge of the
 goods or to whom they shall be deliverable.

SCHEDULE H.

RATES FOR LIGHTING AND BUOYING.

	s.	d.
All vessels entering or leaving the harbour—per register ton	0	0½
Vessels paying rates on the inward voyage shall not be liable in rates outwards.		
All such rates shall be paid by the owner agent master consignee or other person in charge of such vessels.		
Steam trawlers shall only be charged one-half of the said rate.		

The Trustees may compound and agree with the owners of steam
 or other vessels plying within the harbour or between the harbour and
 ports or places in the River Tay for the rates payable in respect of
 such vessels.

In levying and collecting the amount of any of the rates contained
 in the foregoing schedules any fractional part of a penny shall be
 reckoned one penny.

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SCHEDULE I.

FEES FOR SURVEY OF GOODS.

Vessels from eastward of Cape of Good Hope and westward of Cape Horn—

1,000 tons and upwards 2*l.* 2*s.*

700 tons and under 1,000 tons 1*l.* 10*s.*

Under 700 tons 1*l.* 1*s.*

Vessels from all ports in North and South Atlantic excluding United Kingdom continent of Europe Mediterranean Baltic Sea and White Sea 1*l.* 1*s.*

Vessels from ports in United Kingdom continent of Europe Mediterranean Baltic Sea and White Sea 10*s.* 6*d.*

For every duplicate certificate 2*s.* 6*d.*

SCHEDULE J.

TAY FERRIES RATES.

Hire of a steamboat	- - - - -	each	£15 per day
Hire of a steamboat	- - - - -	each	£10 per half day
Hire of a sail-boat (for a cross river journey from Dundee to Newport or vice versâ)	- - - - -	each	15 <i>s.</i>
Hire of a pinnace or cutter (for a cross river journey from Dundee to Newport or vice versâ)	- - - - -	each	10 <i>s.</i> 6 <i>d.</i>
Hire of a yawl (for a cross river journey from Dundee to Newport or vice versâ)	- - - - -	each	8 <i>s.</i>

A.

AGRICULTURAL IMPLEMENTS.

Cart axles	- - - - -	each	3 <i>d.</i>
Carriage axles	- - - - -	each	2 <i>d.</i>
Cart and carriage wheels	- - - - -	per pair	4 <i>d.</i>
Cart shafts	- - - - -	ditto	3 <i>d.</i>
Carriage shafts	- - - - -	ditto	2 <i>d.</i>
Fanners	- - - - -	each	1 <i>s.</i>
Plough or pair harrows	- - - - -	each	6 <i>d.</i>
Turnip cutter	- - - - -	each	6 <i>d.</i>
Other agricultural implements and machinery	- - - - -	per cwt.	2 <i>d.</i>

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ANIMALS.						A.D. 1911.
Mule ass bull cow or heifer	-	-	-	-	each	4d.
Goat sheep lamb or kid	-	-	-	-	each	1d.
Calf boar sow or hog (alive)	-	-	-	-	each	4d.
Calf boar sow or hog (dead)	-	-	-	-	each	3d.
Pigs (sucking)	-	-	-	-	each	2d.
Dogs	-	-	-	-	each	2d.
Dogs (shepherds') when accompanying flock	-	-	-	-		free
Horse	-	-	-	-	each	8d.
Horse for sale (to or from market)	-	-	-	-	each	6d.
Horse used in drawing cart or wagon when accompanying same	-	-	-	-	each	6d.
Horse used in drawing carriage when accompanying same	-	-	-	-	each	8d.
Stallion	-	-	-	-	each	5s.
Bear (tame)	-	-	-	-	each	1s.
Monkeys	-	-	-	-	each	2d.
Elephants and such like animals	-	-	-	-	According to agreement	

B.

Barrow two wheeled or grinders'	-	-	-	-	each	3d.
One wheeled or hand	-	-	-	-	each	2d.
Bakers'	-	-	-	-	each	4d. to 6d.
Advertising	-	-	-	-	each	4d. to 1s.
Barrels (empty) according to size	-	-	-	-	each	1d. to 8d.
Beef in cases or casks	-	-	-	-	per cwt.	2d.
Boat (rowing) exclusive of oars	-	-	-	-	each	6d. to 1s.
(sailing)	-	-	-	-	According to agreement	
Boat oars	-	-	-	-	per pair	2d.

BUILDING MATERIALS.

Cement stucco or fireclay	-	-	-	per ton	{	O.C. 1s. 8d.
						H.C. & M. extra.
Ditto	-	-	-	ditto		T.F.C. 2s. 6d.
Lime per load not exceeding 1 ton	-	-	-	ditto	{	O.C. 1s. 8d.
(Fractions of a ton 1d. per cwt.)						H.C. & M. extra.
Ditto	-	-	-	ditto		T.F.C. 2s. 6d.
Sand per load not exceeding one ton	-	-	-	ditto	{	O.C. 1s. 8d.
						H.C. & M. extra.
Ditto	-	-	-	ditto		T.F.C. 2s. 6d.
Slates tiles bricks or vent linings	-	-	-	ditto	{	O.C. 1s. 8d.
						H.C. & M. extra.
Ditto	-	-	-	ditto		T.F.C. 2s. 6d.
Stones (building)	-	-	-	ditto	{	O.C. 1s. 8d.
						H.C. & M. extra.

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A.D. 1911.	Stones (building)	- - - - -	per ton	T.F.C. 2s. 6d.
—	Scaffolding trestles &c.	- - - - -	per cwt.	2d.
	Ditto planks for ditto	- - - - -	ditto	1d.

C.

CARRIAGES AND OTHER VEHICLES.

If returning same day free on return journey.	Hearse 2 horses	- - - - -	each	4s. 10d.
	Ditto 1 horse	- - - - -	each	4s. 2d.
	Brakes (large) when drawn by 2 horses	- - - - -	each	5s. 0d.
	Brakes (small) ditto 2 ditto	- - - - -	each	3s. 10d.
	Carriages (4 wheeled) ditto 2 ditto	- - - - -	each	3s. 10d.
	Ditto (4 wheeled) ditto 1 horse	- - - - -	each	2s. 4d.
	Ditto (2 wheeled) ditto 1 ditto	- - - - -	each	2s. 2d.
	Omnibus ditto 2 horses	- - - - -	each	5s. 0d.
	Undertakers' and music-sellers' vans (when drawn by one horse)	- - - - -	each	2s. 0d.
	Ambulance or fever vans with 1 horse	- - - - -	each	2s. 6d.
	Sleigh (with 1 horse)	- - - - -	each	2s. 2d.
	Brakes (large) without the horses	- - - - -	each	3s. 8d.
	Brakes (small) intended to be drawn by 2 horses	- - - - -	each	2s. 6d.
	Carriages (4 wheeled) intended to be drawn by 2 horses	- - - - -	each	2s. 6d.
	Carriages (4 wheeled) intended to be drawn by 1 horse	- - - - -	each	1s. 8d.
	Carriages (2 wheeled) intended to be drawn by 1 horse	- - - - -	each	1s. 6d.
If returning empty same day free on return journey.	Bakers' vans (2 or 4 wheeled) with 1 horse	- - - - -	each	2s. 6d.
	Bakers' vans (2 or 4 wheeled) empty with 1 horse	- - - - -	each	1s. 6d.
	Caravans or furniture vans 14 to 16 feet 1 horse	- - - - -	each	10s.
	Caravans or furniture vans 12 to 14 feet 1 horse	- - - - -	each	7s.
	Caravans or furniture vans under 12 feet 1 horse	- - - - -	each	5s.
	Furniture vans empty	- - - - -	each	half rates.
	Cart 2 wheeled float or janker with 1 horse	- - - - -	each	1s.
	Lorry 4 wheeled float or janker with 1 horse	- - - - -	each	1s. 6d.
	Cart 2 wheeled float or janker (without horse)	- - - - -	each	6d.
	Lorry 4 wheeled float or janker (without horse)	- - - - -	each	1s.
	Stone bogie	- - - - -	each	4d.

Man's fare extra.

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Cycle perambulator or invalid chair	each	single 2d.	A.D. 1911.
accompanied by passenger - - -		return 3d.	
Cycle perambulator or invalid chair			
unaccompanied by passenger - - -	each	3d.	
Cycle (tandem) accompanied by passenger	per seat	single 2d.	
		return 3d.	
Ditto ditto unaccompanied ditto - -	ditto	3d.	
Tricycle accompanied by passenger - -	ditto	single 3d.	
		return 5d.	
Ditto unaccompanied ditto - - -	ditto	4d.	

MOTOR VEHICLES.

Cars - - - - -	each	single 2s.	
		return 3s.	
Tricycle with gig - - - - -	each	single 1s. 6d.	
		return 2s. 6d.	
Quad 1 seat - - - - -	each	single 1s. 3d.	
		return 1s. 9d.	
Quad 2 seats - - - - -	each	single 1s. 6d.	
		return 2s. 6d.	
Tri-car - - - - -	each	single 1s. 3d.	
		return 1s. 9d.	
Tricycle - - - - -	each	single 9d.	
		return 1s. 3d.	
Ditto 2 seats - - - - -	each	single 1s. 3d.	
		return 1s. 9d.	
Char-a-banc - - - - -	each	single 3s. 6d.	
		return 5s. 0d.	
Vans - - - - -	each	single 2s. 6d.	
		return 3s. 6d.	
Vans (large) - - - - -	each	single 3s. 6d.	
		return 5s. 0d.	
Lorry (empty) - - - - -	each	single 3s. 0d.	
		return 4s. 0d.	
Bicycle 1 seat - - - - -	each	single 4d.	
		return 6d.	
Ditto 1 seat (unaccompanied by passenger) - - - - -	each	6d.	
Ditto 2 seats - - - - -	each	single 6d.	
		return 9d.	
Ditto 2 seats (unaccompanied by passenger) - - - - -	each	8d.	
Ditto (with trailer or side car) - - -	each	single 6d.	
		return 9d.	
Trailer or side car - - - - -	each	single 2d.	
		return 3d.	

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A.D. 1911.	Trailer or side car (unaccompanied by passenger) - - - - -	each	3d.
	Motor boat according to size - - - - -		from 1s. upwards.
	Coal coke or cinders (fractions over one ton 1d. per cwt.) - - - - -		{ O.C. 1s. 8d. per ton. H.C. & M. extra.
	Ditto - - - - -		T.F.C. 2s. 6d. per ton.
	Confectionery in cases or casks - - - - -	per cwt.	2d.
	Curling stones - - - - -	per pair	2d.

CARRIERS' RATES.

Horse and cart or lorry with one man	1s.
Goods carried by carriers - - - - -	per cwt. 1d.
Furniture ditto ditto - - - - -	ditto 2d.

D.

Draff - - - - -	{ O.C. 1s. 8d. per ton. H.C. & M. extra.
Ditto - - - - -	T.F.C. 2s. 6d. per ton.
Dead Meat - - - - -	per cwt. 2d.

E.

Eggs in cases - - - - -	per cwt. 2d.
Earthenware - - - - -	ditto 2d.

F.

FARM PRODUCE.

Barley or other grains	- - - - -	per cwt.	{ O.C. 1d. H.C. & M. extra.
Ditto	- - - - -	ditto	T.F.C. 1½d.
Bran	- - - - -	ditto	{ O.C. 1d. H.C. & M. extra.
Ditto	- - - - -	ditto	T.F.C. 1½d.
Corn in straw (to be carried at such times as Superintendent may direct)	- - - - -	per ton	{ O.C. 2s. 6d. H.C. & M. extra.
Chaff	- - - - -	per 4 bushel sack	2d.
Chaff (bed)	- - - - -	each	3d.
Beans peas tares and maize	- - - - -	per cwt.	{ O.C. 1d. H.C. & M. extra.
Ditto	- - - - -	ditto	T.F.C. 1½d.
Hay and straw	- - - - -	per ton	{ O.C. 2s. 6d. H.C. & M. extra.
Ditto in bales	- - - - -	per cwt.	{ O.C. 1½d. H.C. & M. extra.
Ditto	- - - - -	ditto	T.F.C. 2d.

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Potatoes turnips carrots in bags	per ton	O.C. 1s. 8d.	A.D. 1911.
		H.C. & M. extra.	--
Ditto ditto ditto	ditto	T.F.C. 2s. 6d.	
Ditto ditto ditto in bulk	ditto	O.C. 1s. 8d.	
		H.C. & M. extra.	
Ditto new and other vegetables in casks or hampers	per cwt.	2d.	

FISH.

Salmon grilse or trout	each	1d.	
White fish in bulk	per cwt.	O.C. 2d.	
		H.C. & M. extra.	
White fish in boxes	ditto	2d.	
Herrings in bulk	ditto	O.C. 2d.	
		H.C. & M. extra.	
Ditto in barrels	ditto	2d.	

FURNITURE, &c.

Bedsteads	each	3d.	
Ditto (combination)	each	6d.	
Bed (feather or chaff)	each	3d.	
(Wool or flock)	each	3d.	
(Crib or chair)	each	3d.	
Cabinet according to size	each	6d. to 1s.	
Carpet according to size	each	1d. to 8d.	
Chest of drawers according to size	each	4d. to 1s.	
Chest	each	2d. to 4d.	
Coffins	each	6d.	
Coffins with corpse	each	1s.	
Couch	each	6d.	
Cradle	each	2d.	
Draught screens according to size	each	2d. to 6d.	
Dresser according to size	each	6d. to 1s.	
Chairs (arm or rocking)	each	2d.	
Chairs (hand or child's)	each	1d.	
Fenders according to size	each	1d. to 2d.	
Forms according to size	each	1d. to 6d.	
Grandfather's clock	each	6d.	
Mattress (wire)	each	3d.	
Mattress (spring)	each	4d.	
Mattress (hair wool or straw)	each	2d.	
Mirror according to size	each	1d. to 1s.	
Overmantel according to size	each	3d. to 6d.	
Rocking horse according to size	each	3d. to 6d.	

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—	Sewing machine (hand)	- - - - -	each	1d.
	Settee	- - - - -	each	4d.
	Sofa	- - - - -	each	9d.
	Stools (piano or foot)	- - - - -	each	1d.
	Tables according to size	- - - - -	each	1d. to 1s.
	Tables dressing according to size	- - - - -	each	6d. to 1s.
	Umbrella or hall stand according to size	- - - - -	each	1d. to 8d.
	Wardrobes or sideboards according to size	- - - - -	each	6d. to 1s.
	Washing tubs	- - - - -	each	1d. to 2d.
	Furniture or baggage not charged	- - - - -		
	otherwise	- - - - -	per cwt.	2d.

FRUIT.

Apples in barrels	- - - - -	per cwt.	2d.
Bananas in crates or hampers	- - - - -	ditto	2d.
Grapes in barrels	- - - - -	ditto	2d.
Oranges or lemons in cases	- - - - -	ditto	2d.

G.

GROCERY GOODS.

Butter in casks	- - - - -	per cwt.	2d.
Firelighters in cases	- - - - -	ditto	2d.
Flour	- - - - -	ditto	2d.
Jams or jellies in cases	- - - - -	ditto	2d.
Onions in cases	- - - - -	ditto	2d.
Onions in bags	- - - - -	ditto	2d.
Pearl barley lentils rice &c.	- - - - -	ditto	2d.
Pork or bacon	- - - - -	ditto	2d.
Sugar	- - - - -	ditto	2d.
Linseed meal	- - - - -	ditto	2d.
Whiting	- - - - -	ditto	2d.
Thirids	- - - - -	ditto	2d.
Gas cylinders	- - - - -	ditto	1d. to 2d.
Gravel in loads	- - - - -	ditto	O.C. 1½d.
			H.C. & M. extra.
Gravel in boxes or bags	- - - - -	ditto	T.F.C. 2d.

H.

Hair in bags	- - - - -	per cwt.	3d.
Headstones	- - - - -	ditto	O.C. 1d.
			H.C. & M. extra
Ditto	- - - - -	ditto	T.F.C. 2d.
Honey	- - - - -	ditto	2d.

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I.

IRONMONGERY.

Corrugated iron	- - - -	per cwt.	2d.
Dust bins	- - - -	each	1d. to 2d.
Garden seats	- - - -	each	6d.
Grates ranges &c. (according to size)	-	each	3d. to 6d.
Hose reel (garden)	- - - -	each	2d.
Iron brass copper lead and zinc	-	per cwt.	2d.
Iron (scrap)	- - - -	per ton	O.C. 1s. 8d. H.C. & M. extra.
Ditto	- - - -	ditto	T.F.C. 2s. 6d.
Iron pipes	- - - -	ditto	O.C. 2s. 6d. H.C. & M. extra.
Ditto	- - - -	ditto	T.F.C. 3s. 4d.
Lawn mowers according to size	-	each	2d. to 6d.
Mangles laundry	- - - -	each	6d.
Mangles table	- - - -	each	3d.
Nails	- - - -	per cwt.	2d.
Wringers	- - - -	each	1d.
Grindstones	- - - -	per cwt.	2d.

L.

LIQUIDS.

Wine or spirits	- - - -	per cwt.	2d.
Ales beer or porter	- - - -	ditto	2d.
Wine or spirits in jars 6 to 12 gallons	-		3d.
Ditto ditto 3 to 5 gallons	- - - -		2d.
Ditto ditto 1 to 2 gallons	- - - -		1d.
Ditto ditto ales beer porter and waters in baskets or boxes per dozen pints or quarts			1d.
Waters in syphons	- - - -	per dozen	2d.
Cart or lorry loads of beer or waters	} per cwt. {	O.C. 1d. H.C. & M. extra.	
in bottles			
Ladders (according to size)	- - - -		2d. to 6d.
Leather	- - - -	per cwt.	2d.

M.

Manure (artificial)	- - - -	per ton	O.C. 1s. 8d. H.C. & M. extra.
Ditto	- - - -	ditto	T.F.C. 2s. 6d.
Ditto (farmyard)	- - - -	ditto	O.C. 1s. 8d. H.C. & M. extra.
Mill dust	- - - -	per cwt.	2d.

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	Under 5 gallons -	-	1d.
	Marble (rough) -	- - - - per cwt.	2d.
	Matches in cases -	- - - - ditto	2d.
	Moss litter -	- - - - ditto	2d.
	Mould -	- - - - per ton	O.C. 1s. 8d.
			H.C. & M. extra.
	Ditto -	- - - - ditto	T.F.C. 2s. 6d.

MUSICAL INSTRUMENTS.

Piano organ or harmonium according to	-	-	-	-	-	each	6d. to 1s.
size -	-	-	-	-	-	-	-
Street organ on wheels according to size	-	-	-	-	-	each	4d. to 9d.
Ditto (small carrying)	-	-	-	-	-	each	2d.

O.

Oak bark in bags -	-	-	-	-	-	per ton	O.C. 2s. 6d.
							H.C. & M. extra.
Oars -	-	-	-	-	-	per pair	2d.
Oil in barrels -	-	-	-	-	-	per cwt.	2d.
Oil in cans—6 to 12 gallons -	-	-	-	-	-	-	3d.
Ditto 3 to 5 gallons -	-	-	-	-	-	-	2d.
Ditto 1 to 2 gallons -	-	-	-	-	-	-	1d.
Oil cake -	-	-	-	-	-	per ton	O.C. 1s. 8d.
							H.C. & M. extra.
Ditto -	-	-	-	-	-	ditto	T.F.C. 2s. 6d.
Ditto in less quantities than 10 cwt. -	-	-	-	-	-	per cwt.	T.F.C. 2d.

P.

Paint -	-	-	-	-	-	per cwt.	2d.
Pipes (drain) -	-	-	-	-	-	per ton	O.C. 1s. 8d.
							H.C. & M. extra.
Ditto -	-	-	-	-	-	ditto	T.F.C. 2s. 6d.
Ditto (iron) -	-	-	-	-	-	ditto	O.C. 2s. 6d.
							H.C. & M. extra.
Ditto -	-	-	-	-	-	ditto	T.F.C. 3s. 4d.

Passenger fares—

Each person to or from Newport	-	-	-	-	-	-	3d.
Each child under 12 years of age half fare	-	-	-	-	-	-	-
Each person when occupying saloon (extra)	-	-	-	-	-	-	1d.

R.

Rags waste old ropes &c. -	-	-	-	-	-	per cwt.	2d.
Ropes (wire or hemp) -	-	-	-	-	-	ditto	2d.
Rockery stones in loads -	-	-	-	-	-	per ton	O.C. 1s. 8d.
							H.C. & M. extra.
Ditto boxes or bags -	-	-	-	-	-	ditto	T.F.C. 3s. 4d.

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S.						
Salt	-	-	-	-	per cwt.	1d.
Steps	-	-	-	-	per pair	2d.
Sawdust	-	-	-	-	per cwt.	O.C. 1d.
	-	-	-	-		H.C. & M. extra.
Ditto	-	-	-	-	ditto	T.F.C. 1½d.
T.						
Tar in barrels	-	-	-	-	per cwt.	2d.
Tea in chests or boxes	-	-	-	-	ditto	2d.
Trees shrubs or plants	-	-	-	-	ditto	2d.
Turf	-	-	-	-	per ton	O.C. 1s. 8d.
	-	-	-	-		H.C. & M. extra.
Ditto	-	-	-	-	ditto	T.F.C. 2s. 6d.
V.						
Vitriol in carboys	-	-	-	-	per cwt.	3d.
W.						
WOOD.						
Rough wood lath wood &c.	-	-	-	-	per ton	O.C. 1s. 8d.
	-	-	-	-		H.C. & M. extra.
Ditto	-	-	-	-	ditto	T.F.C. 2s. 6d.
Firewood	-	-	-	-	ditto	O.C. 1s. 8d.
	-	-	-	-		H.C. & M. extra.
Ditto	-	-	-	-	ditto	T.F.C. 2s. 6d.
Ditto in bags	-	-	-	-	per cwt.	2d.
Dressed wood (doors windows &c.)	-	-	-	-	per ton	O.C. 2s. 6d.
	-	-	-	-		H.C. & M. extra.
Ditto	-	-	-	-	ditto	T.F.C. 3s. 4d.
Wool	-	-	-	-	ditto	O.C. 3s. 4d.
	-	-	-	-		H.C. & M. extra.

NOTES.

Explosives and highly inflammable material to be carried at such rates and at such times as may be agreed upon.

The ton mentioned in the foregoing Schedule is the ton of 20 cwts.

The lowest charge for a parcel is one penny.

The abbreviations in the foregoing part of Schedule J have the meanings following (that is to say):—

O.C. means owner's cart.

T.F.C. means Tay Ferries cart.

H.C. & M. means horse cart and man.

H.C. means horse and cart.

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COMPOSITION TICKETS.

			For 1 Month.	For 3 Months.	For 6 Months.	For 1 Year.
			£ s. d.	£ s. d.	£ s. d.	£ s. d.
One person	-	-	0 10 0	1 9 0	1 18 0	3 0 0
Two persons of same household	-	-	0 18 0	2 0 0	2 17 0	4 10 0
Three	do.	do.	1 8 0	2 10 0	3 10 0	5 10 0
Four	do.	do.	1 15 0	2 17 6	4 2 0	6 5 0
Five	do.	do.	2 2 6	3 3 6	4 12 0	7 0 0
Six	do.	do.	2 8 6	3 9 6	5 2 0	7 15 0
Seven	do.	do.	2 14 6	3 15 6	5 12 0	8 10 0
Eight	do.	do.	3 0 6	4 1 6	6 2 0	9 5 0
Nine	do.	do.	3 4 6	4 5 6	6 9 0	9 15 0
Ten	do.	do.	3 8 6	4 9 6	6 16 0	10 5 0
Eleven	do.	do.	3 12 6	4 13 6	7 3 0	10 15 0
Twelve	do.	do.	3 16 6	4 17 6	7 10 0	11 5 0
			and for each person above 12 persons. 4s. additional.	and for each person above 12 persons. 4s. additional.	and for each person above 12 persons. 7s. additional.	and for each person above 12 persons. 10s. additional.
Each male above 21 years of age included as a subsidiary ticket-holder shall be charged over and above the aforesaid rates—for 1 year 20s. for 6 months 12s. 6d. for 3 months 9s. and for 1 month 5s.						

Notes.—In reference to the above rates it shall be in the power of the holders of composition tickets of one month or three months to have the period extended for an additional fortnight or three weeks on payment of a sum proportionate to the increased time on the original cost of the ticket.

The word "household" shall mean the heads of a family and members of that family residing permanently in the house with them and their servants but not lodgers or parties only resident temporarily in the house.

STEERAGE COMPOSITION TICKETS FOR ADULTS.

	1 Month.	3 Months.	6 Months.	1 Year.
	£ s. d.	£ s. d.	£ s. d.	£ s. d.
	0 9 6	1 7 6	1 15 0	2 14 0

COMPOSITION TICKETS BOTH ORDINARY AND STEERAGE FOR YOUNG
PERSONS ABOVE 14 AND NOT EXCEEDING 18 YEARS OF AGE.

			1 Month.	3 Months.	6 Months.	1 Year.
			£ s. d.	£ s. d.	£ s. d.	£ s. d.
Ordinary	-	-	0 5 0	0 14 6	0 19 0	1 10 0
Steerage	-	-	0 4 6	0 14 0	0 17 6	1 7 0

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AND FOR YOUNG PERSONS UNDER 14 YEARS OF AGE.

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	1 Month.	3 Months.	6 Months.	1 Year.
	£ s. d.	£ s. d.	£ s. d.	£ s. d.
Ordinary - - - - -	0 3 6	0 10 0	0 13 0	1 0 0
Steerage - - - - -	0 3 0	0 9 0	0 12 0	0 18 0

The steerage tickets do not give admission to the saloon.
Sunday ordinary composition tickets for a single person—

	£ s. d.
For six months - - - - -	0 10 0
For one year - - - - -	1 0 0

The tickets are not transferable and the persons whose names are mentioned in the tickets and those persons only are allowed to pass in respect thereof.

SCHEDULE K.

FORM OF DECLARATION.

To be made before a sheriff or justice of the peace by some credible person in all cases where by the death bankruptcy or insolvency of a proprietor or by the marriage of a female proprietor bonds or other securities or vouchers of debt pass from one party to another in any other way than by a regular transfer.

I¹
do solemnly and sincerely declare that²
was the registered holder of the for £³
No.⁴ made by the Trustees of the Harbour of
Dundee:
That the said
on the day of
and the said has been transmitted and
now belongs to⁵
by and in virtue of⁶

¹ Insert the full name description and residence of the party making this declaration.
² Insert full name description and residence of the party.
³ State amount of security.
⁴ State number of security if it is numbered.
⁵ Name of executor or trustee or other party.
⁶ Narrate the deed and give the dates thereof.

And I make this solemn declaration conscientiously believing the same to be true and in virtue of the provisions of the Statutory Declarations Act 1835.

This declaration made by the said
at in the county
of this day
of before me.

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SCHEDULE L.

FORM OF DISCHARGE.

Received from the Trustees of the Harbour of Dundee by the hands of their Treasurer the sum of _____ pounds being the principal sum contained in the within _____ (all interest due thereon having been previously paid) and the said _____ is now delivered up as paid. In witness whereof [here insert testing clause according to the law of Scotland].

SCHEDULE M.

FORM OF VOTING PAPER.

ELECTION OF TRUSTEES FOR THE DUNDEE HARBOUR TRUST.

19

Voting paper for the election of trustees by shipowners in terms of the Dundee Harbour and Tay Ferries Consolidation Act 1911.

No. _____ (Number of elector as on the register.)

I hereby vote for the following candidate (or candidates) at this election namely :—

Signed by me the elector whose name and address are endorsed hereon at _____ this _____ day of _____ Nineteen hundred and _____

(Signed) A. B. Voter.

Signed by the above-mentioned voter who is personally known to me in my presence upon the date above-mentioned.

(Signed) C. D.

(Add designation and place of residence.)

Note.—This voting paper to be addressed to the Returning Officer Harbour Chambers Dundee and marked outside "voting paper."

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